

**IN THE HIGH COURT OF JUSTICE
FAMILY DIVISION**

Case No: FD25P00529

In the matter of the inherent jurisdiction of the High Court

AND IN THE MATTER OF THE SENIOR COURTS ACT 1981

AND IN THE MATTER OF THE CHILD ABDUCTION ACT 1984

AND IN THE MATTER OF THE CHILDREN ACT 1989

And in the matter of the children:

- **DHRUV KUNAL KARKERA (DOB:18.07.2010)**
- **AGASTYA KUNAL KARKERA (DOB: 26.04.2014)**

Between

Kunal Karkera

Applicant

-and-

Sirisha Karkera

Respondent

COURT BUNDLE

For Hearing on: 22 January 2025, at 14:00

At: Royal Courts of Justice, Strand, London WC2A 2LL

Before: Mr Justice Harrison

Filed on behalf of: Applicant (Litigant in Person)

Address for service: Kunal Karkera, of Flat 103, 16 Sutton Plaza,
16 Sutton Court Road, Sutton, London SM1 4FX

Email: kunal.karkera@gmail.com

Telephone: +44 7778139088/ 7785392910

SECTION A – CASE INFORMATION SHEET

1. **Case Title:**

2. **Case Number:** FD25P00529

3. **Court:** High Court of Justice, Family Division

4. **Type of Proceedings:** Wardship / Inherent Jurisdiction / Summary Return

5. **Parties:**

- Applicant: Kunal Karkera DOB : 05/05/1976 of Flat 103, 16 Sutton Plaza,
16 Sutton Court Road, Sutton, London SM1 4FX
Phone: +44 7778139088/ 7785392910
- Respondent: Sirisha Karkera, DOB : 09/02/1979, Lt Col Neelam Puthran,
401, Dunnock Nyati Enclave, Mohammedwadi, Pune India
411060 Phone: +9175599300

6. **Children:**

- **DHRUV KUNAL KARKERA (DOB:18.07.2010)**, current location: Pune, India
- **AGASTYA KUNAL KARKERA (DOB: 26.04.2014)**, current location: Pune,
India

7. **Allocated Judge (if known):** Mr Justice Harrison

8. **Nature of Current Hearing:**

- Directions / Implementation of Return Order

9. **Previous Hearings:**

- 03.12.2025 -- Comity of Court Request to the courts of Republic of India
- 27.11.2025 – Directions / Implementation of Return Order
- 29.10.2025 – Summary Return Order
- 21.10.2025 – Wardship Order
- 23.09.2025 – Initiation of Wardship proceedings

INDEX TO COURT BUNDLE

HEARING: 22 JANUARY 2026 –14:00 PM
HIGH COURT OF JUSTICE – FAMILY DIVISION

Between

Kunal Karkera
Applicant

-and-

Sirisha Karkera
Respondent

SECTION A — PRELIMINARY DOCUMENTS

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IN THE HIGH COURT OF JUSTICE

CASE NO: FD25P00529

FAMILY DIVISION

IN THE MATTER OF THE INHERENT JURISDICTION

AND IN THE MATTER OF THE SENIOR COURTS ACT 1981

AND IN THE MATTER OF THE CHILD ABDUCTION ACT 1984

AND IN THE MATTER OF THE CHILDREN ACT 1989

**AND IN THE MATTER OF THE CHILDREN: DHRUV KUNAL KARKERA
(DOB:18.07.2010) AND AGASTYA KUNAL KARKERA (DOB: 26.04.2014)**

BETWEEN:

Kunal Karkera

Applicant

-and-

Sirisha Karkera

Respondent

**POSITION STATEMENT OF APPLICANT FATHER FOR THE HEARING DATED
22 January 2026**

1. I, Kunal Karkera, of Flat 103, 16 Sutton Plaza, 16 Sutton Court Road, Sutton, London SM1 4FX, made this position statement for the hearing dated 22 January 2026. This Position Statement is filed by the Applicant Father pursuant to the Court's order dated 3 December 2025.
2. The matter before the Court concerns the welfare of the two subject children, Dhruv Kunal Karkera (DOB: 18.07.2010) and Agastya Kunal Karkera (DOB: 26.04.2014). Following the marriage of the Applicant Father and the

Respondent Mother in India, the family relocated and established their habitual residence in the United Kingdom from 4 November 2019. Throughout this period, the children were educated in UK state schools and were firmly integrated into the educational, social, and cultural environment of England and Wales, which remained the location of the parents' respective employment.

3. On 12 March 2025, the Respondent Mother wrongfully removed the children from the jurisdiction of England and Wales to India without the Applicant Father's consent. Following emergency applications, the High Court exercised its inherent jurisdiction, and on 21 October 2025, the children were made Wards of Court. Subsequently, on 29 October 2025, a Summary Return Order was made, directing the Respondent Mother to return the children to this jurisdiction on or before 8 December 2025. The Court stayed the return order but reiterated in its Order dated 03 December 2025 that the children continue to be the Wards of this Honourable Court and requested the courts in the Republic of India adjudicate the return of the children to their jurisdiction of habitual residence i.e., England and Wales .
4. Notwithstanding the Orders of this Honourable Court, the children remain in India. The Respondent Mother continues to disregard these proceedings in the jurisdiction of England and Wales, having filed only a single written submission and failing to attend any hearings. This continued and material breach of the Court's Orders operates to frustrate the children's welfare, impede the exercise of the protective powers of the Court, and presents an ongoing infringement upon the children's and the Applicant Father's right to family life.
5. I remain committed to facilitating the immediate and safe return of the children, in accordance with my duties and the paramount consideration of the children's welfare under s.1 Children Act 1989.
6. I have maintained regular weekly communication with the children by video and voice calls. During the initial period of contact, the children appeared relaxed and communicative. However, over time, I have become concerned that their manner of communication has changed, and I respectfully raise the possibility that their responses may now be influenced or rehearsed. I do not assert this as fact, but note the change as a matter of concern relevant to the

children's welfare. Some of the recent dates, in reverse chronological order, on which I have spoken with the children are as follows: 17 January 2026, 10 January 2026, 1 January 2026, 21 December 2025, 14 December 2025, 10 December 2025, 6 December 2025, 30 November 2025, 24 November 2025, 8 November 2025.

7. I have made consistent efforts to ensure that contact is child-focused, supportive, and non-confrontational. I respectfully submit that the continuation of regular, meaningful contact is important to the children's emotional wellbeing and to preserving their relationship with me.
8. In parallel proceedings in India, I note that the hearing listed on 8 December 2025 in relation to interim custody and an anti-suit injunction was adjourned due to the absence of the presiding judge. The matter was again listed on 6 January 2026, but was also adjourned with directions limited to the filing of documents, as there was insufficient time available for the hearing.
9. The next hearing in those Indian proceedings is listed on 27 January 2026, at which the Indian court is expected to consider the Respondent Mother's application for interim custody in her divorce proceeding as per the Indian Hindu Marriage Act 1956 and an anti-suit injunction. I understand that the effect of the relief sought by the Respondent would be to restrain me from prosecuting, continuing, or participating in proceedings in the courts of England and Wales in relation to the children, who are wards of this Hon'ble Court.
10. I respectfully draw this to the Court's attention, as such relief, if granted, would directly interfere with my ability to participate in and pursue these proceedings before this Honourable Court, which has already exercised its inherent jurisdiction and made substantive orders concerning the children.
11. I further inform the Court that, having regard to the pace at which the related proceedings are currently progressing before the Indian courts, I am actively engaging with my legal representatives in India to ensure that those proceedings are addressed expeditiously and responsibly. I am taking all reasonable and proportionate steps available to me within that jurisdiction to progress matters without delay, while continuing to comply fully with the directions and authority of this Honourable Court.

12. In light of the above, I respectfully seek the Court's guidance and any further directions the Court considers necessary, and any protective or procedural measures required to preserve the integrity of these proceedings, and make any further order in the best interest of the children and securing their return.

13. I remain fully willing to comply with all directions of the Court and to assist the Court in any manner required.

Statement of Truth:

I believe that the facts stated in this witness statement are true.

Signed: K. G. Karkera

[Full Name of Father]

Name: Kunal karkera

Date: 21.01.2026

Applicant's Chronology of Events

Date	Event
17 June 2009	Marriage of Applicant Father and Respondent Mother on 17 June 2009, Pune, India.
18 July 2010	Birth of first child, Dhruv Kunal Karkera, in Pune, India. Both the applicant and the respondent were in India at that time, and the applicant was an engineer on a ship.
26 April 2014	Birth of the second child, Agastya Kunal Karkera, in Bangalore, India. Both the applicant and the respondent were in India at that time, and the The applicant was an engineer on a ship.
Dec 2017	The applicant applied for an ashore job and took up employment in Tokyo, Japan
April 2018	The respondent and the children joined the applicant in Tokyo, Japan
Oct 2019	The applicant and the family moved to the UK and commenced
04 Nov 2019	The applicant and the respondent permanently moved to the UK and started living in Gateshead. –Newcastle Upon Tyne.
May 2021	The applicant and family moved to Jesmond locality in Newcastle Upon Tyne.
December 2021	The Applicant and the Respondent bought a house in Newcastle in December 2021
30 June 2023	The family moved to Sutton, which is their current residence.
Oct 2024	ILR(Indefinite leave to remain) Settlement status given to applicant ,
06 March 2025	The Respondent emailed Harris Academy to express the Applicant's and Respondent's interest in the Sutton school. The school immediately replied, providing the appeal form.
09 March 2025	The Respondent sends emails to Harris Academy with a filled-out form that interest in the school.
11 March 2025	Again, the Responds sends fraudulent mails to Overton Grange and Woodfield School that the father has secured a job in India and has received a transfer certificate.
12 March 2025	The Respondent wrongfully removed the children to India

15 March 2025	The applicant contacted RAFC and discovered that Dhruv had informed RAFC on March 6th that he would no longer be attending. This was reportedly because the respondent had asked him to do so, as his father had secured a job in India.
23 March 2025	Applicant travelled to Pune-India to meet his children and the respondent; however, he was denied to meet the children by the mother-in-law and the respondent.

24 March 2025	The respondent withdrew approximately £76,000 from the joint account and liquidated numerous fixed deposits, incurring significant losses. This money was transferred to her sole account in Pune, India, and she subsequently changed the joint account's password.
26 March 2025	The Applicant and the Respondent met in a cafe in Pune, India, where the Respondent stated her desire for a divorce. The children were not present at the meeting. The Applicant found it distressing to return to the UK without having seen the children.
05 April 2025	The applicant contacted the metropolitan police to complain about the children's wrongful removal.
12 April 2025	The Respondents and their children were granted Indefinite Leave to Remain (ILR) Settlement status by the UKVI. The respondent subsequently applied for an ILR–E-VISA and updated her personal particulars. Full details are available in the SAR report.
19 April 2025	Respondent filed for Divorce in the family court in Pune after obtaining her ILR settlement status in the UK.
26 April 2025	The applicant, who had arranged for a cake to be sent to his son in Pune, India, was restricted by the respondent to an

	unreasonable speaking time on the child's birthday. The respondent then harassed the applicant by limiting his call with his son to only 10-12 minutes.
26 March 2025	The Respondent's harassment of the Applicant included denying adequate time for the Applicant to speak with their younger son on his birthday.
12-13 May 2025	The applicant travelled from London to Pune for a meeting with the children, which was restricted by the respondent. The respondent conditioned the meeting, prohibiting discussion of past events and excluding the children's grandparents, leading to the older son weeping during the brief 1.5-hour visit.
24 June 2025	The applicant's email request for an in-person meeting with the children was completely ignored. Despite sending reminders, the respondent eventually replied, stating that the applicant could only meet the children with court indulgence. The respondent then harassed the applicant again.
27 June 2025	The Respondent sent divorce documents to the applicant, filed in India.
05 July 2025	The father of the applicant travelled from Bangalore to Pune to attend a court hearing.
06 July 2025	The Metropolitan Police launched an investigation, during which they contacted the school, RAFC, and music centre. Following a thorough investigation, a report has now been released.

31st July 2025	Respondent sought maintenance in Pune family court and has declared herself a housewife/ Non working despite having a good educational qualification of BA in psychology and an MBA in Human Resources, and seeks huge alimony and interim maintenance and further maintenance.
07 August 2025	The applicant travelled from the UK to India for the court-directed family mediation process, after which they returned to London.
18 August 2025	Received SAR report from UK immigration, detailing all respondents' actions in Agastya's ILR Settlement .
12-19 August 2025	The mediation body, Re-unite, made relentless attempts to contact the respondent to begin mediation. However, the respondent unequivocally refused and instructed them to cease all future contact.
23 September 2025	Legal proceedings commenced in the UK with an application for wardship and a return order. The case, seeking the wardship and return of the children, was assigned case number FD 25P00529.
01 October 2025	The matter was unexpectedly heard in the Indian courts without sufficient notice, intimation, or opportunity for the Applicant to be heard. Neither the Applicant, their Advocate, nor the Power of Attorney holder were present. Taking advantage of this, the respondent sought an <i>Ex-parte</i> order to retain the children.
04 October 2025	The applicant traveled to India a second time, as instructed by the court, to attend the mediation process in person.

7 August 2025	Mediation sessions regarding the divorce proceedings took place. However, the respondent maintained her position, insisting on the divorce, sole custody of the children and an exorbitant alimony payment.
4 October-2025	Mediation sessions regarding the divorce proceedings took place. However, the respondent maintained her position, insisting on the divorce, sole custody of the children and an exorbitant alimony payment
14 October 2025	Respondent was served with the applicant's witness statement.
21 October 2025	High Court Family Division makes a wardship order
24 October 2025	C-67- form filed in the UK courts
27 October 2025	The respondent was sent a reminder to ensure their attendance at the hearing scheduled for October 29, 2025. Despite reading the communication, the respondent failed to comply.
27 October 2025	On October 21, 2025, the UK courts made both children wards of the court. A return order was subsequently passed on October 29, 2025. Following this, the sealed order, along with the C67 form, was sent to the respondent.
29 October 2025	High Court makes a Summary Return Order. Respondent failed to appear.
1 November 2025	The UK courts had made both children wards of the court on 21 October 2025 , and a return order was subsequently passed on 29 October 2025 .

	The applicant then received an email from the respondent's lawyer on 31 October 2025 , which included an ad-Interim injunction ORDER and restrained the applicant from prosecuting, litigating, or proceeding in the UK.
14 November 2025	SEALED order dated 29 Oct Served to the respondent
19 November 2025	Supporting documents and evidence were served to the respondent
19 November 2025	The applicant's lawyers lodged objections to the ex parte order issued on 31 st October 2025 , which prevents the applicant from taking further action in the UK.
22 November 2025	The respondent failed to comply with the order dated 29.10.2025 in respect of filing the return travel documents of children.
24 November /2025	Applicant provided a formal warning for disobedience of Court orders
27 November 2025	The hearing was listed to consider implementation and practical arrangement, which was adjourned in Royal court of Justice UK
28 November 2025	ORDER served to the respondent dated 27 November 2025, the respondent did not attend in person or in the video link provided to her.
03 December 2025	The applicant served the BUNDLE to the respondent and to the High court of justice, the High Court of Justice, England and Wales reiterated that children wards of the court and has RESPECTFULLY and HUMBLY requested in the jurisdiction of Republic of India that urgent consideration to issue the children's return to the jurisdiction of England and Wales and arrangements for their return
11 December 2025	The ORDER was served to the respondent.

08 December 2025	The matter regarding Interim child custody and Anti suit injunctions was adjourned in Family Court, Pune, India as the judge was absent
06 January 2026	The matter regarding interim child custody and Anti suit injunctions was adjourned in Family Court, Pune, India there was not sufficient time available for hearing
22nd January 2026	The hearing regarding implementation of the ORDER will take place in UK
27 January 2026	The matter regarding Interim child custody and Anti suit injunctions was adjourned in Family Court, Pune, will take place

**ORDER AMENDED UNDER THE SLIP RULE PURSUANT TO THE
DIRECTION OF MR JUSTICE HARRISON DATED 8TH DECEMBER
2025**



**In the High Court of Justice
Family Division
sitting at the Royal Courts of Justice**

Case No: FD25P00529

THE SENIOR COURTS ACT 1981

**The children: Dhruv Kunkal KARKERA (a boy born on 18/07/2010)
Agastya Kunai KARKERA (a boy born on 26/04/2014)**

After hearing the applicant father in person

**ORDER MADE BY THE HONOURABLE MR JUSTICE HARRISON ON 3RD
DECEMBER 2025**

The parties

1. The applicant is Kunal **KARTERA KARKERA** ('the father') who attended court in person.

The respondent is **Sirisha KARKERA** who did not attend in person or by the video link which had been sent to her by email by the court.

Recitals

2. The father sought directions for the implementation of the return order made on 29 October 2025.
3. Upon a review of the papers, the court determined that the Court was not fully appraised of the ongoing proceedings in the Republic of India when it made its order for the return of the children to the jurisdiction of England and Wales on 29 October 2025.
4. The court further determined that, on the basis of the evidence submitted by the father which has not been challenged by the mother:
 - (a) The parties and the children are Indian nationals.
 - (b) The parties married in India on 17 June 2009.
 - (c) On 4 November 2019 the family relocated permanently to the jurisdiction of England and Wales. They lived here thereafter.
 - (d) The children attended schools in England.
 - (e) Both parties had parental responsibility for the children.
 - (f) On 12 March 2025 the mother removed the children from England to India without the knowledge or consent of the father.

Order

- (g) Prior to removing the children, the mother deliberately lied to the children's schools informing them that they would be leaving the schools as the father had secured a job in India.
 - (h) The removal of the children was in breach of the father's parental responsibility and 'wrongful' under the 1980 Hague Convention on the Civil Aspects of International Child Abduction and the 1996 Hague Parental Responsibility Convention.
 - (i) Since removing the children to India, the mother has restricted the children's ability to have contact with the father.
 - (j) On 12 April 2025 the ~~parties~~ mother and the children were granted Indefinite Leave to Remain in the United Kingdom (Indefinite Leave to Remain having already been granted to the father 25 October 2024).
 - (k) On 19 April 2025 the mother made an application for divorce in the Family Court in Pune. These proceedings are ongoing.
 - (l) On 23 September 2025 the father made an application to the High Court of England and Wales for the children to be made Wards of Court and for their return to the jurisdiction of England and Wales.
 - (m) On 1 October 2025 the mother made a without notice application to the Indian Court. The court made a custody order in her favour and an order for her to provide the children with remote access to the father.
 - (n) The parties have attended mediation in India but have not come to an agreement.
 - (o) On 21 October 2025 the High Court of England and Wales made the children Wards of this court. The mother failed to attend the hearing in breach of an order made on 23 September 2025.
 - (p) On 29 October 2025 the High Court of England and Wales made an order for the children to be returned to the jurisdiction of England and Wales. The proceedings were listed on 27 November 2025 to consider the implementation of the order and the practical arrangements for the children's return. The mother failed to attend the hearing.
 - (q) On 31 October 2025 the Indian Court made an order restraining the father from pursuing proceedings in the United Kingdom.
 - (r) On 27 November 2025 the proceedings were adjourned to 3 December 2025. The mother failed to attend the hearing.
 - (s) The proceedings in India are listed for a further hearing on 8 December 2025.
5. The Court was satisfied on the basis of the evidence filed by the father that the children were habitually resident in England and Wales when these proceedings were initiated on 23 September 2025 and that the Courts of England and Wales have jurisdiction in respect of matter of parental responsibility.
6. The Court reviewed the father's position statement dated 27 November 2025 and was satisfied that that his proposals to facilitate the return of the children were appropriate. Amongst other things, he proposes to fund their return, to fund the reasonable costs of the mother and the children staying temporary accommodation pending longer term arrangements being made, to re-enrol the children in their previous schools (or such other schools as may be recommended by the education authorities) and to re-register the children with their general practitioner.

Order

7. Notwithstanding the above, the Court concluded that it was appropriate that the final decisions as to the return of the children to England and Wales and the arrangements for the return should be made by the Honourable Court in the Republic of India. In particular, the Court noted that the Indian Court will have the following advantages over the Courts in England and Wales:
 - (a) It will be in a position to enforce any orders it may make;
 - (b) It will be able, more easily than the English Court, to canvass the views of the children, which can be taken into account as part of the decision-making process.
8. This Court therefore RESPECTFULLY AND HUMBLY REQUESTS the Honourable Court in the jurisdiction of the Republic of India to give urgent ~~to~~ consideration to the issue of the children's return to the jurisdiction of England and Wales and to the arrangements for any return.
9. It is further recorded that this Court will be in a position to make mirror orders and/or any protective orders deemed appropriate by the Indian Court or alternatively to receive such undertakings as may be required by the Indian Court to assist in implementing any arrangements for the children's return.

IT IS ORDERED THAT:

10. The order for the return of the children to England and Wales made on 29 October 2025 shall be stayed pending further consideration of the matter by the Indian Court.
11. The proceedings shall be listed for a further hearing before **Mr Justice HARRISON at 2pm on 22 January 2026, time estimate 1 hour, (subject to confirmation with the Clerk of the Rules)**, to consider what further orders should be made in the light of the progress of the proceedings in India and any determinations and orders made by the Indian Court.
12. Both parties must attend the hearing referred to in paragraph 11 above. Permission to the mother to attend remotely.
13. The father must send a PDF bundle to the clerk to Mr Justice Harrison (by email to Lukman.ali@justice.gov.uk) by no later than 11 am on 21 January 2026. The bundle must be formatted in the same way as the bundle for this hearing. Both parties must also send the court, via the same email address, position statements setting out the orders they seek at the hearing and explaining the reasons for those orders. The position statements shall be limited to 6 sides of A4 in length and prepared using 12-point font and 1.5 line spacing.

Order

14. Permission to the father to serve on the mother by email a copy of this order and any other documents in these proceedings.
15. For the avoidance of doubt, the children shall continue to be Wards of Court until further order.

**ORDER AMENDED UNDER THE SLIP RULE PURSUANT TO THE
DIRECTION OF MR JUSTICE HARRISON DATED 8TH DECEMBER
2025**

Dated 3 December 2025



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**IN THE HIGH COURT OF JUSTICE
FAMILY DIVISION**

THE SENIOR COURTS ACT 1981

THE CHILDREN

DHRUV KUNKAL KARKERA (A BOY BORN ON 18 JULY 2010)

AGASTYA KUNAI KARKERA (A BOY BORN ON 26 APRIL 2014)

After hearing the applicant father in person

**ORDER MADE BY THE HONOURABLE MR JUSTICE HARRISON ON 27th
NOVEMBER 2025**

The parties

1. The applicant is **KUNAL KARTERA** who attended court in person.
2. The respondent is **SIRISHA KARKERA** who did not attend in person or by the video linked which had been sent to her by email by the court.

Recitals

2. The father sought directions for the implementation of a return order made on 29 October 2025.
3. The matter was listed in the urgent applications court and could not be heard until 4.15pm.
4. No court bundle had been filed and the court, without the relevant documents, was not in a position to deal with the case.

IT IS ORDERED THAT: -

5. The application is adjourned to a further hearing on **Wednesday 3 December 2025** at 10.30 am before Mr Justice Harrison (time estimate 1 hour).
6. Both parties must attend this hearing. The respondent mother has permission to attend remotely by video link.
7. The applicant father must send a copy of this order to the respondent mother by email no later 4pm on 28 November 2025.

Please address all communications for The Family Division of the High Court, 1st Mezzanine, Queen's Building, Royal Courts of Justice, Strand, London, WC2A 2LL quoting the number in the top right hand corner of this form. The Court Office is open between 10.00 a.m. and 4.30 p.m. on Mondays to Fridays.

8. By no later than 11am on 2 December 2025 the applicant father must send to the court (including by email to Mr Lukman Ali, clerk to Mr Justice Harrison; lukman.ali@justice.gov.uk) and to the respondent mother a court bundle. The court bundle must be a single PDF file containing the following documents arranged into sections for each category of document:
- (a) All applications and orders concerning the children in this jurisdiction in chronological order.
 - (b) All statements filed by either party in this jurisdiction in chronological order.
 - (c) All documents filed in any proceedings in India between the parties.
 - (d) Any documents relied upon by the father to demonstrate that the proceedings have been served on the mother.
9. By no later than 11am on 2 December 2025 both parties must send by email to Mr Lukman Ali and to each other position statements formatted in 1.5 line spacing and 12 point font and limited to 6 A4 pages in length. These must explain the background to the case, set out any orders which the court is invited to make, and give reasons in support of the orders which are sought.

Dated 27 November 2025



mbv

Please address all communications for The Family Division of the High Court, 1st Mezzanine, Queen's Building, Royal Courts of Justice, Strand, London, WC2A 2LL quoting the number in the top right hand corner of this form. The Court Office is open between 10.00 a.m. and 4.30 p.m. on Mondays to Fridays.

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CASE NO: FD25P00529

**IN THE HIGH COURT OF JUSTICE
FAMILY DIVISION**

THE SENIOR COURTS ACT 1981

IN THE MATTER OF THE INHERENT JURISDICTION OF THE HIGH COURT

THE CHILDREN:

DHRUV KUNKAL KARKERA A BOY BORN ON 18 JULY 2010

AGASTYA KUNAI KARKERA A BOY BORN ON 26 APRIL 2014

AFTER hearing the father Kunal Karkera in person

AND AFTER consideration of the documents in the case and those filed by the Applicant father

**ORDER MADE BY JULIA CHEETHAM KC SITTING AS A DEPUTY JUDGE OF THE
HIGH COURT ON 29 OCTOBER 2025 SITTING IN PRIVATE.**

IMPORTANT WARNING TO SIRISHA KARKERA

If you SIRISHA KARKERA disobey this order you may be held to be in contempt of court and may be imprisoned, fined or have your assets seized.

If any other person who knows of this order and does anything which helps or permits you SIRISHA KARKERA to breach the terms of this order they may be held to be in contempt of court and may be imprisoned, fined or have their assets seized.

THE PARTIES

1. The applicant is **KUNAL KARKERA** who attended court today
2. The respondent is **SIRISHA KARKERA** who did not attend court today in person or by video link.

RECITALS

3. The Judge read the additional documents provided by the father and noted that:
 - The father provided documentary evidence that he had served the mother with the previous order of the court on 27 October 2025 at 5:20 p.m. and that the mother had opened the e-mail 5:42 on 27 October and at 12:14 pm and at on 28 October 2025.

Please address all communications for the Court to The Family Division of the High Court, 1st Mezzanine, Queen's Building, Royal Courts of Justice, Strand, London WC2A 2LL quoting the case number in the top right hand corner of this form. The Court Office is open between 10.00 a.m. and 4.30 p.m. on Mondays to Fridays.

- The court noted that the mother did not attend the hearing despite having been ordered to do so by Ms Kate GRANGE KC sitting as a Deputy Judge of the High Court. It is further noted that the mother did not attend the hearing before Ms Kate GRANGE KC on 21 October 2025 despite having been ordered to do so by Mr Justice Williams on 23 September 2023.
 - The court noted that the mother has provided no assistance to the High Court of England and Wales in relation to the Wardship of the children and has failed to provide any information as to the welfare of the children by way of a witness statement.
 - The court noted that the father states that an attempt at mediation has been ineffective.
4. The court was satisfied on a provisional basis on the basis of the evidence presently filed that:
- a. The children were on 12 March 2025 and remained on 23 September 2025 habitually resident in the jurisdiction of England and Wales;
 - b. The children were wrongfully removed by the mother from England on 12 March 2025; and
 - c. The courts of England and Wales have jurisdiction in matters of parental responsibility.
5. The court was satisfied that, whilst ordinarily it was appropriate for the FCDO to have been contacted in advance of this hearing, on the evidence currently before it, it was appropriate for the applicant not to have done so.
6. For the benefit of any overseas authority, the court noted the following:
- The children are wards of this Honourable Court and are domiciled in the United Kingdom; and currently they are believed to be travelling outside England and Wales.
 - In consequence of the fact that this Court has ordered that the children remain a Ward of this Court, the High Court of England and Wales until they attain the age of 18 years. Whilst they remain a ward this Court is empowered and required to exercise its custodial jurisdiction over them and to ascertain their best interests and to facilitate and protect those best interests.

- The High Court of England and Wales is anxious to protect and secure their wellbeing and best interests and to ensure that they may freely express their wishes concerning their country and place of residence.
7. The father has indicated to the court that he will fund the associated costs of the return of the mother and the children.

IT IS ORDERED THAT:

8. **THE CHILDREN:**

DHRUV KUNKAL KARKERA A BOY BORN ON 18 JULY 2010
AGASTYA KUNAI KARKERA A BOY BORN ON 26 APRIL 2014

shall be summarily returned to England and Wales forthwith and by no later than 8 December 2025 by **SIRISHA KARKERA**.

9. **SIRISHA KARKERA** shall provide copies of the flight tickets purchased for herself and children for the purpose of effecting the return of the children, in accordance with paragraph 5 of this order to the father and the court by 21 November 2025.
10. There shall be permission to the parties to disclose this order and the papers filed in these proceedings to any lawyers that they may instruct in India in respect of any current or future proceedings in relation to the parties and/or children.
11. There shall be liberty to the mother **SIRISHA KARKERA** to apply to set aside this order upon notice of 2 days. Any application to set aside this order must be supported by:
- A witness statement in response to the witness statement of the Applicant father dated 14 October 2025 and setting out the current situation of the children, their welfare and the details of any ongoing proceedings in India in relation to them.
12. There shall be permission to the father to disclose a copy of this order to:
- The FCDO.
 - Any court in India dealing with any matter relating to the children.
 - Any accredited mediator engaged by the parties either in India or in this jurisdiction.
13. This matter shall be listed before a High Court or Deputy High Court Judge for consideration of the implementation of the order and practical arrangements upon the

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return of the children to this jurisdiction on Monday 24 November 2025.

14. There shall be permission to the mother to attend any future hearing by video link (CVP) and a link will be sent to her before any hearing.
15. There shall be permission to the father to serve this order and the supporting documentation provided to the court by e-mail upon the mother and her lawyers in India and to file a short statement of service explaining how service has been effected.

DATED: 29 OCTOBER 2025



Application under the Child Abduction and Custody Act 1985

In the High Court of Justice Family Division Principal Registry/District Registry

To be completed by the court

Name of court

Date issued

Case number

Help with Fees – Ref no.
(if applicable)

H W F - [] [] [] - [] [] []

Before completing this application please read the booklet '**CB1 – Making an application – Children and the Family Courts**'. You can get a copy of all the forms and leaflets from your local court or they can be found at hmctsformfinder.justice.gov.uk

Cafcass/CAFCASS CYMRU will carry out checks as it considers necessary.

Cafcass - Children and Family Court Advisory and Support Service (in England); CAFCASS CYMRU - Children and Family Court Advisory and Support Service Wales.

1. Summary of application

Your name (the applicant)

The respondent's name(s)

Please list the name(s) of the child(ren) and the type(s) of order you are applying for, starting with the oldest.

Full name of child	Date of birth	Gender	Order(s) applied for
	[D][D]/[M][M]/[Y][Y][Y][Y]	☐ Male	
		☐ Female	
	[D][D]/[M][M]/[Y][Y][Y][Y]	☐ Male	
		☐ Female	
	[D][D]/[M][M]/[Y][Y][Y][Y]	☐ Male	
		☐ Female	
	[D][D]/[M][M]/[Y][Y][Y][Y]	☐ Male	
		☐ Female	

Give details of any fixed hearing date or period?

2. About you (the applicant)

Your first name

Middle name(s)

Surname

Previous surnames (if any)

Date of birth

Gender

☐

Male

☐

Female

Place of birth
(town/county/country)

Nationality(ies)

If you do not wish your address to be made known to the respondent,
leave the address details blank and complete Confidential contact details form
C8. You can get a copy of this form from any family court office or from our
website at hmctsformfinder.justice.gov.uk

Address

Postcode

Home telephone number

Mobile telephone number

Email address

Have you lived at this address for
more than 5 years?

☐

Yes

☐

No

If No, please provide details of all previous addresses you have lived at during
the last 5 years.

Do you have any other current address?

☐ Yes ☐ No

If Yes, please provide details.

Your solicitor's details

Do you have a solicitor acting for you?

☐ Yes ☐ No

If Yes, please give the following details

Your solicitor's name

Name of firm

Address

Postcode

Telephone number

Fax number

DX number

Email

Solicitor's Reference

3. The child(ren)

Child 1

Child's first name

Middle name(s)

Surname

Gender ☐ Male ☐ Female

Nationality(ies)

Child 2

Child's first name

Middle name(s)

Surname

Gender ☐ Male ☐ Female

Nationality(ies)

Child 3

Child's first name

Middle name(s)

Surname

Gender ☐ Male ☐ Female

Nationality(ies)

Child 4

Child's first name

Middle name(s)

Surname

Gender ☐ Male ☐ Female

Nationality(ies)

Parents/Guardians of the children

Name of child	Parents/Guardians

If you do not wish the child's address to be made known to the respondent, leave the address details blank and complete Confidential contact details Form C8. You can get a copy of this form from any family court office or from our website at hmctsformfinder.justice.gov.uk

Child(ren)'s address
(If known)

--

Any other information about the child's whereabouts or suspected whereabouts and details of who the child is presumed to be with. If you do not know where the child is you must state this.

--

4. About your application?

What do you want the court to do?

Do not give a full statement, please provide a summary. You may be asked to provide a full statement later.

--

5. Why are you making this application?

Please give brief details about why you are making this application including any facts you are relying on. In particular you should provide details of your 'rights of custody' in relation to each child listed in section 2 under the 1980 Hague Convention if appropriate.

Does your application include any issues under the Human Rights Act 1998?

☐

Yes

☐

No

☐

Don't know

If you are applying for a declaration under Article 15 of the 1980 Hague Convention, please give details of the proceedings in which the request for a declaration was made

If you are applying under the 1980 European Convention,
(a) give details of the decision relating to custody or rights of access which is sought to be registered or enforced or in relation to which a declaration that it not recognised is sought.
(b) give details of any measures taken by courts or authorities to ensure the protection of the child after its return to the Member State of habitual residence of which you are aware and details of any person with parental responsibility who is not included in this form.

6. Family mediation

Have you used family mediation to attempt to agree arrangements for the children?

☐ Yes ☐ No

If you would like to find out more about mediation please ask at your local court or see the website www.direct.gov.uk or www.reunite.org

If you did not use mediation please explain why.

7. Risk

Do you believe that the child(ren) named at Section 3 have experienced or are at risk of experiencing harm from any of the following by any person who has had contact with the child?

any form of domestic abuse/violence ☐ Yes ☐ No

child abduction ☐ Yes ☐ No

child abuse ☐ Yes ☐ No

drugs, alcohol or substance abuse ☐ Yes ☐ No

other safety or welfare concerns ☐ Yes ☐ No

If you answered Yes to any of the above, please complete form C1A (Supplemental information form).

If Other, please give details

8. Other court cases which concern the child(ren) listed at Section 3

Are you aware of any other court cases now, or at any time in the past, which concern any of the child(ren) at Section 3?

☐ Yes If Yes, please attach a copy of any relevant order, and give additional details below.

☐ No If No, please **go to Section 9**

Additional details

Name(s) of child(ren)

Name of the court where proceedings heard

--

Case no.

--

Full address of the court where proceedings were heard

--

Date/year (if known)

--

Name and office (if known) of Cafcass/CAFCASS CYMRU officer

--

If the above details are different for each child please provide details on additional sheets.

Type of proceedings if known - please tick all that apply

Emergency Protection Order	☐ Yes	☐ No
Supervision Order	☐ Yes	☐ No
Care Order	☐ Yes	☐ No
Child abduction	☐ Yes	☐ No
Family Law Act 1996 Part 4 (proceedings for non-molestation order or occupation order)	☐ Yes	☐ No
A contact or residence order (Section 8 Children Act 1989) made within proceedings for a divorce or dissolution of a civil partnership	☐ Yes	☐ No
A contact or residence order (Section 8 Children Act 1989) made in connection with an Adoption Order	☐ Yes	☐ No
An order relating to child maintenance (Schedule 1 Children Act 1989)	☐ Yes	☐ No
A child arrangements order (Section 8 Children Act 1989)	☐ Yes	☐ No

Please tick if additional sheets are attached.

☐

9. The respondents

Respondent 1

DD / MM / YYYY

Gender ☐ Male ☐ Female

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Postcode

Postcode

--	--	--	--

--	--	--	--

☐ Yes ☐ No ☐ Don't know

☐ Yes ☐ No

Name of child	Relationship

Respondent 2

Respondent's first name

Middle name(s)

Surname

Previous surnames (if known)

Date of birth

D

D

/

M

M

/

Y

Y

Y

Y

Gender

☐ Male

☐ Female

Place of birth
(town/county/country, if known)

Nationality(ies)

Address

Postcode

Home telephone number

Mobile telephone number

Email address

Have they lived at this address
for more than 5 years?

☐ Yes

☐ No

☐ Don't know

If No, please provide all previous addresses for the
last 5 years below, if known.

Did this person remove or retain
the child(ren)?

☐ Yes

☐ No

Relationship to the child(ren)

Name of child	Relationship

10. Statement of truth

*delete as appropriate
*[I believe] [The applicant/respondent believes] that the facts stated in this application are true.
*I am duly authorised by the applicant/respondent to sign this statement.

Print full name

Name of applicant solicitors firm

Signed

Dated

/ /

(Applicant) (Applicant's solicitor)

Position or office held
(If signing on behalf of firm or company)

Proceedings for contempt of court may be brought against a person who makes or causes to be made, a false statement in a document verified by a statement of truth.

11. Attending the court

If you require an interpreter, you must tell the court now so that one can be arranged.

Do you or any of the parties need an interpreter at court?

☐ Yes ☐ No

If Yes, please specify the language and dialect:

If attending the court, do you or any of the parties involved have a disability for which you require special assistance or special facilities?

☐ Yes ☐ No

If Yes, please say what the needs are

Please say whether the court needs to make any special arrangements for you to attend court (e.g. providing you with a separate waiting room from the respondent or other security provisions).

Court staff may get in touch with you about the requirements

12. Documents to be attached

You **must** attach **one** of the following documents to this application for each child.

- ☐ a certified copy of a full birth certificate that gives details of the child's mother and father
A full birth certificate shows surname, forenames, date of birth, sex, place of birth (where known), parent(s) name(s), their address and occupation at time of registration.
- or**
- ☐ a certified copy of the entry in the Adopted Children's Register
- or**
- ☐ a request for directions as to the proof of the child's birth

If application relates to the 1980 Hague Convention, you may also attach -

- ☐ an authenticated copy of any relevant decision or agreement
- ☐ a certificate or an affidavit emanating from Central Authority or other competent authority emanating from the State of the child's habitual residence, or from a qualified person, concerning the relevant law of that state
- ☐ any other relevant document.

If application relates to the 1980 European Convention, you must attach -

- ☐ a document authorising the central authority of the State addressed to act on behalf of the applicant or to designate another representative for that purpose
- ☐ a copy of the decision which satisfies the necessary conditions of authenticity
- ☐ in the case of a decision given in the absence of the defendant or his legal representative, a document which establishes that the defendant was duly served with the document which instituted the proceedings or an equivalent document
- ☐ identification of the decision relating to custody or rights of access which is sought to be registered or enforced or in relation to which a declaration that it is not to be recognised is sought
- ☐ if applicable, any document which establishes that, in accordance with the law of the State of origin, the decision is enforceable
- ☐ if possible, a statement indicating the whereabouts or likely whereabouts of the child in the State addressed
- ☐ proposals as to how the custody of the child should be restored.

In urgent cases, the court may allow the application to be issued without the Birth Certificate, Certified entry in the Adopted Children's Register or other proof of the child's birth.

Please confirm when copies of the Certificate/ entry in the Adopted Children's Register/ other proof of the child's birth will be made available to the court

D	D	/	M	M	/	Y	Y	Y	Y
---	---	---	---	---	---	---	---	---	---

To the respondent(s) (other than the child)

TAKE NOTICE that-

- (1) You must within 14 days of service of this application file in the above mentioned court a notice stating your address and the whereabouts of the child (or that you are unaware of the child's whereabouts if that is the case).
- (2) Unless the court directs otherwise you must serve a copy of that notice on the applicant.
- (3) If you subsequently change your address or become aware of any change in the child's whereabouts, you must, unless the court directs otherwise, file in the above-mentioned court notice of your new address or of the new whereabouts of the child, as the case may be, and serve a copy of that notice on the applicant.

Any notice required to be lodged in the above-mentioned court shall be sent to the court address or delivered to Family Division of the High Court, 1st Mezzanine, Queens Building, Royal Courts of Justice, Strand, London WC2A 2LL.



In the HIGH COURT OF JUSTICE FAMILY DIVISION

Case Number: FD25P00529

The full name(s) of the child	Boy or Girl	Date(s) of Birth
Dhruv Kenal Karkera	Not Known/Recorded	Not Known
Agastya Kunal Karkera	Not Known/Recorded	26th April 2014

The Directions hearing for this matter will be heard by this court

at HIGH COURT OF JUSTICE Family Division, 1st Mezzanine, Queen's Building, Royal Courts of Justice, Strand, London, WC2A 2LL

on 29th October 2025 at 3:30pm

With a time estimate of 1 hour

Failure to attend may result in an order being made in your absence.

Dated 22nd October 2025



Order

CASE NO: FD25P00529

**IN THE HIGH COURT OF JUSTICE
FAMILY DIVISION**

THE SENIOR COURTS ACT 1981

AND IN THE MATTER OF THE INHERENT JURISDICTION OF THE HIGH COURT

**THE CHILDREN DHRUV KUNAL KARKERA (a boy born on 18/07/2010)
 AGASTYA KUNAI KARKERA (a boy born on 26/04/2014)**

AFTER hearing Kunal Karkera in person

AFTER consideration of the documents lodged by the applicant including the witness statement dated 14 October 2025

**ORDER MADE BY KATE GRANGE KC SITTING AS A DEPUTY JUDGE OF THE
HIGH COURT ON 21ST OCTOBER 2025 SITTING IN PRIVATE**

IMPORTANT WARNING TO SIRISHA KARKERA

**IF YOU SIRISHA KARKERA DISOBEY THIS ORDER YOU MAY BE HELD TO BE IN
CONTEMPT OF COURT AND MAY BE IMPRISONED, FINED OR HAVE YOUR
ASSETS SEIZED.**

**IF ANY OTHER PERSON WHO KNOWS OF THIS ORDER AND DOES ANYTHING
WHICH HELPS OR PERMITS YOU SIRISHA KARKERA TO BREACH THE TERMS
OF THIS ORDER THEY MAY BE HELD TO BE IN CONTEMPT OF COURT AND
MAY BE IMPRISONED, FINED OR HAVE THEIR ASSETS SEIZED.**

THE PARTIES

1. The applicant is **KUNAL KARKERA** who appeared in person
2. The respondent is **SIRISHA KARKERA**

RECITALS

3. The judge read the witness statement of Kunal Karkera dated 14th October 2025.
4. The judge noted that the Respondent did not attend the hearing despite having been ordered to do so by Mr Justice Williams on 23 September 2025

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D264

B24

5. The court was satisfied on a provisional basis on the basis of the evidence presently filed that:
 - a. The children were on 12 March 2025 and remained on 23 September 2025 habitually resident in the jurisdiction of England and Wales;
 - b. The children were wrongfully removed from England on 12 March 2025; and
 - c. The courts of England and Wales have jurisdiction in matters of parental responsibility over the children pursuant to Article 5 of the 1996 Hague Child Protection Convention.
6. The court was satisfied that, whilst ordinarily it was appropriate for the FCDO to have been contacted in advance of this hearing, on the evidence currently before it, it was appropriate for the applicant not to have done so.
7. For the benefit of any overseas authority, the court noted the following:
 - a. The children are wards of this Honourable Court and are domiciled in the United Kingdom; and currently they are believed to be travelling outside England and Wales.
 - b. In consequence of the fact that this Court has ordered that the children remain a Ward of this Court, the High Court of England and Wales, whilst (until they attain the age of 18 years) they remain a minor, this Court is empowered and required to exercise its custodial jurisdiction over them and to ascertain their best interests and to facilitate and protect those best interests.
 - c. The High Court of England and Wales is anxious to protect and secure their wellbeing and best interests and to ensure that they may freely express their wishes concerning their country and place of residence.

MEDIATION

8. At this hearing listed below the applicant and the respondent shall each be given an opportunity (that day or on another day to be fixed) to make contact (whether in person, by telephone or otherwise) with the court based mediator so that the parties could consider engaging in mediation under the Child Abduction Mediation Scheme or through another non-court dispute resolution procedure.

IT IS ORDERED THAT:

9. The children are and shall remain Wards of this court during their minority or until further order. For the avoidance of doubt, for the purposes of any foreign administrative or judicial authority considering this order, that means that the children are, immediately upon this order being made, protected by the High Court of Justice of England and Wales and that no important step in the children's lives can be taken without permission being granted by the High Court of Justice of England and Wales.
10. The Respondent shall by **4.00pm on Wednesday 29 October 2025** file and serve a witness statement (limited to 15 pages of A4 double spaced, size 12 font) in response to the application and in response to the witness statement of the Applicant dated 14 October 2025.
11. There shall be a further hearing on **Wednesday 29th October at 3:30pm before Ms Cheetham KC at the Royal Courts of Justice with a time estimate of 1 hour (subject to**

confirmation with the Clerk of the Rules) at which time the court will consider whether to make an order that the respondent shall return the children forthwith to England and Wales. The Respondent is permitted to attend that hearing via video link (CVP) - and a link will be sent to her in advance of the hearing.

12. Permission is granted to the applicant to disclose a copy of this Order to the FCDO.
13. The applicant and the respondent shall attend at the hearing listed pursuant to paragraph 10 above, together with solicitors and counsel if so instructed.
14. There shall be permission to Kunal Karkera to serve this order and the proceedings on Sirisha Karkera by email and by post to their last known address.
15. Costs be reserved.

DATED ON 21ST OCTOBER 2025



fc

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D264

B26

and interim order be passed in terms of prayer clause a-c above.

e) Any other just and equitable order may kindly be passed in the interest of justice.

PUNE

DATED: 19/04/2025

Bukva
PETITIONER

[Signature]
ADV ABHIJIT SARWATE

order

to petitioner & her adv. present-
Respondent's counsel called
absent. This application is requested
to be decided on merit after
hearing both sides however, consid-
-ering the circumstances on record
& at present custody of children
are with mother till the decision
of this application on merit
physical custody of children be
retained with petitioner. petitioner
is directed to give virtual access
of children to respondent if asked

[Signature]
Photocopy Compared by



TRUE COPY

[Signature]
Substantent



Order

CASE NO: FD25P00529

**IN THE HIGH COURT OF JUSTICE
FAMILY DIVISION**

IN THE MATTER OF THE INHERENT JURISDICTION OF THE HIGH COURT

**ORDER MADE BY MR JUSTICE WILLIAMS SITTING IN PRIVATE ON 23RD
SEPTEMBER 2025**

UPON hearing from the Applicant Father in person.

AND UPON the Applicant informing the court that there are proceedings in India commenced by the respondent mother which are listed for hearing on 29th September 2025 and a mediation session to take place on 4th October.

IT IS ORDERED THAT

1. The application for the summary return of the children is listed for directions or summary return on 21st October 2025 with a time estimate of ½ hour. Both parties must attend the hearing in person.
2. The applicant shall file with the court and serve on the Respondent mother a statement in support of his application for the summary return of the children from India to England by 14th October 2025.
3. Permission to serve the respondent by email at sirisha9@hotmail.com

DATED ON 23RD SEPTEMBER 2025



fc

Please address all communications for The Family Division of the High Court, 1st Mezzanine, Queen's Building, Royal Courts of Justice, Strand, London WC2A 2LL quoting the number in the top right hand corner of this form. The Court Office is open between 10.00 a.m. and 4.30 p.m. on Mondays to Fridays.

D264

B28

C66

Application for inherent jurisdiction order in relation to children

In the High Court of Justice Family Division
Principal Registry/District Registry.

To be completed by the court

Name of court

Date issued

Case number

Help with Fees – Ref no.
(if applicable)

HWF- - -

Before completing this application please read the booklet ‘**CB1 – Making an application – Children and the Family Courts**’. You can get a copy of all the forms and leaflets from your local court or they can be found at hmctsformfinder.justice.gov.uk

Cafcass/CAFCASS CYMRU will carry out checks as it considers necessary.

Cafcass - Children and Family Court Advisory and Support Service (in England); CAFCASS CYMRU - Children and Family Court Advisory and Support Service Wales.

Summary of application

Your name (the applicant(s))

Kunal karkera

The respondent's name(s)

Sirisha karkera

Please list the name(s) of the child(ren) and the type(s) of order you are applying for, starting with the oldest.

Name of child(ren)	Gender	Date of birth	Order(s) applied for.
Agastya Kunal karkera		26/04/2014	
Dhruv kunal Karkera		18/07/2010	
		DD/MM/YYYY	
		DD/MM/YYYY	

Give details of any fixed hearing date or period?

1. About you (the applicant)

Your first name

Kunal

Middle name(s)

Surname

Karkera

Previous surnames (if any)

Date of birth

DDMMYY

Gender

☐ Male

☐ Female

Place of birth
(town/county/country)

If you do not wish your address to be made known to the respondent, leave the address details blank and complete Confidential Address Form C8. You can get a copy of this form from any family court office or from our website at hmctsformfinder.justice.gov.uk

Address

lat 103,
16, Sutton Plaza,
16 sutton court road
Postcode S M 1 4 F X

Home telephone number

0777813908

Mobile telephone number

07778139088

Have you lived at this address
for more than 5 years?

☐ Yes ☐ No

If No, please provide details of all previous addresses you have lived at for the last 5 years.

21 Wyncote Court,
Jesmond Park East
Newcastle upon Tyne,
NE7 7BG---From 21 May/2021 till 30 June 2023

111 Baltic Quay
Mill road
Gatestead
NE8 3QY from Nov-2019 May 2021

My wifes email id is :

sirisha9@hotmail.com
myrddraal79@gmail.com

Phone number: +918951175829//+91 9175599300

Your solicitor's details _____

Do you have a solicitor acting for you? ☐ Yes ☐ No

If Yes, please give the following details

Your solicitor's name	Mr Gubbi Subba Rao
Name of firm	Gubbi house of justice
Address	Dr Gubbi s house of Justice, 4th Floor . Golden Jubilee building, FKCCI KG Road Bengaluru Karnataka-560009 Postcode 5 6 0 0 9
Telephone number	
Fax number	
DX number	
Solicitor's Reference	
Fee account no.	

2. The child(ren)

Please give details of the child(ren) and the order(s) you are applying for.
If there are more than 4 children please continue on a separate sheet.

Child 1

Child's first name

DHRUV

Middle name(s)

KUNAL

Surname

KARKERA

Gender

☐

Male

☐

Female

Child 2

Child's first name

AGASTYA

Middle name(s)

KUNAL

Surname

KARKERRA

Gender

☐

Male

☐

Female

Child 3

Child's first name

Middle name(s)

Surname

Gender

☐

Male

☐

Female

Child 4

Child's first name

Middle name(s)

Surname

Gender

☐

Male

☐

Female

Relationship to the child(ren)

Name of child	Relationship
DHRUV KUNAL KARKERA	FATHER
AGASTYA KUNAL KARKERA	FATHER

If you do not wish the child’s address to be made known to the respondent, leave the address details blank and complete Confidential contact details form C8. You can get a copy of this form from any family court office or from our website at hmctsformfinder.justice.gov.uk

Child(ren)’s
address (If known)

Any other information about the
child’s whereabouts. If you do
not know where the child is you
must state this.

Do you have any reason to
believe that any child, parent or
potentially significant adult in
the child’s life may be habitually
resident in another state?

☐ Yes

☐ No

If Yes, please give details

The children may be taken outside Pune to Mumbai, to Bhopal, Delhi, USA where my wives aunt is residing.

Their safety is paramount importance to us.

3. About your application

What do you want the court to do?

Do not give a full statement, please provide a summary. You may be asked to provide a full statement later.

I want the court to send a directive to the Indian embassy in the UK and India that the children be repatriated to UK soonest

2. Due to reckless nature of the mother the children have been brought 2 grades down in school India. They would have been studying in grade 11 and grade 7 respectively from sept 2025 and have now been brought down to Grade 9 and grade 5 respectively. they losing precious academic years.

3. Return the £76,000 she has taken from the joint account to her sole account without husbands knowledge and changed passwords, even the applicant can't access his own account.

4. My wife has applied for ILR and knows the status of the same, however in the petition to Indian court she has lied that she does not know status, children should be send back to UK as they have spent 7 years outside india (Tokyo and UK) .

4. Why are you making this application?

Please give brief details about why you are making this application including any facts you are relying on.

A parental abduction case has been filed with the metropolitan police,

2.CRIME REFERENCE NUMBER: 01/7347320/25 (Poice investigation completed)

3.. TAKEN £76,000 POUNDS OUT OF JOINT ACCOUNT and transferred to sole account.Changed password. The applicant cant access his own account.

4. Wrong information given to school and third parties and taken the children out of the country.

5. Wrong inofrmation given on ILR status(Report from home office secured). reurn the £9000 pounds made towards ILR

6. Not allowed to talk or see the children past five months, brain washed children against the father.

7. Given just 5-10 minutes to wish during younger sons birthday and not allowed to wish children on first day of school and varoius other atrocities.

8. INTERPOL be contacted to know the movements of the children(Minors)

Does your application include any issues under the Human Rights Act 1998?

☐ Yes

☐ No

☐ Don't know

5. Family mediation

Have you used family mediation to attempt to agree arrangements for your children?

☐ Yes ☐ No

You can find your nearest family mediation service by visiting the government's website DirectGov (www.direct.gov.uk) and search using the words 'family mediation'. You will find a database of accredited family mediation services on the website

If you did not use mediation please explain why.

I tried mediation through Re-UNITE however my wife is not willing to speak to me and want all through the court

She has prevented me from speaking to the children, right from 12 March 2025, I have only spoken / seen the children only once.

Not allowed to interact with the schools

6. Risk

Do you believe that the child(ren) named at Section 2 have suffered or are at risk of suffering any harm from any of the following:

- any form of domestic abuse
- violence within the household
- child abduction
- other conduct or behaviour

by any person who has had contact with the child?

☐ Yes ☐ No

If Yes, please complete form C1A (Supplemental information form). If Other, please give details

The children need to be removed from my mother in laws place in India home immediately where my children is currently residing. They will suffer from emotional harm at the hands of my mother in law.

7. Other court cases which concern the child(ren) listed at Section 2

Are you aware of any other court cases now, or at any time in the past, which concern any of the child(ren) at Section 2?

- ☐ Yes If Yes, please **attach a copy of any relevant order** and give additional details below
- ☐ No If No, please **go to Section 8**

Additional details

Name of child(ren)

Dhruv Kunal Karkera and Agastya Kunal Karkera

Name of the court where proceedings heard

Case no.

Date/year (if known)

Name of Cafcass/CAFCASS CYMRU officer

If the above details are different for each child please provide details on additional sheets.

Type of proceedings if known - please tick all that apply

- | | | |
|--|------------------------------|-----------------------------|
| Emergency Protection | ☐ Yes | ☐ No |
| Order Supervision Order | ☐ Yes | ☐ No |
| Care Order | ☐ Yes | ☐ No |
| Child abduction | ☐ Yes | ☐ No |
| Family Law Act 1996 Part 4 (proceedings for non-molestation order or occupation order) | ☐ Yes | ☐ No |
| A contact or residence order (Section 8 Children Act 1989) made within proceedings for a divorce or dissolution of a civil partnership | ☐ Yes | ☐ No |
| A contact or residence order (Section 8 Children Act 1989) made in connection with an Adoption Order | ☐ Yes | ☐ No |
| An order relating to child maintenance (Schedule 1 Children Act 1989) | ☐ Yes | ☐ No |
| A child arrangements order (Section 8 Children Act 1989) | ☐ Yes | ☐ No |

Please tick if additional sheets are attached.

☐

8. The respondents

If there are more than 2 respondents please continue on a separate sheet.

Respondent 1

Respondent's first name

Sirisha

Middle name(s)

Kunal

Surname

Karkera

Previous surnames (if known)

Date of birth

09/02/1979

Gender

☐

Male

☐

Female

Place of birth
(town/county/country, if known)

Vasco da Gama--Goa-India

Address

401, Dunnock Nyati Enclave
Mohammedwadi, Pune -411060

Postcode

4110

060

Have they lived at this address
for more than 5 years?

☐

Yes

☐

No

☐

Don't know

If No, please provide all previous addresses for
the last 5 years below, if known.

Flat no-103,

16, Sutton Plaza,

16 sutton court road

SM14FX

+++++

1 Wyncote Court,

Jesmond Park East

Newcastle upon Tyne,

NE7 7BG---From 21 May/2021 till 30 June 2023

111 Baltic Quay

Mill road

Gatestead

NE8 3QY from Nov-2019 05/2021

Relationship to the child(ren)

Name of child	Relationship
Dhruv Kunal Karkera	Mother
Agastya Kunal Karkera	Mother

Respondent 2

Respondent's first name

Middle name(s)

Surname

Previous surnames (if known)

Date of birth

D

D

/

M

M

/

Y

Y

Y

Y

Gender ☐ Male ☐ Female

Place of birth
(town/county/country, if known)

Address

Postcode

Have they lived at this address
for more than 5 years?

☐ Yes ☐ No ☐ Don't know

If No, please provide all previous addresses for
the last 5 years below, if known.

Relationship to the child(ren)

Name of child	Relationship

9. Statement of truth

(*Delete as appropriate)

*(I believe)(The applicant believes) that the facts stated in this application are true.

*I am duly authorised by the applicant to sign this statement.

Print full name

KUNAL KARKERA

Signed

KUNAL KARKERA

*(Applicant)(Legal Representative)(Applicant's solicitor)

Date

/ /

Proceedings for contempt of court may be brought against a person who makes or causes to be made a false statement in a document verified by a statement of truth.

10. Attending the court

If you require an interpreter, you must tell the court now so that one can be arranged.

Do you or any of the parties need an interpreter at court?

☐ Yes

☐ No

If Yes, please specify the language and dialect:

If attending the court, do you or any of the parties involved have a disability for which you require special assistance or special facilities?

☐ Yes

☐ No

If Yes, please say what the needs are

Please say whether the court needs to make any special arrangements for you to attend court (e.g. providing you with a separate waiting room from the respondent or other security provisions).

Court staff may get in touch with you about the requirements

11. Documents to be attached

You **must** attach **one** of the following documents to this application for each child.

- ☐ a certified copy of a full birth certificate that gives details of the child's mother and father
- or**
- ☐ a certified copy of the entry in the Adopted Children's Register
- or**
- ☐ if neither is available, I request to the court to give directions at the first hearing as to proof of the child's birth

A full birth certificate shows surname, forenames, date of birth, sex, place of birth (where known), parent(s) name(s), their address and occupation at time of registration.

In urgent cases, the court may allow the application to be issued without the Birth Certificate, Certified entry in the Adopted Children's Register or directions as to the proof of the child's birth.

Please confirm when copies of the Certificate/entry to Adopted Children's Register/directions as to proof of the child's birth will be made available to the court

MM	YYYY
----	------

To the respondent(s) (other than the child)

TAKE NOTICE that-

- (1) You must within 14 days of service of this application file in the court mentioned on the C6 Notice of proceedings a notice stating your address and the whereabouts of the child (or that you are unaware of the child's whereabouts if that is the case).
- (2) Unless the court directs otherwise you must serve a copy of that notice on the applicant.
- (3) If you subsequently change your address or become aware of any change in the child's whereabouts, you must, unless the court directs otherwise, file in the above-mentioned court notice of your new address or of the new whereabouts of the child, as the case may be, and serve a copy of that notice on the applicant.

Any notice required to be lodged in the above-mentioned court shall be sent to the court address or delivered to Family Division of the High Court, 1st Mezzanine, Queens Building, Royal Courts of Justice, Strand, London WC2A 2LL.

**IN THE HIGH COURT OF JUSTICE
FAMILY DIVISION**

CASE NO: FD25P00529

IN THE MATTER OF THE INHERENT JURISDICTION

AND IN THE MATTER OF THE SENIOR COURTS ACT 1981

AND IN THE MATTER OF THE CHILD ABDUCTION ACT 1984

AND IN THE MATTER OF THE CHILDREN ACT 1989

AND IN THE MATTER OF THE CHILDREN: DHRUV KUNAL KARKERA

(DOB:18.07.2010) AND AGASTYA KUNAL KARKERA (DOB: 26.04.2014)

BETWEEN:

Kunal Karkera

Applicant

-and-

Sirisha Karkera

Respondent

APPLICANT FATHER'S STATEMENT OF SERVICE

1. I, Kunal Karkera, of Flat 103, 16 Sutton Plaza, 16 Sutton Court Road, Sutton, London SM1 4FX, make this statement of service to update the Court on the steps I have taken to effect service of the Court's Orders and supporting documents upon the Respondent Mother, Mrs Sirisha Karkera, in compliance with the order dated 29 October 2025.
2. This statement is made from my own knowledge unless otherwise stated. It is provided to assist the Court in understanding the chronology, manner of service undertaken and proof of service.
3. On 27 October 2025, I served the Order dated 21 October 2025, together with all supporting documents referred to in that Order, upon the Respondent Mother by email at her known and regularly used email address:
sirisha9@hotmail.com
4. The service was successful, and the email did not bounce back. A copy of the email and proof of sending can be provided if required.
5. On 14 November 2025, I served the sealed Order dated 29 October 2025 upon:
 - a. The Respondent Mother by email at sirisha9@hotmail.com and
 - b. Her lawyer in India, Adv. Abhijit Sarwate at email address:
sarwate_works@hotmail.com, also by email.
6. Both emails were delivered successfully, and no delivery failure notifications were received. I act in compliance with the Court's authorisation permitting service via electronic means.

7. On 19 November 2025, I served the supporting documents relevant to the implementation of the Order dated 29 October 2025 upon the Respondent Mother by email.
8. On 26 November 2025, I served formal notice of the hearing listed for 27 November 2025 at 2:00 PM (London time) upon the Respondent Mother and her lawyer in India, via email.
9. At all stages, I have acted promptly, diligently, and transparently to ensure that the Respondent Mother and her legal representative were fully informed of the proceedings, the Orders of the Court, and all upcoming hearings.
10. I respectfully submit this statement to confirm my compliance with the Court's directions and to assist the Court in determining the next steps in the best interests of the children.

Statement of Truth:

I believe that the facts stated in this witness statement are true.

Signed: K. G. Karkera

[Full Name of Father]

Name: **Kunal karkera**

Date: 27.11.2025

List of Exhibits – Proofs of Email Service

1. Exhibit KK-S1 – Proof of Service (27.10.2025)
2. Exhibit KK-S2 – Proof of Service (14.11.2025)
3. Exhibit KK-S3 – Proof of Service (19.11.2025)
4. Exhibit KK-S4 – Proof of Service (26.11.2025)
5. Exhibit KK-S5 – Proof of Email delivery and read (14.11.2025)



Kunal Karkera <kunal.karkera@gmail.com>

**--SEALED ORDER --High Court of Justice, Family Division, case number
FD25P00529**

Kunal Karkera <kunal.karkera@gmail.com>

Mon, Oct 27, 2025 at 5:41 PM

To: Sirisha Karkera <sirisha9@hotmail.com>, Sirisha Sharma <myrddraal79@gmail.com>, "Crabbe, Francine" <Francine.Crabbe@justice.gov.uk>, RCJ Family <rcj.familyhighcourt@justice.gov.uk>, "rcj.familyorders" <rcj.familyorders@justice.gov.uk>

Dear Mrs Sirisha Kunal Karkera

I write in my capacity as the Applicant in the matter of our *Children , **Dhruv Kunal Karkera** aged 15 years and **Agastya Kunal Karkera** aged 11 years*" High Court of Justice, Family Division, case number **FD25P00529**

- Please find the **Sealed order** from the court for your reference and records..

Kindly acknowledge safe receipt of this email and the enclosed document.

Yours Sincerely,

Kunal Karkera

Applicant: Kunal Karkera (Litigant in Person)

Flat 103. 16 Sutton Plaza, 16 Sutton court road

kunal.karkera@gmail.com

+44 7778139088/ 7785392910

2 attachments

 **KARKERA FD25P00529 ORDER 21.10.25.pdf**
208K

 **Completed --C67 form.pdf**
745K

Exhibit KK-S1 – Proof of Service



Kunal Karkera <kunal.karkera@gmail.com>

**SEALED ORDER --High Court of Justice, Family Division, case number
FD25P00529**

Kunal Karkera <kunal.karkera@gmail.com>

Fri, Nov 14, 2025 at 1:59 PM

To: LAW OFFICE OF ADV ABHIJIT SARWATE <sarwate_works@hotmail.com>, Sirisha Karkera
<sirisha9@hotmail.com>, Sirisha Sharma <myrddraal79@gmail.com>, RCJ Family <rcj.familyhighcourt@justice.gov.uk>,
"rcj.familyorders" <rcj.familyorders@justice.gov.uk>

Dear Mrs Sirisha Kunal Karkera/ Advocate Mr Abhijit Sarwate.

I write in my capacity as the Applicant in the matter of my *Children, Dhruv Kunal Karkera aged 15
years and Agastya Kunal Karkera aged 11 years*" High Court of Justice, Family Division, case
number **FD25P00529**

- Please find the **Sealed order** from the court from the Royal court of Justice for your reference
and records..

Kindly acknowledge safe receipt of this email and the enclosed document.

Yours Sincerely,

Kunal Karkera

Applicant: Kunal Karkera (Litigant in Person)

Flat 103. 16 Sutton Plaza, 16 Sutton court road

kunal.karkera@gmail.com

+44 7778139088/ 7785392910



SEALED ORDER. FD25P00529. RE- KARKERA (2).pdf
235K

Exhibit KK-S2 – Proof of Service (14.11.2025)



Kunal Karkera <kunal.karkera@gmail.com>

Supporting Documentation Submitted on 29 Oct 2025 for Dhruv and Agastya – Compliance With Court Order// SEALED ORDER –High Court of Justice, Family Division, case number FD25P00529

Kunal Karkera <kunal.karkera@gmail.com>

To: Sirisha Karkera <sirisha9@hotmail.com>, Sirisha Sharma <myrddraal79@gmail.com>, RCJ Family <rcj.familyhighcourt@justice.gov.uk>, "rcj.familyorders" <rcj.familyorders@justice.g

Dear Mrs Sirisha Karkera,

I write further to the **Order of the High Court of England and Wales** dated **29 Oct 2025**, please find the supporting documentation that was submitted to the Royal Court on **October 2025**

In line with **paragraph 15 of the Court's Order**, I confirm the below attached documentation was exhibited as evidence

To proceed smoothly, please find the documentation provided for the children.

1. Documentation showing when and at what times the ORDER were read by yourself.
2. Evidences that children were very well integrated since Primary school into education system in the UK.
3. Sealed ORDER (for your reference)

This approach ensures **full transparency**, protects both parties, and complies with the express wording and intention of the Court's direction.

I would be grateful if you could kindly confirm receipt of this email so that there is compliance.

Yours sincerely,

Kunal Karkera

Applicant: Kunal Karkera (Litigant in Person)

Fiat 103. 16 Sutton Plaza, 16 Sutton court road

kunal.karkera@gmail.com

+44 7778139088/ 7785392910

One attachment • Scanned by Gmail

3 attachments

 SIX 29 October SEALED ORDER. FD25P00529. RE- KARKERA (1).pdf
235K

 Supporting documents that mails have been read by Mrs Sirisha karkera.docx
78K

 Updated-Evidences that Childrens were well integrated with school s in UK and NHS..docx
7443K

Exhibit KK-S3 – Proof of Service (19.11.2025)



Kunal Karkera <kunal.karkera@gmail.com>

Service of Notice of Hearing – High Court of England and Wales – Case No: FD25P00529

Kunal Karkera <kunal.karkera@gmail.com>

Wed, Nov 26, 2025 at 11:15 PM

To: Sirisha Karkera <sirisha9@hotmail.com>, Sirisha Sharma <myrddraal79@gmail.com>, RCJ Family <rcj.familyhighcourt@justice.gov.uk>, LAW OFFICE OF ADV ABHIJIT SARWATE <sarwate_works@hotmail.com>, "rcj.familyorders" <rcj.familyorders@justice.gov.uk>

Service of Notice of Hearing – High Court of England and Wales – Case No: FD25P00529

Dear Mrs Sirisha Karkera,

I write to you to formally **serve notice of the upcoming hearing** in the proceedings before the **High Court of Justice, Family Division**, in accordance with the Order of the Court and the Family Procedure Rules.

Please take notice that:

A hearing is listed on:

Date: Thursday, 27 November 2025

Time: 2:00 PM (London UK Time)

Venue: Royal Courts of Justice, The Strand, London WC2A 2LL

Case Number: FD25P00529

This hearing concerns the ongoing **wardship and summary return proceedings** relating to the children **Dhruv Kunal Karkera** and **Agastya Kunal Karkera**, and the Court will consider the steps required for the continued implementation of its orders.

Please also note:

- This email constitutes **formal service** of the hearing notice.
- A copy of this notice has been copied to the hon'ble Court for the Court's record.

I kindly request that you confirm **receipt of this notice** by reply email.

Should you choose not to attend, the Court may proceed **in your absence**, and any orders made will remain binding.

Yours Sincerely,

Kunal Karkera

Exhibit KK-S4 – Proof of Service (26.11.2025)

From	Kunal Karkera <kunal.karkera@gmail.com>
Subject	SEALED ORDER --High Court of Justice, Family Division, case number FD25P00529
Message ID	<c3b1d8ea-2ee7-edd0-116d-1d7b45987d9d@gmail.com>
Delivered on	14 Nov, 2025 at 1:59 PM
Delivered to	LAW OFFICE OF ADV ABHIJIT SARWATE <sarwate_works@hotmail.com>, Sirisha Karkera <sirisha9@hotmail.com>, Sirisha Sharma <myrddraal79@gmail.com>, RCJ Family <rcj.familyhighcourt@justice.gov.uk>, rcj.familyorders <rcj.familyorders@justice.gov.uk>

Tracking history

- 👁 Opened on 20 Nov, 2025 at 6:48 AM by Sirisha Karkera
- 👁 Opened on 15 Nov, 2025 at 8:13 AM by LAW OFFICE OF ADV ABHIJIT SARWATE
- 👁 Opened on 15 Nov, 2025 at 6:46 AM by LAW OFFICE OF ADV ABHIJIT SARWATE
- 👁 Opened on 15 Nov, 2025 at 2:44 AM by LAW OFFICE OF ADV ABHIJIT SARWATE
- 👁 Opened on 14 Nov, 2025 at 3:51 PM by Sirisha Karkera
- 👁 Opened on 14 Nov, 2025 at 2:01 PM by Sirisha Karkera
- 👁 Opened on 14 Nov, 2025 at 2:00 PM by Sirisha Karkera
- 👁 Opened on 14 Nov, 2025 at 2:00 PM by LAW OFFICE OF ADV ABHIJIT SARWATE
- 👁 Opened on 14 Nov, 2025 at 2:00 PM by rcj.familyorders

Exhibit KK-S5 – Proof of Email delivery and read (14.11.2025)

IN THE HIGH COURT OF JUSTICE

CASE NO: FD25P00529

FAMILY DIVISION

IN THE MATTER OF THE INHERENT JURISDICTION

AND IN THE MATTER OF THE SENIOR COURTS ACT 1981

AND IN THE MATTER OF THE CHILD ABDUCTION ACT 1984

AND IN THE MATTER OF THE CHILDREN ACT 1989

**AND IN THE MATTER OF THE CHILDREN: DHRUV KUNAL KARKERA
(DOB:18.07.2010) AND AGASTYA KUNAL KARKERA (DOB: 26.04.2014)**

BETWEEN:

Kunal Karkera

Applicant

-and-

Sirisha Karkera

Respondent

**POSITION STATEMENT OF APPLICANT FATHER FOR THE HEARING DATED
27 NOV 2025**

1. I, Kunal Karkera, of Flat 103, 16 Sutton Plaza, 16 Sutton Court Road, Sutton, London SM1 4FX, make this position statement for the hearing dated 27 November 2025. This Position Statement is filed by the Applicant Father pursuant to the Court's directions, to assist the Court in understanding the practical arrangements he proposes to ensure the children's smooth and safe

transition back to the jurisdiction, in the event that the Court directs their summary return.

2. The Applicant acknowledges the paramount importance of the children's welfare under s.1 Children Act 1989 and offers the following assurances to the Court as a demonstration of his commitment to their stability, well-being, and reintegration.
3. The Applicant Father confirms that he will fully fund the return travel costs of the children and the Respondent Mother to the jurisdiction, as previously stated to the Court.
4. Upon their arrival, the Applicant will also meet the reasonable costs of temporary accommodation for the Respondent Mother and the children, in a hotel or serviced apartment for an appropriate period, until the Respondent secures suitable long-term housing.
5. The Applicant further undertakes to provide a reasonable financial allowance for the children and the Respondent Mother towards their food, travel and day-to-day subsistence for the interim period.
6. The Applicant is committed to cooperating fully to ensure the swift reinstatement of the children into their former schools, or such alternative schools as the Local Authority or education authorities may advise.
7. The Applicant confirms that he is willing to participate in mediation or another suitable form of dispute resolution to agree longer-term child arrangements, including contact and financial arrangements for the children.
8. The Applicant will assist in promptly re-registering the children with their GP, dentist, and any relevant NHS services, to ensure continuity of medical and developmental care.

9. Should the Court or any professional recommend it, the Applicant will facilitate counselling or family therapeutic support for the children to help with their emotional adjustment following the return.
10. The Applicant undertakes to fully cooperate with any Local Authority welfare checks, safeguarding assessments, or child-focused interventions, should the Court deem them appropriate.
11. The Applicant is committed to ensuring that the children enjoy regular, meaningful and safe contact with the Respondent Mother after the return, in accordance with any directions of the Court or any agreement reached in mediation.
12. The Applicant will take steps to re-establish the children's previous routines, including extracurricular activities, clubs or sports they were attending, where this is in their best interests.
13. The Applicant Father respectfully submits these proposals to demonstrate his serious commitment to the children's welfare, stability and smooth reintegration into their habitual residence, and his willingness to support the Respondent Mother during the transitional period.
14. The Applicant seeks the Court's guidance and any further directions the Court considers necessary.

Statement of Truth:

I believe that the facts stated in this witness statement are true.

Signed: K. G. Karkera _____

[Full Name of Father]

Name: Kunal karkera

Date: 26.11.2025

1. Mrs Sirisha karkera Opened Sealed ORDER of 21st October 2025 on the below times

From	Kunal Karkera <kunal.karkera@gmail.com>
Subject	--SEALED ORDER --High Court of Justice, Family Division, case number FD25P00529
Message ID	<1e82b62d-3735-f53f-34a0-8bc0909b80b5@gmail.com>
Delivered on	27 Oct, 2025 at 5:41 PM
Delivered to	Sirisha Karkera <sirisha9@hotmail.com>, Sirisha Sharma <myrddraal79@gmail.com>, Crabbe, Francine <Francine.Crabbe@justice.gov.uk>, RCJ Family <rcj.familyhighcourt@justice.gov.uk>, rcj.familyorders <rcj.familyorders@justice.gov.uk>

Tracking history

- 👁 Opened on 28 Oct, 2025 at 12:14 AM by Sirisha Karkera
- 👁 Opened on 27 Oct, 2025 at 5:42 PM by Sirisha Karkera
- 👁 Opened on 27 Oct, 2025 at 5:42 PM by rcj.familyorders

Memo document opened by Mrs Sirisha karkera 28 Oct and 29 Oct at the below times

From	Kunal Karkera <kunal.karkera@gmail.com>
Subject	Memo document served in Indian court on 28 Sept 2025.
Message ID	<7b653517-e3ce-dc6e-63a6-424db1bce1dd@gmail.com>
Delivered on	28 Oct, 2025 at 5:20 PM
Delivered to	Sirisha Karkera <sirisha9@hotmail.com>, Sirisha Sharma <myrddraal79@gmail.com>, RCJ Family <rcj.familyhighcourt@justice.gov.uk>, rcj.familyorders <rcj.familyorders@justice.gov.uk>, Crabbe, Francine <Francine.Crabbe@justice.gov.uk>

Tracking history

- 🕒 Opened on 29 Oct, 2025 at 10:41 PM by RCJ Family
- 🕒 Opened on 29 Oct, 2025 at 2:07 PM by RCJ Family
- 🕒 Opened on 29 Oct, 2025 at 12:54 PM by RCJ Family
- 🕒 Opened on 29 Oct, 2025 at 12:52 PM by RCJ Family
- 🕒 Opened on 29 Oct, 2025 at 11:27 AM by RCJ Family
- 🕒 Opened on 29 Oct, 2025 at 10:29 AM by RCJ Family
- 🕒 Opened on 29 Oct, 2025 at 10:18 AM by RCJ Family
- 🕒 Opened on 29 Oct, 2025 at 10:16 AM by RCJ Family
- 🕒 Opened on 29 Oct, 2025 at 10:14 AM by RCJ Family
- 🕒 Opened on 29 Oct, 2025 at 10:11 AM by RCJ Family
- 🕒 Opened on 29 Oct, 2025 at 10:07 AM by RCJ Family
- 🕒 Opened on 29 Oct, 2025 at 10:01 AM by RCJ Family
- 🕒 Opened on 29 Oct, 2025 at 10:01 AM by RCJ Family
- 🕒 Opened on 29 Oct, 2025 at 9:42 AM by RCJ Family
- 🕒 Opened on 29 Oct, 2025 at 9:42 AM by RCJ Family
- 🕒 Opened on 29 Oct, 2025 at 9:41 AM by RCJ Family
- 🕒 Opened on 29 Oct, 2025 at 9:41 AM by RCJ Family
- 🕒 Opened on 29 Oct, 2025 at 9:28 AM by RCJ Family

-
- 🕒 **Opened** on 29 Oct, 2025 at 9:24 AM by RCJ Family
 - 🕒 **Opened** on 29 Oct, 2025 at 9:24 AM by RCJ Family
 - 🕒 **Opened** on 29 Oct, 2025 at 8:57 AM by RCJ Family
 - 🕒 **Opened** on 29 Oct, 2025 at 8:56 AM by RCJ Family
 - 🕒 **Opened** on 29 Oct, 2025 at 8:54 AM by RCJ Family
 - 🕒 **Opened** on 29 Oct, 2025 at 8:53 AM by RCJ Family
 - 🕒 **Opened** on 29 Oct, 2025 at 8:52 AM by RCJ Family
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 - 🕒 **Opened** on 29 Oct, 2025 at 7:02 AM by RCJ Family
 - 🕒 **Opened** on 29 Oct, 2025 at 6:58 AM by RCJ Family
 - 🕒 **Opened** on 29 Oct, 2025 at 6:57 AM by RCJ Family
 - 🕒 **Opened** on 29 Oct, 2025 at 3:29 AM by Sirisha Karkera
 - 🕒 **Opened** on 28 Oct, 2025 at 6:41 PM by Sirisha Karkera
 - 🕒 **Opened** on 28 Oct, 2025 at 5:20 PM by Sirisha Karkera
 - 🕒 **Opened** on 28 Oct, 2025 at 5:20 PM by Crabbe, Francine

EXHIBIT – Dhruv achievement card at Jesmnd academy Newcastle, 2022

Children studied in the Uk From November 2019—10 March 2025



EXHIBIT – Dhruv certificate of graduation West Jesmond Primary Newcastle, 2021

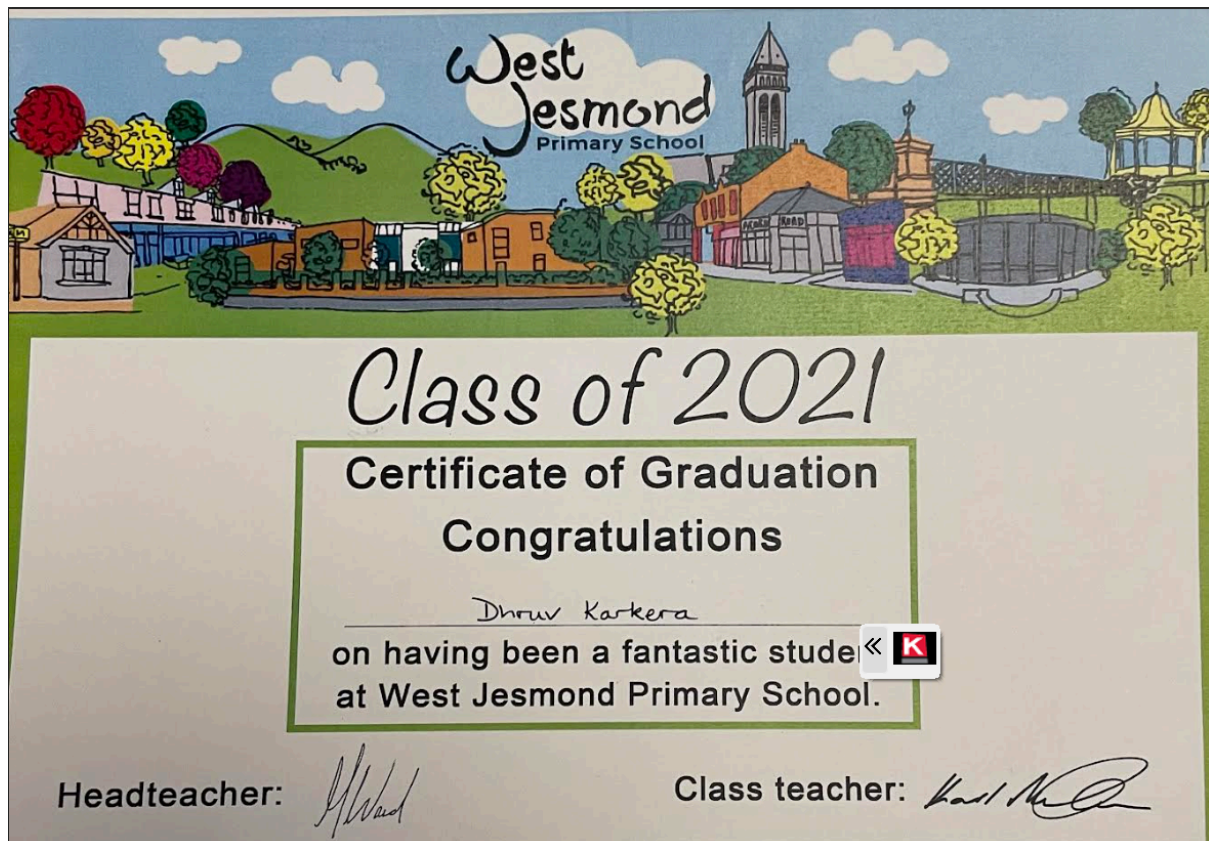


EXHIBIT 3– Agastya annual photograph session at West Jesmond Primary
Newcastle,

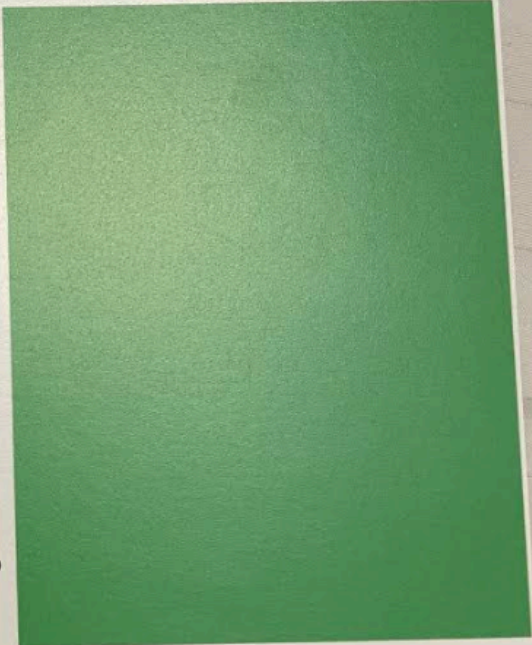
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Agastya Karkera



Image Reference: 75E01A659E



Barcode	Ref No	Pack	QTY	B&W	Mount	Access Code
	75E01A659E	A-1 - 2 desk & 8 wallet prints (Classic)	1	No	No	SD619

EXHIBIT 4–Dhruvs year 7 Grade card



Jesmond Park Academy

Yr7 GRADE CARD
Spring 2021/2022
Dhruv Karkera 18/07/2010
Registration group: 7.7

Mr and Mrs K Karkera
21 Wyncote Court
Jesmond Park East
Newcastle upon Tyne
NE7 7BG

Dear Parent/Carer

These are Dhruv's grades for our second data collection in Year 7. The progress grades are a reflection of a combination of recent assessments your child undertook in class alongside general class and homework before the Easter break. We would like to apologise for the delay in posting this grade card out to you. In addition to this grade card, you will receive a final full school report before the end of the summer term which includes subject specific next step targets and a short Form Tutor comment.

The information below explains the End of Year Target, the End of Year Progress Assessment and the Underpinning Performance grades.

End of Year Target Grade

These are based upon the minimum expected progress that we would expect from your child based upon their starting points when they joined us. The End of Year Target grade is for the end of Year 7. Please note that your child may not be currently predicted to achieve the end of year target grade yet – particularly if their end of year target grades are high. Students should not worry about this – particularly if their underpinning performance scores are strong (4s/5s for example). Your child's teachers will be focusing upon support, differentiation, stretch and challenge for all students.

End of Year Progress Assessment

As we have already said, these are based upon teachers' estimates of your child's expected outcomes in Year 7 based upon a combination of the recent formal assessments your child undertook in class as well as general class and homework from this year so far. This can and often does change as your child progresses through the school year.

Grades for All Subjects

Your child has been graded using the GCSE attainment grades numbering system. These are the GCSE numbers 9 to 1, with 9 being the highest achievable grade and 1 being the lowest achievable grade. A grade 5 is the equivalent to an old GCSE grade C.

The KS3 grades are not the same as GCSE grades because Year 7/8/9 students follow a KS3 programme of study not a KS4 Curriculum. KS3 grades show that pupils have reached a GCSE standard in terms of skills, not what they would be likely to get in terms of a grade were they to sit the exam, as they would not have been taught the content. The KS3 grades are not the equivalent of the 'old' KS3 SAT level.

KS3 grades indicate the eventual KS4 grade the student will be expected to achieve if they continue to make the same rate of progress through each year and work to their full potential. For example, a student attaining a KS3 grade 1 in Year 7 will be expected to attain a grade 5 in Year 11 at GCSE or better. A student attaining a KS3 grade 5 in Year 8 will be expected as another example to attain a grade 8 in Year 11 at GCSE or better. The very general rule is that students making expected progress should progress 1 'grade' per year.

EXHIBIT 4-Dhruvs year 7 Grade card



EXHIBIT -5 Dhruvs vaccination on 15/ 10/2020

In Partnership with

NHS
South Tyneside and Sunderland
NHS Foundation Trust

NHS
Northumbria Healthcare
NHS Foundation Trust

Date 15 / 10 / 20

Dear Parent or Carer

Childhood Nasal Flu Immunisation

Name DHRUV KARKERA Date of Birth 18 / 7 / 10

☒ was vaccinated today with Fluenz Tetra nasal spray
☐ did not receive the Fluenz Tetra today because

If you require any further information or would like to book a clinic appointment please call 0191 2979022

LP182399

IN THE HIGH COURT OF JUSTICE

FAMILY DIVISION

Royal Courts of Justice, London

Case Title:

Between:

Kunal Karkera, *Applicant*

and

Sirisha Karkera, *Respondent*

CASE DETAILS

Field	Details
Case No.:	FD25P00529
Date of Cover Sheet:	14.10.2025
Contents	1. Applicant's Chronology of the case 2. Applicant's Statement Pursuant to the Order dated 23.09.2023

Chronology of Events

Date	Event
17 June 2009	Marriage of Applicant Father and Respondent Mother on 17 June 2009, Pune, India.
18 July 2010	Birth of first child, Dhruv Kunal Karkera, in Pune, India. Both the applicant and the respondent were in India at that time, and the applicant was an engineer on a ship.
26 April 2014	Birth of the second child, Agastya Kunal Karkera, in Bangalore, India. Both the applicant and the respondent were in India at that time, and the applicant was an engineer on a ship.
Dec 2017	The applicant applied for an ashore job and took up employment in Tokyo, Japan
April 2018	The respondent and the children joined the applicant in Tokyo, Japan
Oct 2019	The applicant and the family moved to the UK and commenced
04 Nov 2019	The applicant and the respondent permanently moved to the UK and started living in Gateshead. –Newcastle Upon Tyne.
May 2021	The applicant and family moved to the Jesmond locality in Newcastle Upon Tyne.
December 2021	The Applicant and the Respondent bought a house in Newcastle in December 2021
30 June 2023	The family moved to Sutton, which is their current residence.
Oct 2024	ILR(Indefinite leave to remain) Settlement status given to applicant ,
12 March 2025	The Respondent wrongfully removed the children to India.
14 March 2025	Contacted both the schools, Overton Garage and Woodfield Primary, and became aware from school authorities that the respondent had sent fraudulent mail to the school stating that the applicant had a new job in India on 11 March 2025.
15 March 2025	Contacted RAFC and learnt that Dhruv had told RAFC on 6 March that he would not be attending RAFC in future as his father has secured a job in India, the respondent had asked him to do so.
23 March 2025	Applicant travelled to Pune-India to meet his children and the respondent; however, he was

	denied to meet the children by the mother-in-law and the mother.
24 March 2025	Applicant withdrew approximately £76,000 from the joint account and liquidated many fixed deposits, which led to heavy losses, and transferred to her sole account in Pune, India and changed password to the account.
26 March 2025	The Applicant met the respondent in a cafe in Pune, India, and she said she wants a divorce. She did not bring the children; it was painful to return to the UK without seeing the children for the applicant.
05 April 2025	Contacted the metropolitan police and complained about the wrongful removal of the children.
12 April 2025	Respondents and children were granted ILR(Indefinite Leave to Remain) Settlement status in the UKVI.
12-13 May 2025	The applicant flew from London to Pune. The respondent laid a condition via a relative that no past events were to be discussed and no grandparents were to be brought, even though they wanted to see the children in the same city after having travelled from Bangalore. Dhruv (Elder son) wept during the meeting.
24 June 2025	The applicant requested to arrange a meeting with the children in person via email, which was blatantly ignored. After sending reminders, the respondent emailed the applicant, saying he could meet the children only with court indulgence.
27 June 2025	The Respondent applied for divorce in the Family Courts in India.
05 July 2025	The father of the applicant travelled from Bangalore to Pune to attend a court hearing.
06 July 2025	The Metropolitan police started an investigation and contacted the school, RAFC, and music centre, and conducted a thorough investigation. A report has been released.
31st July 2025	Respondent sought maintenance and has declared herself a housewife/ Non working despite having a good educational qualification of BA in psychology and an MBA in

Human Resources, and seeks huge alimony and interim maintenance and further maintenance.
--

07 August 2025	The applicant again travelled to India from the UK for the mediation process as directed by the Indian family court, and then returned to London
23 September 2025	Started legal proceedings in the UK and applied for a wardship and return of children.
04 October 2025	The applicant again flew to India for the mediation process as directed by the court.

IN THE HIGH COURT OF JUSTICE

CASE NO: FD25P00529

FAMILY DIVISION

**IN THE MATTER OF THE INHERENT JURISDICTION
AND IN THE MATTER OF THE SENIOR COURTS ACT 1981
AND IN THE MATTER OF THE CHILD ABDUCTION ACT
1984 AND IN THE MATTER OF THE CHILDREN ACT 1989
AND IN THE MATTER OF THE CHILDREN: DHRUV KUNAL KARKERA
(DOB:18.07.2010) AND AGASTYA KUNAL KARKERA (DOB: 26.04.2014)**

BETWEEN:

Kunal Karkera

Applicant

-and-

Sirisha Karker

Respondent

**STATEMENT OF APPLICANT FATHER IN SUPPORT OF
APPLICATION FOR WARDSHIP AND RETURN OF CHILDREN**

I, Kunal Karkera, of Flat 103, 16 Sutton Plaza, 16 Sutton Court Road, Sutton, London SM1 4FX, make this statement in support of my application for the following reliefs:

1. That the children, Dhruv Kunal Karkera, (**DOB: 18 July 2010**), and Agastya Kunal Karkera, (**26 April 2014**), be made Wards of Court.
2. That an order be made for their immediate return to England and Wales, their country of habitual residence, who are wrongfully removed to India by the Respondent Mother.

I make this statement believing it to be true and understanding that it will be placed before the Honourable Court in support of my application under its inherent parens patriae jurisdiction.

Background

1. The Applicant is the natural father of the two children named above. Both were raised in England. The Respondent Mother and the Applicant were married on 17.06.2009, Pune, India.
2. While the parties lived in India at that time, both of the children were born in India [**Exhibit 1** and **Exhibit 2**], and subsequently, the family moved to Tokyo, Japan, as the father secured employment there.
3. Later, the family moved permanently to the United Kingdom on 04.11.2019 and has been living in the jurisdiction of this court ever since, in places such as Newcastle and London. However, on 12.03.2025, the children were fraudulently and wrongfully removed to India by the respondent mother without the applicant's consent.
4. The children have been attending the public schools in the UK, and the applicant father works as a Technical Manager in a shipping firm in London, while the respondent mother also worked in England in the retail industry.

Habitual Residence and Parental Responsibility

5. The applicant father strongly claims that his children's habitual residence has been the jurisdiction of England and Wales. The Applicant holds full parental responsibility under Section 2(1) of the Children Act 1989.
6. The Applicant Father submits that both children, Dhruv Kunal Karkera (aged 15 years) and Agastya Kunal Karkera (aged 10 years), have been habitually resident in England and Wales since their early childhood and have been deeply integrated into the social, educational, and cultural fabric of this jurisdiction. The duration and stability of their residence are clearly established through continuous schooling and community participation [**Exhibit 9**].
7. Dhruv Kunal Karkera (Elder son), (Dhruv for brevity hereon) attended West Jesmond Primary School, Newcastle upon Tyne (Nov 2019–July 2021), Jesmond Park Academy, Newcastle upon Tyne (Sept 2021–June 2023), and subsequently Overton Grange School, Sutton, London (July 2023–March 2025).

8. Dhruv received an award for an exceptional cadet at the RAF Academy, Sutton, in June 2024 and actively participated in the Robotics team there in RAF. He is a prominent cadet who has also been the face of the academy for their Instagram web page [Exhibit 3]. Dhruv has a deep passion for aeroplanes. He enjoyed playing with his remote control plane at Overton Garage Park, Sutton, which was gifted to him by the applicant's sister. He learnt and picked up the guitar/ Ukelele in Newcastle and in London [Exhibit 11]. He also enjoys making Lego models in his spare time. He has deep-rooted friends from Newcastle who were his long-standing friends from primary school (West Jesmond Primary) who have visited and stayed with us overnight in London.
9. Agastya attended Hotspur Primary School, Newcastle upon Tyne (Nov 2019–July 2021), West Jesmond Primary School, Newcastle upon Tyne (Sept 2021–June 2023), and Woodfield Primary School, Wallington, London (July 2023–March 2025).
10. Agatyya entered the UK at a tender age of 5 years. He even acquired a very strong Jordie accent while we were living in Newcastle. He is a gregarious child who has many friends in school. He enjoyed swimming in Jesmond Swimming Club and also playing squash, which both the applicant and the respondent used to take him every Saturday. He enjoyed his piano classes, and the applicant had bought a top-end piano for him. Many of his friends attended his birthday parties at Sutton's home. He enjoyed going to the Sutton and Newcastle libraries as he was fond of reading books.
11. These institutions represent a clear educational continuity within the UK, reflecting their long-term integration and habitual residence within this jurisdiction.
12. Both children, being permanently settled and raised in England, registered with NHS GPs and dentists, and benefited from child welfare and educational entitlements in the UK.
13. Their social identity, friendships, and extra-curricular activities, including family trips to Oxford, visits to numerous science and history museums in London [Exhibit 9], the Lake District, Glasgow, Kendal, railway museums in York, Edinburgh and Dover Cliffs in 2024, illustrate their stable and enriching upbringing in the United Kingdom.
14. Their living conditions were secure, emotionally supportive, and consistent with the standard of care expected within this jurisdiction. English remains the children's first and only academic language, and their educational and psychological well-being has been centred in England.

15. The parents' shared intention, until the Respondent's unilateral act, was for the children to continue residing and studying in England and settle in the UK, where the Applicant remains permanently employed with K-Line Energy Shipping Company (UK).
16. Both parties and the children were granted Indefinite Leave to Remain in the UK by UKVI – Respondent and children on 12 April 2025, and the Applicant on 10 Oct 2024.
17. The applicant's father never consented to any removal of the children from the jurisdiction of England and Wales.

Circumstances of the Abduction

18. The Applicant respectfully submits that on 12 March 2025, the Respondent committed a premeditated and unilateral act of international child abduction by unlawfully removing the two minor children from the jurisdiction of England and Wales to India, without the Applicant's knowledge or consent, and in direct contravention of his parental responsibility.
19. The Respondent and the children departed the United Kingdom on the 4:00 PM British Airways flight on a one-way ticket from London to Mumbai **[Exhibit 4]**.
20. On the previous day, 11 March 2025, the Respondent mother had sent falsified emails to the children's respective schools, namely Overton Grange School and Woodfield Primary School, seeking to obtain Transfer Certificates under the false pretext that the Applicant father had secured employment in India **[Exhibit 5 and 8 and 10]**. These fabrications were deliberately crafted to conceal her true intention of permanent relocation.
21. In reality, the Applicant remains continuously employed in the United Kingdom with K-Line Energy Shipping Company (UK), with no such relocation even contemplated.
22. On 12 March 2025, when the Applicant returned home from work at approximately 5:30 PM, he discovered the family residence empty. Four large suitcases, including the Applicant's personal laptop, were missing, and all evidence pointed to a prearranged departure.
23. On the morning of 12 March 2025, both children were deliberately dressed in their full school uniforms by the Respondent with the clear intention of misleading the Applicant into believing that they were attending school as part of their normal

- routine. In truth, the children remained at home while preparations were being made for their unlawful departure from the jurisdiction. This calculated deception formed part of the Respondent's premeditated plan to conceal her true intentions and to frustrate the lawful exercise of the Applicant's parental responsibility.
24. The Respondent's conduct demonstrates a wilful and deliberate disregard for the authority of this Honourable Court and for the principles of joint parental decision-making. By involving the children in this act of deceit, the Respondent not only undermined their trust and sense of security but also exposed them to psychological and emotional harm. Such conduct constitutes a clear act of parental child abduction, which may be considered as a serious criminal offence under English law, and represents a fundamental breach of the children's rights to stability, honesty, and protection within their habitual residence in England.
25. The involvement of the children by the instigation of the Respondent, in these deceitful acts, has caused them grave psychological and emotional harm, and is contrary to their best interests and welfare as protected under Section 1 of the Children Act 1989.
26. Further evidence of the Respondent's pattern of deception is found in her conduct both prior to and following the removal. On 11 March 2025, neither child attended school [**Exhibit 5**]; both Dhruv and Agastya wore uniforms only to create the false impression of attendance. When the Applicant telephoned the Respondent from his workplace, she falsely represented that she had just returned from dropping Agastya at school, and later sent a message stating, "Agastya is back," both of which were deliberate lies.
27. The Respondent further compounded her deceit by submitting to the Indian Court on 19 April 2025 that she was unaware of her or the children's Indefinite Leave to Remain (ILR) status. This statement was patently false, as she had received her ILR on 12 April 2025 and applied for a UK E-visa the following day, 13 April 2025 [**Exhibit 6 and 7**].
28. The Respondent's sustained pattern of misrepresentation and deliberate concealment demonstrates bad faith, preparation, and intentional violation of the children's habitual residence and the lawful authority of this Honourable Court.

Welfare Concerns

29. The Applicant has grave concerns regarding the children's welfare and emotional well-being. The children have been uprooted from their family, school, and extended family network in England. They are now being kept in a jurisdiction where enforcement of the Applicant's parental rights is severely hindered.

30. Since the wrongful removal, the applicant has been trying to amicably resolve the situation with the respondent in the best interest of the children. He also met the children in Pune, India, and the children expressed their wishes that they also would want to reunite with him in the UK. The children were distressed and unhappy in India. They have been forced to learn languages that they are not accustomed to. The respondent is recklessly making decisions which is not in the best interest of the children. The elder son and the applicant both wept when the applicant met them on 13 May 2025.
31. The Applicant submits that the Respondent has removed the children to a jurisdiction that is wholly distinct from the United Kingdom in its educational system, social environment, and legal framework. This abrupt and unilateral relocation has caused the children significant psychological distress and emotional instability, as they have been uprooted from their familiar surroundings, established peer networks, and the structured academic environment to which they had been accustomed.
32. The children have also suffered serious academic disruption as a direct consequence of this wrongful removal. Due to the lack of compatibility between the UK and Indian educational systems, both children have been compelled to repeat lower academic years, resulting in a tangible setback to their learning progress and personal development. Specifically, Dhruv, who was enrolled in Year 11 at Overton Grange School, Sutton, has been placed in Grade 9 in India, while Agastya, who was in Year 7 at Woodfield Primary School, Wallington, has been reduced to Grade 5. This forced academic regression is detrimental to their intellectual growth, confidence, and continuity of education, and constitutes further evidence of the harm suffered by the children following their removal from their habitual residence in England.
33. The applicant is also concerned that the children's well-established bonds with the father and father's family, such as grandparents, uncles, aunts and several cousins, are being torn apart because of such a removal and alienation by the mother. Since the wrongful removal of the children, they don't have any contact whatsoever with their loving grandparents and father's side family members.
34. The respondent is trying to alienate the children from the father. On Agastya's birthday on 26 April 2025, the Respondent imposed an unreasonable restriction, allowing the Applicant only 15–20 minutes to greet his own son. She further insisted that the meeting would be recorded. The video was deliberately kept off, and Agastya was coerced to state falsely stating that his mother was not at home. The Zoom link itself was sent only minutes before the scheduled call, making the interaction perfunctory and insincere. Dhruv's (elder son's) birthday was approaching, and the respondent asked the petitioner to arrange a meeting with his sons. The same was denied. Such actions demonstrate not only

disregard for the respondent's rights as a father but also deliberate cruelty inflicted by one parent upon the other.

35. The applicant has been a dedicated and loving father. He has been the primary breadwinner for the family, and he supported his children and his respondent wife throughout these more than sixteen years of marriage. Even though his profession is as a Technical Manager in the shipping industry, which necessitates that he travels anywhere around the globe for the country's energy security on merchant vessels, he was always a deeply involved father.

36. He has attended their music recitals in Newcastle and also attended every parent-teacher meeting at school. The applicant paid for all the expenses for their extra-curricular activities for the children's all-around development. He also used to take the children to music classes, swimming classes. The applicant used to manage this in spite of his busy schedule and always wanted to be a part of his children's lives.

Legal Grounds for Relief

37. The removal constitutes a wrongful retention under common law principles of child abduction. The High Court retains inherent jurisdiction to protect children wrongfully removed.

38. The welfare of the children, under Section 1 of the Children Act 1989, demands their return to the UK.

39. Wrongful removal by one parent violates the child's ECHR Article 8 rights, because it severs or restricts the relationship with the other parent without judicial approval. The father's right to maintain contact and a meaningful parental relationship is equally protected under Article 8.

Relief Sought

As it is clearly seen that the Respondent mother is not acting in the best interest of the children, the Applicant earnestly requests that this Honourable Court:

- (a) Make both the children Wards of Court immediately.
- (b) Order the Respondent to return the children to England and Wales forthwith.
- (c) In the interim, allow a contact between the applicant and children twice a week on video calls.
- (d) Direct the FCDO to liaise with Indian authorities for safe repatriation.
- (e) Allow disclosure of the wardship and return order to the Indian authorities, schools and other organisations related to the children for co-operation.

(f) Any other order(s) in the interest of justice and in the best interest of children.

Conclusion

The Applicant has always been a devoted father and husband who has always supported and cared for his children and family. Their sudden and wrongful removal has caused immense emotional distress. He therefore seeks this Court's urgent intervention to restore their lives and family relationships.

Statement of Truth:

I believe that the facts stated in this witness statement are true.

Signed: K. G. Karkera
[Full Name of Father]
Name: Kunal karkera
Date: 14.10.2025

Exhibit 1: Birth Certificate of Agastya Kunal Karkera

Print

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NO. C

1516309



ಕರ್ನಾಟಕ ಸರ್ಕಾರ
GOVERNMENT OF KARNATAKA
ಜನನ ಮತ್ತು ಮರಣಗಳ ಮುಖ್ಯ ರಿಜಿಸ್ಟ್ರಾರರು
Chief Registrar of Births and Deaths
ಜನನ ಪ್ರಮಾಣ ಪತ್ರ

ಸಮೂಹ - 5
Form No - 5





(ಜ.ಮ.ಸೋ. ಅಧಿನಿಯಮ, 1969ರ 12/17 ನೆಯ ಷರತ್ತು ಹಾಗೂ ಕ.ಜ.ಮ.ಸೋ. ನಿಯಮಗಳು, 1999ರ ನಿಯಮ 8/13 ರ ಮೇರೆಗೆ ಕೊಡಲಾದ)

BIRTH CERTIFICATE
(Issued Under Section 12/17 of the RBD Act, 1969 and Rule 8/13 of the KRBD Rules, 1999)

ಈ ಕೆಳಕಂಡ ವಿವರಣೆಯನ್ನು ಕರ್ನಾಟಕ ರಾಜ್ಯದ ಬೆಂಗಳೂರು ಜಿಲ್ಲೆಯ, ಬೃಹತ್ ಬೆಂಗಳೂರು ಮಹಾನಗರ ಪಾಲಿಕೆಯ ರಿಜಿಸ್ಟ್ರಾರರಿರುವ ಜನನ ಸಂಬಂಧವಾದ ಮೂಲ ದಾಖಲೆಯಿಂದ ತೆಗೆದುಕೊಳ್ಳಲಾಗಿದೆಯೆಂದು ಪ್ರಮಾಣೀಕರಿಸಲಾಗಿದೆ.

This is to certify that the following information has been taken from the original record of birth which is in the register of Bruhat Bangalore Mahanagara Palike, Bangalore District of Karnataka State.

1) ಹೆಸರು Name Agastya Kunal Karkera 3) ಜನನದಾತ ತಾರೀಖು Date of Birth 26/04/2014 5) ತಾಯಿಯ ಹೆಸರು Name of Mother Sirisha Karkera 7) ಮಗುವಿನ ಜನನದ ಸಮಯದಲ್ಲಿ ತಂದೆತಾಯಿಯರ ವಿಳಾಸ: Address of parents at the time of birth of the child: Kunal Karkera 189, Chelekere Near Susruta Nursing Home Kalyan Nagar Bangalore 43 9) ನೋಂದಣಿ ಸಂಖ್ಯೆ: Registration No.: BOM/B/2014/00250/001331 11) ಬರಾ(ಯಾವುದಾದರೂ ಇದ್ದಲ್ಲಿ) Remarks(if any) 13) ಪ್ರಮಾಣ ಪತ್ರ ಕೊಡುವ ಪ್ರಾಧಿಕಾರಿಯ ಸಹಿ Signature of Issuing Authority	2) ಲಿಂಗ Sex ಗಂಡು Male 4) ಜನನವಾದ ಸ್ಥಳ Place of Birth APOLLO HOSPITAL 6) ತಂದೆಯ ಹೆಸರು Name of Father Kunal Karkera 8) ತಂದೆತಾಯಿಯರ ಖಾಯಂ ವಿಳಾಸ Permanent address of parents: Kunal Karkera, 189, Chelekere Near Susruta Nursing Home Kalyan Nagar Bangalore 43 10) ನೋಂದಣಿ ತಾರೀಖು Date of Registration: 28/04/2014 12) ಪ್ರಮಾಣಪತ್ರ ನೀಡಿದ ದಿನಾಂಕ Date of Issue 23/06/2014 14) ಪ್ರಮಾಣ ಪತ್ರ ಕೊಡುವ ಪ್ರಾಧಿಕಾರಿಯ ವಿಳಾಸ Address of the issuing authority
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ಮೊಹರು / Seal :

"ಜನನವನ್ನು ಜನನ ಮತ್ತು ಮರಣದ ನೋಂದಣಿಯನ್ನು ಖಚಿತಪಡಿಸಿಕೊಳ್ಳು"

"Ensure registration of every birth and death"



Exhibit 2: Birth Certificate of Dhruv Kunal Karkera


महाराष्ट्र शासन
GOVERNMENT OF MAHARASHTRA
अरोग्य विभाग DEPARTMENT OF HEALTH
छावणी परिषद पुणे
CANTONMENT BOARD PUNE
जन्म प्रमाणपत्र
BIRTH CERTIFICATE

फॉर्म-5
FORM-5

क्रमांक 1
NO. 1

जन्म व मृत्यु नोंदणी अधिनियम, 1969 च्या कलम 12/17 आणि महाराष्ट्र जन्म आणि मृत्यु नोंदणी नियम, 2000 चे नियम 8/13 अन्वये देण्यात आले आहे.
(ISSUED UNDER SECTION 12/17 OF THE REGISTRATION OF BIRTHS & DEATHS ACT, 1969 AND RULE 8/13 OF THE MAHARASHTRA REGISTRATION OF BIRTHS & DEATHS RULES 2000)

प्रमाणित करण्यात येत आहे की, खालील माहिती जन्माच्या मूळ अभिलेखाच्या नोंदवरीलून घेण्यात आली आहे, जी की छावणी परिषद पुणे, तालुका पुणे शहर, जिल्हा पुणे, महाराष्ट्र राज्या, भारत च्या नोंदवरील उल्लेख आहे.
THIS IS TO CERTIFY THAT THE FOLLOWING INFORMATION HAS BEEN TAKEN FROM THE ORIGINAL RECORD OF BIRTH WHICH IS THE REGISTER FOR CANTONMENT BOARD PUNE OF TAHSIL/BLOCK PUNE CITY OF DISTRICT PUNE OF STATE/UNION TERRITORY MAHARASHTRA, INDIA.

नाव / NAME: DHURV KUNAL KARKERA
लिंग / SEX: पुरुष / MALE
जन्म तारीख / DATE OF BIRTH: 18-07-2010
जन्म ठिकाण / PLACE OF BIRTH: COMMAND HOSPITAL
आईचे पूर्ण नाव / NAME OF MOTHER: SHRISHA KARKERA
आईचे पूर्ण नाव / NAME OF FATHER: KUNAL KARKERA
आईचा क्रमांक / MOTHER'S AADHAAR NO:
आईचा क्रमांक / FATHER'S AADHAAR NO:
बाबांच्या जन्माच्यावेळी आई-वडिलांचा पत्ता / ADDRESS OF PARENTS AT THE TIME OF BIRTH OF THE CHILD: "189, CHELEKERE, NEAR SAVITA HOSPITAL, KALYAN NAGAR, BANGALORE 560043"
आई-वडिलांचा कायमचा पत्ता / PERMANENT ADDRESS OF PARENTS: "189, CHELEKERE, NEAR SAVITA HOSPITAL, KALYAN NAGAR, BANGALORE 560043"
नोंदणी क्रमांक / REGISTRATION NUMBER: 168/819
नोंदणी दिनांक / DATE OF REGISTRATION: 25-08-2010
शेरा / REMARKS (IF ANY):

प्रमाणपत्र दिव्याचा दिनांक / DATE OF ISSUE: 10-07-2019

नियमित करणारे प्राधिकारी / ISSUING AUTHORITY:
रजिस्ट्रार (जन्म व मृत्यु)
REGISTRAR (BIRTH & DEATH)
छावणी परिषद पुणे
CANTONMENT BOARD PUNE

UPDATED ON:
10-07-2019 13:53:18



"THIS IS A COMPUTER GENERATED CERTIFICATE WHICH CONTAINS FACSIMILE SIGNATURE OF THE ISSUING AUTHORITY"
"THE GOVT. OF INDIA VIDE CIRCULAR NO. 1/12/2014-VS(CRS) DATED 27-JULY-2015 HAS APPROVED THIS CERTIFICATE AS A VALID LEGAL DOCUMENT FOR ALL OFFICIAL PURPOSES".

* प्रत्येक जन्म आणि मृत्यू घटना नोंदवारी करावी करा * / ENSURE REGISTRATION OF EVERY BIRTH AND DEATH *



Exhibit 3: Certificate of Dhruv Kunal Karkera from RAF Academy



Exhibit 4: One-way ticket by the Respondent Mother used for wrongful removal of the children from the jurisdiction of England and Wales



M82XCL

This is not a boarding pass. You still need a boarding pass before you fly.

London to Mumbai

- Depart at 16:25, Wed 12 Mar 2025
Heathrow (London) Tern
BA0135, World Traveller (L), Confirmed, Boeing
- 9H OPERATED BY BRITISH AIRWAYS
- Arrive at 06:55, Thu 13 Mar 2025
Chhatrapati Shivaji Mah

Your flight choices

Feedback

Exhibit 4: One-way ticket by the Respondent Mother

Agastya Kunal Karkera



Window, middle or aisle? Don't forget to choose your seat.



2 × 23kg checked-in bags
1 × cabin bag (56 × 45 × 25cm)
1 × handbag/laptop (40 × 30 × 15cm)
And include 2 items from:
1 × fully collapsible pushchair (stroller)
1 × car seat
1 × travel cot
1 × baby back carrier



Drinks and meals included

You can't choose a meal this close to your flight time

Dhruv Kunal Karkera



Window, middle or aisle? Don't forget to choose your seat.



2 × 23kg checked-in bags
1 × cabin bag (56 × 45 × 25cm)
1 × handbag/laptop (40 × 30 × 15cm)



Drinks and meals included

You can't choose a meal this close to your flight time

Sirisha Karkera



Window, middle or aisle? Don't forget to choose your seat.



2 × 23kg checked-in bags
1 × cabin bag (56 × 45 × 25cm)
1 × handbag/laptop (40 × 30 × 15cm)



Drinks and meals included

You can't choose a meal this close to your flight time

MORE INFORMATION

Exhibit 4: One-way ticket by the Respondent Mother

Cancelling your booking

There are no refunds except for any government & airport taxes. View your [cancellation options](#) for this booking.

Change time or date

Time/date changes permitted at any time before each flight departure for a change fee of £150 or an upgrade fee of £150 plus any difference in fare. All sectors may be repriced. Changes subject to availability. Fees apply per ticket. View your [change time or date](#) options.

Check-in

Online check-in not available.

Self-service check-in not available.

Airport desk check-in not available.

After check-in

After you have checked in, go immediately through Security to the departure area. Allow enough time to complete security search and passport checks, and to get to your gate before it closes.

You must have entered Security at least **35 minutes** before your flight is scheduled to depart, or you may not be permitted to fly.

Exhibit 5: Agastya's School Leaving Certificate obtained fraudulently by the respondent.



Wood Field Primary School

NOTIFICATION OF PUPIL LEAVING SCHOOL

CHILD'S NAME Agastya Kunal Karkera.....CLASS...6Thames

Last day of attendance ...10/03/2025. Date of Birth .26/04/2014.

Reason for leaving (please tick the appropriate box)

Leaving the country*

New Home Address (or current address if not moving). This part must be completed in all cases.

...401...Dunnoch, Nyati Enclave, Mohammedwadi, Pune, Maharashtra Pincode: 411060.....

* If moving abroad please provide date of leaving the UK and flights details: Date of leaving UK is 12/04/2025 ...Flight: BA0135 departing 12/03/2025...

Full Name and Address of New School

...To be confirmed after arrival in India.....

Do you have confirmation from the new school that your child has been accepted? To be confirmed after arrival in India

Planned start date : Mid June 2025

If your child has not yet been offered a place at another school please state below details of schools to which you have applied or give information about what arrangements have been made for the provision of your child's education.

Upon immediate return, we intend to homeschool till admission is secured. I will update you as soon as I have admission details.....

Parent/Guardian Contact Details:

Name of Parent/Guardian ...Sirisha Karkera.....

New Home Telephone Number (if known) ...Will obtain once in India and advise

Mobile Telephone Number ...current number: 07983113529

Work Telephone Number (if known)

Email address ...sirisha9@hotmail.com

Signed Parent/Guardian Date ...11/03/2025.

Print Name ...SIRISHA KARKERA... Relationship to Child... Mother....

Your immigration status (eVisa)

Name	DHRUV KUNAL KARKERA
Date of birth	18 July 2010
Nationality	IND
Status	Settled



Rotate ↻

There is no limit on how long you can stay in the UK.

Prove your status

If you need to prove your immigration status to someone, you can do this online with a share code.

[Get a share code](#)

What you can do in the UK

Your [settlement status](#) means you can:

- live in the UK
- work
- study
- rent a place to live
- use the National Health Service (NHS) in a similar way to permanent UK residents
- access [public funds](#), if you are eligible for them
- access a current account with a bank or building society in the UK
- travel in and out of the country without having to prove your status, as your information will be checked automatically

Continuous absence

If you remain outside the UK for a continuous period of more than 2 years, your permission will normally lapse and you will have to [apply for a returning resident visa](#) if you wish to live permanently in the UK.

Exhibit 7: Agastya's eVisa confirming settled status in the UK

Your immigration status (eVisa)

Name	AGASTYA KUNAL KARKERA
Date of birth	26 April 2014
Nationality	IND
Status	Settled

There is no limit on how long you can stay in the UK.

Prove your status

If you need to prove your immigration status to someone, you can do this online with a share code.

[Get a share code](#)



Rotate ↺

What you can do in the UK

Your [settlement status](#) means you can:

- live in the UK
- work
- study
- rent a place to live
- use the National Health Service (NHS) in a similar way to permanent UK residents
- access [public funds](#), if you are eligible for them
- access a current account with a bank or building society in the UK
- travel in and out of the country without having to prove your status, as your information will be checked automatically

Exhibit 8: Respondent Mother's fraudulent email to Dhruv's school.

Good morning.

Thank you for informing us.

To be able to take him off roll, you will have to send us a copy of the flight ticket with his name on it and the home address he will be going to. If you have the name of the school he will be going to as well, it will be helpful.

Kind regards
Admissions
Overton Grange School
Stanley Road
SM2 6TQ

319/4019



From: Office at Overton Grange School <office@overtongrange.sutton.sch.uk>

Sent: 11 March 2025 08:28

To: D Dasgupta <d.dasgupta@overtongrange.sutton.sch.uk>; C Stringer <c.stringer@overtongrange.sutton.sch.uk>; A Gorley <a.gorley@overtongrange.sutton.sch.uk>

Subject: FW: Dhruv Karkera Year 10 RO Leaving school

From: Sirisha Karkera <sirisha9@hotmail.com>

Sent: 11 March 2025 08:05

To: Office at Overton Grange School <office@overtongrange.sutton.sch.uk>

Subject: Dhruv Karkera Year 10 RO Leaving school

Dear Ma'am,

I hope this mail finds you well.

I would like to inform you that due to a new work opportunity, we as a family are moving to India and hence Dhruv will no longer be attending school.

Please could you email me his academic records so that I can submit them in India when we have secured admission there.

Many thanks,

Sirisha Karkera

Exhibit 9: Family picture from the UK at the Prime Meridian Line, Greenwich, UK



Exhibit 10: Mother's message to Dhruv's School on their platform

Incident relating to: **Dhruv Karkera (Archived)**

Cara Biggin-Evans

Tue, 11 Mar 2025 16860
07:53

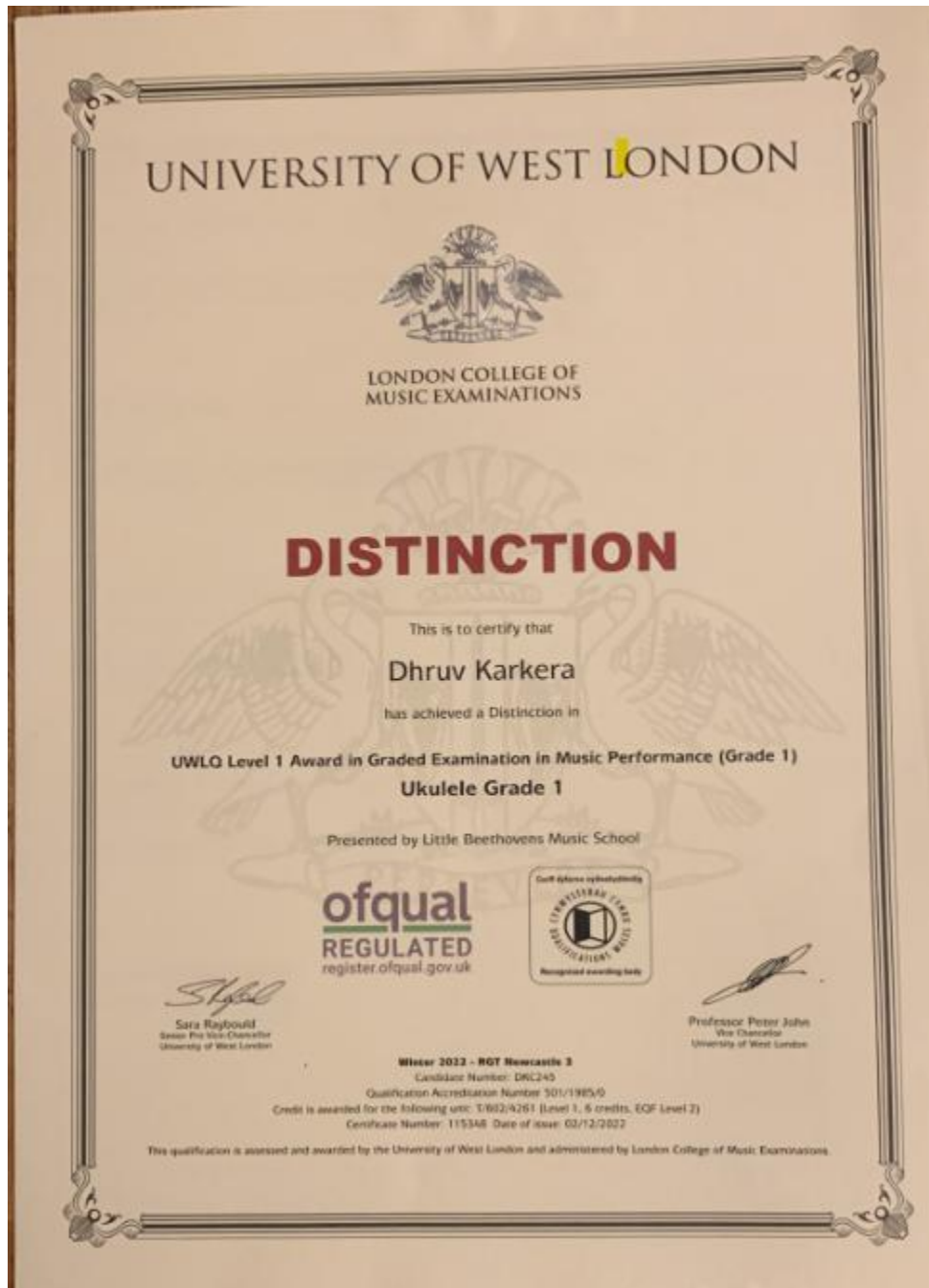
Attendance

Status: Closed

Assigned to: *Nobody*

Good morning, Dhruv Karkera will not be attending school from today as we are moving to India. A new job for his father has the family relocating. many thanks

**Exhibit 11: Dhruv secured a Distinction in Ukulele exam at Newcastle(UK)
from London College of Music examinations**



From: Sirisha Sharma sirisha9@hotmail.com
 Subject: F.D.25P00529 - KARKERA - URGENT C67 APPLICATION
 Date: 10 Oct 2025 at 3:04:46 PM
 To: rcj.familyhighcourt@justice.gov.uk
 Bcc: ABHIJIT SARWATE sarwate_works@hotmail.com

Date : 08/10/2025

To,

**The Judge,
 Family Division,
 High Court of Justice,
 1st Mezzanine, Queens Building,
 Royal Courts of Justice, Strand,
 London**

Respected Lordship,

- 1) I, Sirisha Karkera, have received an Order in case no. F.D.25P00529, under your seal dated 23/09/2025. There is an order passed which I have attached to the present email. The purpose of writing this is to bring to your kind attention that certain proceedings in regard to my matrimonial relationship with Mr. Kunal Karkera have already commenced in the Family Court, Pune, Maharashtra, India, bearing P.A. No. 730/2025. The said proceedings seek various reliefs more especially about the divorce, children's custody, alimony and other such reliefs.
- 2) I filed a petition on 19/04/2025 after I came back to India and after nearly a month. My decision to file the petition in Pune (India) was a conscious decision considering that I and our children namely, Dhruv, born on 18/07/2010 and Agastya, born on 26/04/2014, were subjected to immense cruelty both physically and mentally. Our elder son who is 15 years old is a witness and also a victim of the assault at the hands of my husband viz. Kunal Karkera. A copy of the petition with various instances of cruelty is annexed to this letter.

- 3) My children and I are Indian nationals. Since we have come back with a permanent intention to reside in Pune, India, the children have also been enrolled in the school in Pune, India. My intention along with the children is to permanently stay in India. Thus, we are also domiciled in India.

- 4) I would like to kindly bring to your kind attention that as Indian nationals we were married as per our own personal laws. The laws in India state that we carry out personal laws along with us no matter where we travel. While it would be rather not impolite to state that considering that I am in India, our children are in India, the three of us are domiciled in India. Way back on 19/04/2025, I have knocked the doors of Indian courts for reliefs in regards to my matrimonial relationship with Mr. Kunal Karkera, thereby, seeking dissolution of marriage, parental custody and rights and such other reliefs.

- 5) I would humbly like to pray that exercising jurisdiction in U.K. would be incorrect. Other than the single page which I have attached hereto, I have not received any other papers. I submit that prior to U.K. we have stayed in Japan. When I returned back to India from UK on 12/03/2025, owing to extreme cruelty, Kunal Karkera was informed about the same on 13/03/2025. In fact, Kunal Karkera came to India on 23/03/2025 and an altercation transpired outside my mother's house where I presently sought refuge.

- 6) On 19/04/2025, when the petition in the Family Court, Pune, was filed, after the service of the notice, in the entire proceeding, the husband appeared in Family Court, Pune, through his constituted attorney, i.e. his father. We have been sent to counseling. On 29/09/2025, Kunal Karkera has also made an application seeking visitation.

- 7) I am presently unemployed. While I was living in U.K. I was also in part-time employment. My salary was also credited to an account. While I have withdrawn some of the funds for my sustenance, upkeep of my children, admission of the children in a very reputed school, their fees, etc. I do not have any means, neither financially nor mentally, to come and litigate any proceedings in U.K. I do not accede nor agree to the jurisdiction of U.K. considering the personal laws under which we were married and are bound by. Considering the fact that I and my children are domiciled in Pune, India and the proceeding is already pending before the Family Court Judge, Pune, India, wherein, Kunal Karkera has already appeared, I would with folded hands kindly request you not to exercise any jurisdiction in regards to any matter which is dealt with by the Family Court, Pune.
- 8) I have also been granted the order about the retention of the custody of the children by the Family Court, Pune. My lawyer in Family Court, Pune, has given on his letter head the typed copy of the order which states that children are to be retained with me till such further orders from the Family Court, Pune.
- 9) Considering the same, there could be a possibility of conflicts in various orders passed by various courts which will further result in chaos and confusion. If the Lordship thinks it appropriate, my elder son can also testify in regards to the acts which are stated in the petition and which he has suffered at the hands of Kunal Karkera through virtual conferencing.
- 10) I thus request you to have proceedings, of which other than the order I have no service upon, be disposed of on the grounds of jurisdiction.

Thanking you,
Yours sincerely,

Sirisha Karkera

Encl.: (1) Letter from Adv. Sarwate about the true copy of the proceeding.

(2) Order copy.



KARKERA LETTER Copy
.pdf
758 KB



Order

CASE NO: FD25P00529

**IN THE HIGH COURT OF JUSTICE
FAMILY DIVISION**

IN THE MATTER OF THE INHERENT JURISDICTION OF THE HIGH COURT

**ORDER MADE BY MR JUSTICE WILLIAMS SITTING IN PRIVATE ON 23RD
SEPTEMBER 2025**

UPON hearing from the Applicant Father in person.

AND UPON the Applicant informing the court that there are proceedings in India commenced by the respondent mother which are listed for hearing on 29th September 2025 and a mediation session to take place on 4th October.

IT IS ORDERED THAT

1. The application for the summary return of the children is listed for directions or summary return on 21st October 2025 with a time estimate of ½ hour. Both parties must attend the hearing in person.
2. The applicant shall file with the court and serve on the Respondent mother a statement in support of his application for the summary return of the children from India to England by 14th October 2025.
3. Permission to serve the respondent by email at sirisha9@hotmail.com

DATED ON 23RD SEPTEMBER 2025



fc

Please address all communications for The Family Division of the High Court, 1st Mezzanine, Queen's Building, Royal Courts of Justice, Strand, London WC2A 2LL quoting the number in the top right hand corner of this form. The Court Office is open between 10.00 a.m. and 4.30 p.m. on Mondays to Fridays.

D264



ADV SARWATE LETTER
.pdf
758 KB



KARKERA SIRISHA ORDER
BELOW EX.5 Copy.pdf
635 KB

BEFORE THE HON'BLE JUDGE FAMILY COURT NO.2, AT PUNE.

Petition/ 93/2025

Sirisha Karkera..... Petitioner

Vs

Kunal Karkera Respondent

**AN APPLICATION ON BEHALF OF RESPONDENT SEEKING TO
VACATE/SET ASIDE THE EX-PARTE ORDER DATED 1.10.2025**

That, the respondent most humbly submits as under :-

1. That the petitioner-wife has instituted the present petition seeking an injunction restraining the respondent-husband from continuing with proceedings instituted by him before the High Court of Justice, Family Division, London, in Case No. FD25P00529. An ad-interim ex-parte order has been passed by this Hon'ble Court and continues to operate.

2. That the present petition is wholly infructuous, misconceived, and not maintainable, in view of the fact that the High Court of Justice, London has already passed a final, sealed Return Order dated 29.10.2025, directing the immediate return of the minor children Dhruv and Agastya to England and Wales on or before 08.12.2025. This petition has turned infructuous as the UK Court has already passed the Return Order. The petition is not maintainable and is liable to be dismissed due to the petitioner's non-compliance with UK Court's notices, concealment of facts, and abuse of judicial process.

3. That the petitioner has suppressed from this Hon'ble Court that the UK High Court has:

(a) Declared the children as Wards of Court, domiciled in the UK;

(b) Held that the children were wrongfully removed from England on 12.03.2025

by the petitioner;

(c) Confirmed that the children are habitually resident in England & Wales;
(d) Asserted exclusive, continuing wardship jurisdiction until the children attain majority;

(e) Directed their mandatory return.
Such suppression renders this petition liable to be dismissed at the outset.

4. That the petitioner-wife deliberately failed to attend four hearings before the UK Court—23.09.2025, 14.10.2025, 21.10.2025, and 29.10.2025—despite due service and despite email acknowledgements wherein she opened all documents served upon her. Her conduct amounts to willful contempt of the UK High Court, which has been concealed from this Hon’ble Court.

5. That the petitioner’s contention that the UK Court has “no jurisdiction” is untenable, as jurisdiction has been judicially affirmed based on habitual residence, wrongful removal, and wardship authority — all binding factual findings.

6. That the reliefs sought by the petitioner are impermissible, as they effectively seek to restrain or nullify judicial orders passed by a foreign sovereign court exercising child custody jurisdiction under its inherent wardship powers. Such reliefs are contrary to:

- Surya Vadan v. State of Tamil Nadu (2015)
- Dinesh Singh Thakur v. Sonal Thakur (2018)
- Nithya Anand Raghavan (2017)

which uphold comity, discourage child abduction, and hold that suppression of facts disentitles a petitioner from any equitable relief.

7. That Para 12 of the UK Sealed Order expressly permits disclosure of the said order to any court in India, thereby demolishing the petitioner’s false plea that UK proceedings are non-est or illegal.

8. That the present Anti-Suit Petition is a counter-blast filed immediately after mediation failed in P.A. 730/2025 on 28.10.2025 and immediately before the UK hearing on 29.10.2025, demonstrating mala fide intent, forum shopping, and abuse of process.
9. That the Respondent has already placed on record his detailed affidavit narrating the entire chronology of events, service, petitioner's email acknowledgements, and her repeated refusal to comply. The respondent has filed his affidavit separately.
10. That the petitioner's own Anti-Suit Petition contains internal contradictions. She admits that the children lived and studied in England for several years, yet falsely denies UK jurisdiction. Her petition is based on falsehoods and suppression.
11. That the primary relief sought to restrain the respondent from prosecuting the UK case has become non-existent as the UK Court has already passed the Return Order. Hence, the petition has become infructuous and deserves dismissal. The petitioner has misled this Hon'ble Court in violation of equity – "He who comes into equity must come with clean hands."
12. That as per Section 41(g) of the Specific Relief Act, 1963, an injunction cannot be granted to prevent a continuing breach to which the plaintiff has acquiesced.
13. That it is clear that the petitioner is engaging in forum shopping to extort money and harass the respondent and his family.
14. That the respondent has been out of India for 7 years and in the UK for 6 years, where UK laws govern his habitual residence. Hence, approaching UK courts was appropriate and lawful.

15. That the Respondent reserves the right to file a detailed reply to the main petition only if directed.

16. That the petitioner has approached this Court with unclean hands, suppressed facts, distorted records, and sought equitable relief while being herself in contempt of the UK Court. In view of above this petition is infructuous and seeks dismissal.

PRAYER :- It is therefore most humbly prayed that this Hon'ble Court may be pleased to:

- (a) Dismiss the present Anti-Suit Injunction Petition as infructuous, non-maintainable, and based on deliberate suppression of material facts;
- (b) Respondent be exempted from filing reply to the main petition unless directed otherwise;
- (c) Vacate all ad-interim or interim orders passed in favour of the petitioner, especially the ex-parte ad-interim order dated 1.10.2025;
- (d) Hold that the UK Wardship and Return Order dated 29.10.2025 constitutes a valid judicial finding entitled to comity;
- (e) Impose exemplary costs upon the petitioner for abuse of process;
- (f) Grant any other relief in the interest of justice.

PUNE

DATED:19.11. 2025



RESPONDENT

Through Power of attorney Holder

LT COL KS GOPINATH (Retd)

BEFORE THE HON'BLE JUDGE, FAMILY COURT NO.-2 PUNE, AT PUNE.

P.B 93/2025

Sirisha Karkera..... Petitioner

Vs

Kunal Karkera Respondent

AFFIDAVIT

I, Shri Gopinath Karkera , Age-78, Occc. Retd., r/O-d414/ 1103, Sadnip Vihar, AWHO, Kadugodi Road, Kannamangala , Whitefield Bangalore (Power of Attorney Holder for my son **Kunal Karkera ,Flat No.-163, Sutton Plaza, London , United Kingdom, Sm14 FX, + 44 777 8139088, Kunal.karkera@gmail.com**, (who is respondent in the present matter) the respondent the matter and in such capacity I am able & competent to swear the present affidavit.

1. I say that I am well conversant with the facts and circumstances of the present matter as each facts stated in the accompanying application the same has been informed and explained to me and they are in my personal knowledge.
2. The contents of the application be read as part and parcel of this affidavit and are not repeated for the sake of brevity.
3. I say that I have gone through the contents of the application n and the same has been drafted by the counsel as per the instructions given by me which has been read over to me and I understand the same. I affirm on oath that the facts mentioned therein are true to my knowledge and belief. Hence, this affidavit.

Pune

Date 19/11/2025



I Know and Identify the deponent

Adv. Shweta Ankalwar(1644)

AFFIDAVIT

Solemnly affirmed before me
by me Gopinath karkera (POA. of Resp.).
who is identified by Shri.
Adv. Shweta Ankalwar.
who is personally known to me
Date 19/11/25
Superintendent
Family Court, Pune.

Respondent



Lt Col K S Gopinath (Retd)

BEFORE THE HON'BLE JUDGE FAMILY COURT NO. 2, PUNE

P.A. No. 730 / 2025

Mrs. Sirisha Kunal Karkera

...PETITIONER

VERSUS

Mr. Kunal Karkera

...RESPONDENT

**SAY TO AN APPLICATION ON OF THE RESPONDENT TO THE
APPLICATION TO INTERVIEW THE CHILDREN:-**

The respondent most humbly submits as under :-

1. At the very outset, the respondent states that the present application is not maintainable due to jurisdictional issues of the children. This application is **misconceived, frivolous, and devoid of merit**. It is a clear attempt to mislead this Hon'ble Court and to retain custody which is obtained in due absence of the respondent in **an ex parte manner**, citing extra extraordinary reason however, the fact is the petitioner came before the court with unclean hands in reality, she has abducted children.

Now, vide order minor children are wards of the High Court of Justice, Family Division, England and Wales, in proceedings bearing No. FD25P00529, by order dated 27 October 2025 and a RETURN ORDER for the children back to Uk has been passed on the 29 October 2025

2. That the present petition is wholly infructuous, misconceived, and not maintainable, in view of the fact that the High Court of Justice, London has already passed a final, sealed Return ORDER dated **29.10.2025**, directing the immediate return of the minor children Dhruv and

Agastya to England and Wales on or before 08.12.2025. This petition has turned infructuous as the UK Court has already passed the Return Order. The petition is not maintainable and is liable to be dismissed due to the petitioner's non-compliance with UK Court's notices and concealment.

3. The Petitioner, who herself holds Permanent Residency (*Indefinite Leave to Remain*) in the U.K.has unlawfully, deceitfully & in deliberate disregard of the Respondent's parental rights, removed the minor children from their *habitual residence* in England on **12 March 2025**. In doing so, she withdrew them from their educational institutions —*Overton Garage* and *Woodfield Primary School*— barely one day before, i.e., **11 March 2025**, by making false representations to the school authorities that the Respondent father had obtained employment in India and that the entire family was relocating thereto.
4. Such representation was entirely fraudulent, as evidenced by the Petitioner's own emails and communications to the said schools, copies of are attached herewith. By this deliberate act of misrepresentation, the Petitioner induced the school authorities to issue transferleaving certificates and thereby facilitated the wrongful removal of the children from the jurisdiction of the Courts of England and Wales.



Ancushka Burrell <aburrell@woodfieldprimary.com>

Fwd: Agastya Karkera Year 6 Thames

9 messages

Year6 Class <year6@woodfieldprimary.com>
To: Ancushka Burrell <aburrell@woodfieldprimary.com>

12 March 2025 at 11:49

----- Forwarded message -----

From: Sirisha Karkera <sirisha9@hotmail.com>
Date: Tue, Mar 11, 2025 at 8:04 AM
Subject: Agastya Karkera Year 6 Thames
To: Absence Wood Field <absence@woodfieldprimary.com>, Year6 Class <year6@woodfieldprimary.com>

Dear Ma'a,

I hope this mail finds you well.

I would like to inform you that due to a new work opportunity, we as a family are moving to India and hence Agastya will no longer be attending school.

Please could you email me his academic records so that I can submit them in India when we have secured admission there.

Many thanks,

Sirisha Karkera

Admissions Wood Field <admissions@woodfieldprimary.com>
To: Ancushka Burrell <aburrell@woodfieldprimary.com>

28 April 2025 at 11:30

Email for Agastya below.

----- Forwarded message -----

From: Absence Wood Field <absence@woodfieldprimary.com>
Date: Tue, 11 Mar 2025 at 08:11
Subject: Re: Agastya Karkera Year 6 Thames
To: Sirisha Karkera <sirisha9@hotmail.com>

Good morning,

Thank you for your email.

Please can you complete and return the attached form as soon as possible. We are unable to send any records without this form being completed.

Also can you email a copy of your flight details to India.

Kind regards
Carolyn Bird
Office Supervisor
Wood Field Primary School

[Quoted text hidden]

7/16/25, 9:08 AM

Email - c.treagus@overtongrange.sutton.sch.uk

From: D Dasgupta <d.dasgupta@overtongrange.sutton.sch.uk>
 Sent: 11 March 2025 08:43 AM
 To: sirisha9@hotmail.com <sirisha9@hotmail.com>
 Subject: FW: Dhruv Karkera Year 10 RO Leaving school

Good morning,

Thank you for informing us.

To be able to take him off roll, you will have to send us a copy of the flight ticket with his name on it and the home address he will be going to. If you have the name of the school he will be going to as well, it will be helpful.

Kind regards
 Admissions
 Overton Grange School
 Stanley Road
 SM2 6TQ

319/4019



From: Office at Overton Grange School <office@overtongrange.sutton.sch.uk>
 Sent: 11 March 2025 08:28
 To: D Dasgupta <d.dasgupta@overtongrange.sutton.sch.uk>; C Stringer <c.stringer@overtongrange.sutton.sch.uk>; A Gorley <a.gorley@overtongrange.sutton.sch.uk>
 Subject: FW: Dhruv Karkera Year 10 RO Leaving school

From: Sirisha Karkera <sirisha9@hotmail.com>
 Sent: 11 March 2025 08:05
 To: Office at Overton Grange School <office@overtongrange.sutton.sch.uk>
 Subject: Dhruv Karkera Year 10 RO Leaving school

Dear Ma'am,

I hope this mail finds you well.

I would like to inform you that due to a new work opportunity, we as a family are moving to India and hence Dhruv will no longer be attending school.

Please could you email me his academic records so that I can submit them in India when we have secured admission there.

Many thanks,

Sirisha Karkera



DocuSign Envelope ID: F3C898D1-646E-4253-B0F9-CBA67FC44C46



Wood Field Primary School

NOTIFICATION OF PUPIL LEAVING SCHOOL

CHILD'S NAME Agastya Kunal Karkera.....CLASS...6Thames

Last day of attendance ...10/03/2025. Date of Birth .26/04/2014.

Reason for leaving (please tick the appropriate box)

Leaving the country*

New Home Address (or current address if not moving). This part must be completed in all cases.

...401...Dunnoch, Nyati Enclave, Mohammedwadi, Pune, Maharashtra Pincode: 411060.....

* If moving abroad please provide date of leaving the UK and flights details: Date of leaving UK is 12/04/2025 ...Flight: BA0135 departing 12/03/2025...

Full Name and Address of New School

...To be confirmed after arrival in India.....

Do you have confirmation from the new school that your child has been accepted? To be confirmed after arrival in India

Planned start date : Mid June 2025

If your child has not yet been offered a place at another school please state below details of schools to which you have applied or give information about what arrangements have been made for the provision of your child's education.

Upon immediate return, we intend to homeschool till admission is secured. I will update you as soon as I have admission details.....

Parent/Guardian Contact Details:

Name of Parent/Guardian ...Sirisha Karkera.....

New Home Telephone Number (if known) ...Will obtain once in India and advise

Mobile Telephone Number ...current number: 07983113529

Work Telephone Number (if known)

Email address ...sirisha9@hotmail.com

Signed  Parent/Guardian Date ...11/03/2025.

Print Name ...SIRISHA KARKERA... Relationship to Child... Mother...

Incident relating to: Dhruv Karkera (Archived)	
Cara Biggin-Evans	Good morning, Dhruv Karkera will not be attending school from today as we are moving to India. A new job for his father has the family relocating. many thanks
Tue, 11 Mar 2025 16880	
07:53	
Attendance	
Status: Closed	
Assigned to: Nobody	

Accordingly, this Hon'ble Court has **devoid of jurisdiction** to entertain any petition touching the custody or welfare of the said minors. The respondent's filing of the present reply is **strictly under protest and shall not be construed as submission to the jurisdiction** of this Hon'ble Court. Without prejudice to the above preliminary objections, the respondent submits his **paragraph-wise reply** as under:

As to Para No. 1 :- The contents are a matter of record and need no specific traverse. The respondent, however, reiterates that the petitioner's main petition itself is not maintainable for want of territorial and subject-matter jurisdiction.

As to Para No. 2 :- The allegations of *emotional abuse, financial irresponsibility, instability, lack of support, volatile temperament, and manipulative conduct* are **wholly false, fabricated and malicious** and hence denied in toto. The respondent is an **exemplary husband and father**—a financially responsible professional who provided his family with the best education, housing, travel to holidays internationally, musical training and emotional stability, expensive gifts, RAFC training and robotics involvement of the children. The family lived comfortably in London; the children received premium schooling and were encouraged in sports and music. On the contrary, it was the respondent who supported the

petitioner through all family exigencies, encouraged her to visit India when her grandmother passed away, and even offered his parents' help for the children. The petitioner's own acts—coaching the children against their father and abruptly uprooting them from school and community—constitute emotional cruelty towards both the respondent and the minors. The respondent categorically denies every allegation of abuse.

As to Para No. 3:- The statements are partly matters of record but **do not absolve the petitioner of her wrongful act**. Her departure from the United Kingdom on 12 March 2025 with the children, without the respondent's knowledge or consent, amounts to **child abduction** under the *Child Abduction Act 1984 (UK)*. Had her intentions been bona fide, she would have approached the UK Court for relief instead of resorting to deceit. On **11 March 2025** the applicant has removed children from their schools by fraudulently stating that the respondent husband has obtained a new employment in India and hence the family wants to move to India. These mails were sent to the schools. The entire act was pre-planned and malicious in breach of the UK Laws and she has never paid any heed to the ensuring what is in the children's best interest. The petitioner has send **falsified messages to the respondent** pertaining to the children on the **11 March 2025**

As to Para No. 4 :- **The contents in the para are denied** in toto. After the petitioner's wrongful removal of children from london to India the petitioner has **consistently obstructed and frustrated the access** between the respondent and the children. She disconnected or time-limited calls, imposed recording conditions, and even denied contact on the children's birthdays. The assertion that the children "of their own volition" refused contact is false; their statements are clearly **tutored**. A parent who isolates children from the other parent engages in **parental alienation**, which is itself psychological abuse.

As to Para No. 5:- The wild allegations that the respondent “grabbed Dhruv’s neck” or “pushed him against a wall” are **malicious fabrications and denied in toto**. No such incident occurred, and the petitioner has not even cared to provide dates, times, and places. At most, the father had verbally corrected his teenage son for disobedience—a normal act of parental discipline. If any independent CCTV footage exists, the respondent welcomes its production to prove the falsity of the claim. The petitioner neither informed the police nor the local authority social service about any such incident. The respondent has never used physical force; he is a calm, responsible, and affectionate parent who always puts the children’s best interests above everything. Hence, this concocted allegation by the petitioner only serves the purpose of obtaining the sympathy of this hon’ble court and obtaining the interim custody orders fraudulently.

As to Para No. 6:- Every allegation is **false and concocted and denied in toto**. The respondent never demeaned the children or compared them unfavourably with others. He has always celebrated their individuality and achievements. The story of making children “walk 13–15 kilometres” or demanding petty expense accounts is absurd. Sometimes the family used to go to fun places like Legoland, Disneyland, Nico in Japan, Railway museums in Japan, Kawasaki Robotics centre, Mt Fuji sightseeing, and Shinkansen (Bullet) train travel, Sentosa island in Singapore, Universal studios in Singapore and innumerable outing and fun places where pictures and videos can be provided. In fact, the petitioner frequently spent lavishly on outings without the respondent’s knowledge, which he never objected to. He has bought them expensive gifts, attended their school music recitals, taken them for all extra curricular activities. **The petitioner’s distorted portrayal of trivial family conversations reflects her own insecurity and her own incompetence as a parent rather than any misconduct by the respondent.**

As to Para No. 7 :- Denied any wrongful intention here in toto. The alleged statement about the child becoming a “delivery boy” was a light-hearted, motivational remark taken entirely out of context. The respondent, a caring father, regularly encourages the children to excel academically and creatively. The petitioner’s hypersensitivity and deliberate misinterpretation of benign comments only demonstrate her intention to malign the respondent.

As to Para No. 8 :- Entire contents in the para denied. There was **no scuffle** during vacations . The respondent maintains discipline through calm discussion, not confrontation. The paragraph is a complete distortion designed to strengthen a false narrative.

As to Para No. 9 :- Denied in toto. The allegation that the respondent “pushed Dhruv out of the flat in freezing cold” is **false, malicious and defamatory**. On one occasion, the child used extremely foul language (“F*** off”) towards his father. The petitioner, instead of correcting the child, condoned the behaviour—thus encouraging disrespect. The respondent merely asked the child to calm down. There was no physical removal or harsh conduct. **The petitioner’s silence at that moment and her subsequent twisting of facts reveal her manipulative tendencies.**

As to Para No. 10 :- The petitioner’s reliance on Section 26 HMA is **misplaced and legally untenable**. This Hon’ble Court lacks jurisdiction to interview or pass orders concerning children who are **wards of the UK High Court**. Moreover, after eight months of the petitioner’s sole custody in Pune, the children’s minds are obviously **tutored and conditioned**. An interview at this stage would merely reproduce the petitioner’s coaching, not the children’s independent wishes. The petitioner should focus on their education rather than involving them in court proceedings. Moreover, the respondent father is trying relentlessly to ensure the

best for his children and is in contact with children, including the recent video call with them on 8 Nov 2025 and subsequent weekly calls.

As to Para No. 11 :- The contents in the para are denied in toto. The children are not fearful of their father; rather, they **appear anxious under the petitioner's psychological pressure**. The respondent has always been gentle and affectionate. Numerous photographs, video recordings, school records, gifts bought, and messages demonstrate the loving bond between father and sons. Any present reluctance stems from sustained manipulation by the petitioner.

As to Para No. 12 :- The contents in the para are denied in toto. The children, being minors, are impressionable and easily influenced. The petitioner's request for an "in-camera interview" is merely a device to **legitimise her tutoring** and fabricate evidence to support her false accusations through the mouths of children. The respondent strongly objects to such examination until the children are restored to neutral custody under the supervision of the competent UK courts .

As to Para No. 13 (Prayer) :- The respondent **vehemently opposes** the petitioner's prayer. The application is devoid of merit, filed with ulterior motives, and ultimately not in the best interest of children and deserves outright dismissal.

ADDITIONAL SUBMISSIONS

1. **Jurisdiction:** The minors are wards of the UK High Court; therefore, this Hon'ble Court has no jurisdiction under Section 9 CPC or Section 26 HMA.
2. Mrs Sirisha karkera is **ORDERED** by the High court of the UK to provide flight tickets for herself and the children for the purpose of return of the children to the respondent by **21 st November 2025** and they should return to the UK by **8 December 2025**.

Comity of Courts: Under the rulings in *V. Ravi Chandran v. Union of India* (2009 1 SCC 222), *Shilpa Aggarwal v. Aviral Mittal* (2010 1 SCC 591), and *Elizabeth Dinshaw v. Arvand Dinshaw* (1987 1 SCC 42), children wrongfully removed from a foreign jurisdiction 'must be repatriated.

Best Interests of Children: A healthy upbringing requires the active involvement of both parents (*Gaurav Nagpal v. Sumedha Nagpal*, 2009 1 SCC 42; *Yashita Sahu v. State of Rajasthan*, 2020 3 SCC 67). The respondent has always ensured excellent schooling, moral guidance and emotional warmth.

3. **Parental Alienation:** The petitioner is exhibiting classic symptoms of PARENTAL ALIENATION. Unless the children are promptly repatriated to their habitual residence, **they risk long-term psychological harm.**

PRAYER :- In view of the foregoing, the respondent most respectfully prays that this Hon'ble Court may be pleased to:

1. **Dismiss** the petitioner's application for in-camera interview of the children as **non-maintainable** and an **abuse of process and not in the best interest of the children;**
2. **Record** that the minors are **wards of the High Court of Justice, England and Wales**, and that this Hon'ble Court lacks jurisdiction over their custody
3. **Direct** the petitioner to cooperate with the lawful repatriation of the minors to their habitual residence in the UK; and
4. **Pass such further or other orders** as may be deemed just and proper in the interest of justice.

Place:


Power Of Attorney Holder for Respondent

Pune Date: 19.11. 2025

Mr. Gopinath Karkera

(Lt Col Karkera S Gopinath)
(Retd)

BEFORE THE HON'BLE JUDGE, FAMILY COURT NO.-2 PUNE, AT PUNE.

P.B 93/2025

Sirisha Karkera..... Petitioner

Vs

Kunal Karkera Respondent

AFFIDAVIT

I, Shri Gopi.nath Karkera , Age-78, Occc._Retd., r/O-d414/ 1103, Sadnip Vihar, AWHO, Kadugodi Road, Kannamangala , Whitefield Banglore (Power of Attorney Holder for my son **Kunal Karkera ,Flat No.-163, Sutton Plaza, London , United Kingdom, Sm14 FX, + 44 777 8139088, Kunal.karkera@gmail.com**, (who is respondent in the present matter) the respondent the matter and in such capacity I am able & competent to swear the present affidavit.

1. I say that I am well conversant with the facts and circumstances of the present matter as each facts stated in the accompanying application the same has been informed and explained to me and they are in my personal knowledge.
2. The contents of the application be read as part and parcel of this affidavit and are not repeated for the sake of brevity.
3. I say that I have gone through the contents of the application n and the same has been drafted by the counsel as per the instructions given by me which has been read over to me and I understand the same. I affirm on oath that the facts mentioned therein are true to my knowledge and belief. Hence, this affidavit.

Pune

Date 19/11/2025

I Know and Identify the deponent

Adv. Shweta Ankalwar(1644)


Superintendent
Family Court, Pune

AFFIDAVIT
Solemnly affirmed before me
by _____
who is identified by Shri.
_____ who is personally known to me
Date _____

Superintendent
Family Court, Pune

D18

VERIFICATION

I Kunal Karkera age 49 years Flat No 103, 16 Sutton Plaza, 16 Sutton court road, Sutton, SM1 4FX United Kingdom, through power of attorney holder his father Shri Gopinath Karkera do hereby take oath and state that the aforesaid matter is drafted by my counsel as per instructions given to her by me. The contents of the above paras No.01 to No. 13 and Prayer are explained to me in vernacular and I found that the same are true to the best of my knowledge, information and belief.

Hence verified and signed at Pune on this day of 16 November 2025


Kunal Karkera
Through POA Holder
(Respondent)



Identified and Explained by

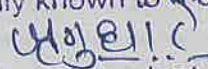
Adv. Shweta Ankalwar

AFFIDAVIT

Solemnly affirmed before me
by me. Gopinath Karkera, POA of Respondent
who is identified by Shri.
Adv. Shweta Ankalwar.
who is personally known to me

Date

18/11/25


Superintendent
Family Court, Pune

CC

ILR –Affidavit

BEFORE THE HON'BLE JUDGE FAMIL COURT NO.-2 PUNE

P.A. No./730/2025

Sirisha Karkera — Petitioner

Versus

Kunal Karkera — Respondent

**AFFIDAVIT ON BEHALF OF RESPONDENT REGARDING PETITIONER'S
INDEPENDENT IMMIGRATION ACTIONS AND ILR STATUS AND
MISREPRESENTATION TO COURT**

I, Kunal Karkera, aged about 50 years, residing at Flat 103, 16 Sutton plaza, 16 Sutton court road, sutton SM1 4FX, through my power of Attorney holder my father Shri Gopinath S Karkera Age-~~78~~ yrs, Occupation.-Retired, R/o -D14/1103 sandeep vihar, AWHO, KADUGODI, KANNAMANAGALA, WHITEFILED, BANGALORE -560067 the Respondent in the above matter, do hereby solemnly affirm and state on oath as follows:

1. I say that I am the natural father of the minor children Dhruv Kunal Karkera (aged 15 years) and Agastya Kunal Karkera (aged 11 years), and am fully competent to depose to the facts stated herein.
2. I say that in view of the fact that the High Court of Justice, London has already passed a final, sealed Return ORDER dated **29.10.2025**,

directing the immediate return of the minor children Dhruv and Agastya to England and Wales on or before 08.12.2025.

3. I say that the petitioner has misled this honorable family court PUNE, to obtain the jurisdiction and accordingly obtained the Interim custody order **1/10/2025** that they are permanently intending to stay in India and they have left the UK permanently.
4. I say that The Petitioner has alleged the respondent that he has surreptitiously used his good office to obtain the ILR for the petitioner and the children as per **PARA 26 and page 26-27** of the **ANTI SUIT injunction** and a concerted story thereafter. The order passed by practising fraud upon the court can never be executed.
5. I say that *However as per her MAIN PETITION PARA 23, PAGE 17 and page 18 which boldly mentioned HUSBAND NOT APPLYING FOR WIFE AND CHILDREN'S ILR (INDEFINITE LEAVE TO REMAIN):*
6. *"a. The petitioner and the respondent having completed five years of stay in U.K. thereby,qualifying for ILR (indefinitely leave to remain)similar to permanent residency of U.K. were eligible to apply. The company wherein, the respondent was working had agreed to sponsor for the respondent and also pay proportionate*

amount for the petitioner and the two children. However, the respondent had other ideas in regards to the same. While he did not discuss about applying for ILR for the entire family with the petitioner, he did discuss the same with his mother. The petitioner came to know that the respondent had applied for ILR only for himself and had not applied for the petitioner and the children. When questioned, the respondent stated that his mother had advised as to what good would it make for the petitioner and the children and why spend on them. The petitioner was aghast. The respondent and his mother always wanted the petitioner and children to depend upon him in all ways. This is an act of cruelty.

7. b. The petitioner states that at that point of time the period to qualify for ILR was 5 years and the petitioner and the children had qualified for the same. By the time the petitioner could impress upon the respondent which was much against the likings of the respondent, the applications for ILR for the petitioner and the respondent came to submit separately after much delay of the respondent having filed his application led to certain questions and queries being asked. This delayed the processing of the ILR. The respondent got ILR within 1 day of completing formalities. Other

formalities like bio-metrics etc. were done the subsequent day and ILR was processed whereas the petitioner and the children remained in limbo. Considering the fact that the petitioner and the children now have permanently come to however India, the said application shall subsequently fail. The petitioner looks back and states that the intent of the respondent was evident. Anything good for the petitioner and the children was also looked at as either mercy on them or was at the whims of the respondent. If the respondent wanted the said applications of ILR, he could have applied for him and the entire family together which would have eased the process and would have made the process of sanctioning them faster. The respondent with that type of purpose being the traits of narcissism.

8. I say the true picture is that the petitioner has applied for ILR (Indefinite leave to remain-Permanent residency) in 27 November 2024 by paying an amount of £8655 for herself and 2 children. (Bank transaction given below). On 13 December 2024 the petitioner and the children went for an interview for the ILR in London Due to some error the ILR had to be applied again in January 2025.

9. I say that The petitioner again applied for ILR in the month of February on the **17 February 2025** by paying another approx **£8655 (EXHIBIT-2)** second time.(Bank transaction given below) In all the ILR documents nowhere the respondents communication details or anything is submitted. The respondent had no knowledge of communication details with regard to minor children of ILR status as only her email id were in all correspondence with UKIV, immigration authorities (sirisha9@hotmail.com).
- 10.I say that The petitioner did all those in a very secretive manner. She was notified of the ILR on the **12 April 2025** and then the same day the petitioner has applied for **E-Visa (New BRP format–Biometric card)**
- 11.I say that the respondent(Myself)was absolutely in dark and all details of the petitioner were only given. The petitioner did not give any information of the primary visa holder (ie the respondent) in any correspondence
- 12.I say that the respondent came to know about all this after he contacted the Home office. The respondent has attached The SARU (Subject access request unit) **reference number: 1293099 SARU : REPORT** contents. The department of UK Visa and immigration of the Home

office which carried out an investigation and the report was released to the respondent.

13. I say that On **Page No-4** of this report a new phone number of INDIA **+91 9175599300** of the petitioner has been mentioned/ uploaded and on page number 5 of this report it mentions the **date of last update— 12 April 2025**. In this document all petitioners details are given, it can only be filled by the petitioner herself and she has been intimated by the UK authorities of her ILR as there is no trace of the respondents email id on any of these reports . The entire history in the SARU report.

14. I say that **After she obtained the Visa on 12th April 2025 the petitioner filed for Divorce Petition on 19th April 2025.**

15. I say that by this ILR on petitioner's own volition it confirms that the petitioner and the children have no intention to stay in India and every positive intention to return back to UK because now the petitioner and the children are no more dependent on the respondent's permanent residency and status. Till the obtaining of ILR the petitioner was playing hide and seek game with the respondent.

16.. I say that regarding the Court proceeding in UK the petitioner-wife deliberately failed to attend hearings before the UK Court and reply to the hearing **23.09.2025, 14.10.2025, 21.10.2025, and 29.10.2025**—Despite due service and despite email acknowledgements and **video links to attend court hearings sent to her by the royal court of Justice** wherein she opened all documents served upon her. Her conduct amounts to willful contempt of the UK High Court, same concealed from this Hon'ble Court.

17. I say that proof of that she opened all the emails have been submitted to the royal court of Justice UK, family division, a court very competent and having proper jurisdiction and had the first ORDER passed reading wardship and RETURN Order on the **21st October and 29 October 2025**

18.I say that the petitioner has lied regarding the application of the ILR and hiding true facts . Her intend was clearly to get her ILR for herself and the children and then leave the respondent.

Exhibit-1 The ILR was first applied on 28 Nov 2024, (Highlighted in yellow)

AMOUNT OF £8655 WAS Paid on 28 Nov 2024, was paid again

HSBC  UK

HSBC Advance

Contact tel 03457 404 404
see reverse for call times
Text phone 03457 125 563
used by deaf or speech impaired customers
www.hsbc.co.uk

6 November to 5 December 2024

Your Statement

Account Name
Mr Kunal Karkera & Mrs Srishta Karkera

Sortcode Account Number Sheet Number
40-34-18 84556135 248

Your HSBC Advance details			
Date	Payment type and details	£ Paid out	£ Balance
	))) BALANCE BROUGHT FORWARD		63,373.21
	))) TFL TRAVEL CH	3.50	
	))) TFL.GOV.UK.CP	69.48	63,373.71
26 Nov 24	))) VUDAIONE LTD		
	))) EXTERIAN UK	14.99	
	))) WWW.EXTERIAN		
	))) POUNDLAND LTD - 20	15.00	
	))) SUTTON		
	))) GREGGS PLC	6.95	
	))) SUTTON		63,207.29
28 Nov 24	CR DECHMANN SH		1,116.95
	))) 35A049076113 LTR		
	))) LIVERPOOL	8,655.00	
	))) SAINSBURY'S SMKTS	34.50	
	))) SUTTON		
	))) TFL TRAVEL CH	12.60	55,600.14
	))) TFL.GOV.UK.CP		
29 Nov 24	))) TFL TRAVEL CH	14.60	
	))) TFL.GOV.UK.CP		
	))) POUNDLAND LTD - 20	6.00	55,659.54
	))) SUTTON		
02 Dec 24	))) LBS C TAX	181.00	
	))) NATWEST BANK	1,398.00	
	))) RENT		
	))) 103-ET-KARKERA	2,050.00	
	))) CASH HSBC DECUZ		
	))) Sutton Town @15.54	100.00	
	))) TFL TRAVEL CH		
	))) TFL.GOV.UK.CP	1.75	
	))) POUNDLAND LTD - 20		
	))) SUTTON	9.00	
	))) TFL TRAVEL CH		
	))) TFL.GOV.UK.CP	12.60	
	))) SAINSBURY'S SMKTS		
	))) SUTTON	63.43	
	))) A TO Z FRESH		
	))) SLOUGH	2.19	51,541.04
04 Dec 24	))) TFL TRAVEL CH		
	))) TFL.GOV.UK.CP	12.60	
	))) SAINSBURY'S SMKTS		
	))) SUTTON	38.68	
	))) SAINSBURY'S SMKTS		
	))) SUTTON	56.20	51,735.06
05 Dec 24	))) TFL TRAVEL CH		
	))) TFL.GOV.UK.CP	12.60	
	))) BALANCE CARRIED FORWARD		51,720.46

Exhibit -2 The ILR re-applied in 17 February by the petitioner (Highlighted in yellow) . AMOUNT OF £8655 WAS Paid on 17 Feb 2025, was paid again

Contact tel 03457 404 404
see reverse for call times
Text phone 03457 125 563
used by deaf or speech impaired customers
www.hsbc.co.uk

6 February to 5 March 2025

Your Statement

Account Name
Mr Kunal Karkera & Mrs Sirisha Karkera

Sortcode Account Number Sheet Number
40-34-18 84556135 258

Your HSBC Advance details				
Date	Payment type and details	£ Paid out	£ Paid in	£ Balance
11 Feb 25	VIS BALANCE BROUGHT FORWARD LONDON CHESS ACADE LONDON			59,013.98
12 Feb 25	BP GREEN ENERGY Acc 1508261	94.36		
	))) TFL TRAVEL CH TFL.GOV.UK/CP	12.60	99.00	59,112.98
13 Feb 25	VIS INSITE ENERGY LTD PETERBOROUGH	235.43		
	))) TFL TRAVEL CH TFL.GOV.UK/CP	12.60		59,006.02
	))) POUNDLAND LTD - 20 SUTTON	9.70		
	))) ASDA STORES SUTTON	5.59		58,743.70
14 Feb 25	))) TFL TRAVEL CH TFL.GOV.UK/CP	10.50		58,732.20
17 Feb 25	VIS SAINSBURYS S/MKTS SUTTON	82.03		
	VIS 25AA050405318 LTR LIVERPOOL	8,655.00		
	))) Sutton Food Centre Sutton	2.88		
	))) Dosa Bhavan Sutton	20.90		49,971.39
18 Feb 25	VIS SUTTON & EAST SURR REDHILL	325.80		
	))) POUNDLAND LTD - 20 SUTTON	25.50		49,620.09
20 Feb 25	))) TFL TRAVEL CH TFL.GOV.UK/CP	12.60		49,607.49
23 Feb 25	CR K LINE A Albalkini 15WY 21 Feb-Microw		2,235.60	
	))) TFL TRAVEL CH TFL.GOV.UK/CP	12.60	890.51	
	))) ASDA STORES SUTTON	30.73		56,690.27
24 Feb 25	))) TFL TRAVEL CH TFL.GOV.UK/CP	12.60		
	))) TFL TRAVEL CH			

On 27 February 2025(Highlighted in yellow) . AMOUNT OF £8580 was credited back into the account due to the double payment after

deduction for admin work.

HSBC  UK

HSBC Advance

Contact tel 03457 404 404
see reverse for call times

Text phone 03457 125 563

used by deaf or speech impaired customers
www.hsbc.co.uk

6 February to 5 March 2025

Account Name
Mr Kunal Karkera & Mrs Sirisha Karkera

Your Statement

Sortcode Account Number Sheet Number
40-34-18 84556135 259

Your HSBC Advance details			
Date	Payment type and details	£ Paid out	£ Paid in
			£ Balance
	))) BALANCE BROUGHT FORWARD		56,661.57
	A TO Z FRESH		
	SLOUGH	19.26	56,642.31
25 Feb 25	VIS Netflix.com	4.99	
	Los Gatos		
	))) TFL TRAVEL CH		56,624.72
	TFL.GOV.UK/CP	12.60	
26 Feb 25	DD VODAFONE LTD	53.09	
	VIS EXPERIAN UK	14.99	
	WWW.EXPERIAN.		
	))) TFL TRAVEL CH		
	TFL.GOV.UK/CP	12.60	
	))) ASDA STORES		56,504.72
	SUTTON	39.32	
27 Feb 25	VIS 2SAA049076(11) LTR		8,580.00
	LIVERPOOL		
	VIS Amazon Prime*R040H	8.99	
	amzn.co.uk/pm		
	))) TFL TRAVEL CH		65,063.13
	TFL.GOV.UK/CP	12.60	
28 Feb 25	CR DEICHMANN SH		1,028.47
	BP Richard Luck		
	Agastya piano exam	62.00	
	VIS A TO Z FRESH		66,037.12
	SLOUGH	2.48	
03 Mar 25	DD LBS C TAX	181.00	
	DD NATWEST BANK	1,398.03	
	SO RENT		
	KARKERA101.ET	2,149.00	
	VIS SAINSBURYS S/MKTS		
	SUTTON	66.12	
	VIS TSGN SN SUTTON SST		
	SUTTON	20.00	
	VIS TSGN SN SUTTON SST		
	SUTTON	20.00	
	VIS A TO Z FRESH		
	SLOUGH	5.00	
	VIS TESCO STORES 5374		
	SUTTON	6.50	
	))) TFL TRAVEL CH		
	TFL.GOV.UK/CP	5.00	
	))) POUNDLAND LTD - 20		
	SUTTON	3.25	
	))) ASDA STORES		
	SUTTON	12.19	62,160.33
05 Mar 25	BALANCE CARRIED FORWARD		62,160.33

110 Grey Street Newcastle upon Tyne NE1 6JG

19. I state that the High Court of Justice, London has already passed a final, sealed Return ORDER dated 29.10.2025, directing the immediate return of the minor children Dhruv and Agastya to England and Wales on or before 08.12.2025.

20. I state that the respondent and his family have been out of India for 7 years in the UK and in Tokyo. They have spent close to 6 (six) years in the UK, where UK laws govern his habitual residence. Hence, approaching UK courts was appropriate and lawful.

21. That the petitioner has approached this Court with unclean hands, suppressed facts, distorted records, and sought equitable relief while being herself in contempt of the UK Court. In view of above this petition is infructuous and seeks dismissal.

22. It is therefore most humbly prayed that this Hon'ble Court may be pleased to that the UK Wardship and Return Order dated 29.10.2025 constitutes a valid judicial finding entitled to comity;

I state that what is stated in the foregoing paragraphs no.1 to 18 of the present petition are true to my own knowledge, belief and information and I believe the same to be true whereas the last paragraph is the prayer clause.

Pune

Date

Adv. Shweta Ankalkar
19/11/2025
Kalkar

I know and Identify the Deponent

Adv. Shweta Ankalkar
C1699

RESPONDENT

Through Power of attorney Holder

Chaitanya S Gopinath
(Retd)

AFFIDAVIT

Solemnly affirmed before me
by Gopinath Karkar
who is identified by Shri.
Adv. Shweta Ankalkar
who is personally known to me
Date 19/11/2025
Superintendent
Family Court, Pune

BEFORE THE HON'BLE JUDGE FAMILY COURT NO.-2 AT PUNE

P.A. No./730/2025

Sirisha Karkera — Petitioner

Versus

Kunal Karkera — Respondent

**AFFIDAVIT ON BEHALF OF RESPONDENT REGARDING
PETITIONER'S CONCEALMENT AND MISREPRESENTATION IN
UK SCHOOL ADMISSION PROCESS**

I, Kunal s/O Gopinath Karkera, aged about 50 years, residing at Flat 103, 16 Sutton plaza, 16 Sutton court road, sutton SM1 4FX, through my power of Attorney holder my father Shri Gopinath S Karkera Age-77 yrs, Occupation.- Retired ,R/o -D14/1103 sandeep vihar, AWHO, KADUGODI, KANNAMANAGALA, WHITEFIELD, BANGALORE -560067 the Respondent in the above matter, do hereby solemnly affirm on oath as follows:

1. I say that I am the natural father of the minor children Dhruv Kunal Karkera (aged 15 years) and Agastya Kunal Karkera (aged 11 years), and am fully competent to depose to the facts stated herein
2. I say that in the UK choosing the state school is not up to the parent but by the government or the school allocation authorities depending on various parameters laid out by them

School Appeal Affidavit

3. I say that Mrs Sirsiha Karkera and myself were awaiting for school allocation for our younger son during **First week on March 2025**.
4. I say that when the school allocation took place and Agastya Karkera did not get the school we desired. Agastya karkera was allocated Overton Grange school, same school as his elder brother Dhruv karkera.
5. I say that on the **06 March 2025 06:57AM LT** the petitioner wrote a mail to the school which we both parents keen on Harris Academy, Sutton. Agastya was already on the waiting list on this school. The petitioner wrote a mail attached saying "Agastya himself was very happy and looking forward to being in harris and quite devastated that he is not considered"
6. I say that on the same day **06 march 2025 at 07:48 AM** Mrs Karen Palm, the admission officer replied to the petitioner appeal form and asked the parent to fill the form and an independent appeals panel to consider the academy's reasons for refusal.
7. I say that on the **9 th March at 11:00 LT**, the petitioner shared the Admission appeal form to the school attached below application reference : **319-2025-09-E-000874** giving some reason,
8. I say that she deliberately did not keep me in any communication regarding the Agastya's appeal process

9. On the **10th March 2025** Mrs Karen Palm communicated with Mrs Sirisha karkera with the documents are required to complete the appeal process.

10.I say that there was very clear indication based on above facts the petitioner has every clear intention to continue schooling in U.K.

11.I say that I even assured the petitioner that we will put both the children in extra classes if required same as we had done while Agastya was preparing for his Grammar school examination in the month of **August 2024**.

12.I say that on the **12th March 2025**, the petitioner then abducted the children and then went to India and put false allegations of cruelty on the Respondent .

13.I say the on **19 th March** the respondent went to the school and met Mrs Karen Palm, by that time the petitioner had snapped all communication lines with the respondent putting all false allegation of cruelty on him

14.I say that in all the communication the petitioner kept the Respondent out of the chain of communication and didn't want respondent to know her malicious plan

Exhibit -1: Sirisha appeal to the school (Harris Academy)

School Appeal Affidavit

LETTER WRITTEN
ON MARCH 9TH
TO SCHOOL IN 2025
Lk

To

Sutton Admissions Team

Sub: Appeal on Application outcome Application Reference: **319-2025-09-E-000874**

Dear Sir/Ma'am,

My son, Agastya Karkera, Application Reference: **319-2025-09-E-000874**, has been awarded a place for year 7 at Overton Grange School.

This school was not on our list of preferred schools. And while my older son, Dhruv Karkera, has been going to this school since year 9, I have watched him struggle to thrive with the continuously disruptive classrooms, having a negative effect on his self esteem, his overall grades and even his mental wellbeing.

Despite applying multiple times to have him moved to a school where the teaching quality and the standard of students interested in learning so that he may gain back his confidence and love for overall reading and learning, no new school was allocated.

I know fear that the same decline will be seen in my younger son as he has also been allocated Overton Grange simply because his older brother attends there. I am deeply saddened and disheartened as a mother with this decision taken by the school allocation team.

We made sure to apply for schools other than Overton Grange seeing how much our older son has suffered and continues to do so as you have not allocated him a better school. And now we cannot in all good conscience watch our younger child go through the same trauma.

We most reluctantly accept the Overton Grange seat for Agastya, and we will most definitely go through the appeals process for getting Agastya into the preferred schools.

Exhibit -2 (Mrs karen Palm reply to Sirisha on the 10 March 2025 on the documents required)

From: Admissions (HASU)
Sent: 10 March 2025 10:03
To: 'Sirisha Karkera' <sirisha9@hotmail.com>
Subject: SUMMER 2025 - Admissions Appeal

Dear Mr. and Mrs. Karkera

I confirm receipt of your completed appeals form for Agastya Kunal Karkera. Please note, I have yet to receive the supporting paperwork:

- Copy of Maths assessments carried out by Wood Field Primary
- Copy of English assessments carried out by Wood Field Primary
- Praise shout outs awarded to Agastya by his class teachers from years 5 and 6
- Copy of our tenancy agreement mentioning our address
- Copy of Birth certificate of Agastya Kunal Karkera
- Copy of Passport of Agastya Kunal Karkera

Please can you advise when this will be sent to me, thank you?

Kind regards

Mrs Karen Palm
Admissions Officer

<https://mail.google.com/mail/u/0/?ik=5329b19952&view=pt&search=a1&permmsgid=msg-f:1827836231626087192&siml=msg-f:1827836231626...> 3/8

School Appeal Affidavit

Exhibit -3 (Mrs Sirisha karkera mail to Mrs karen Palm on the 09 March 2025 attaching the filled up appeal form)

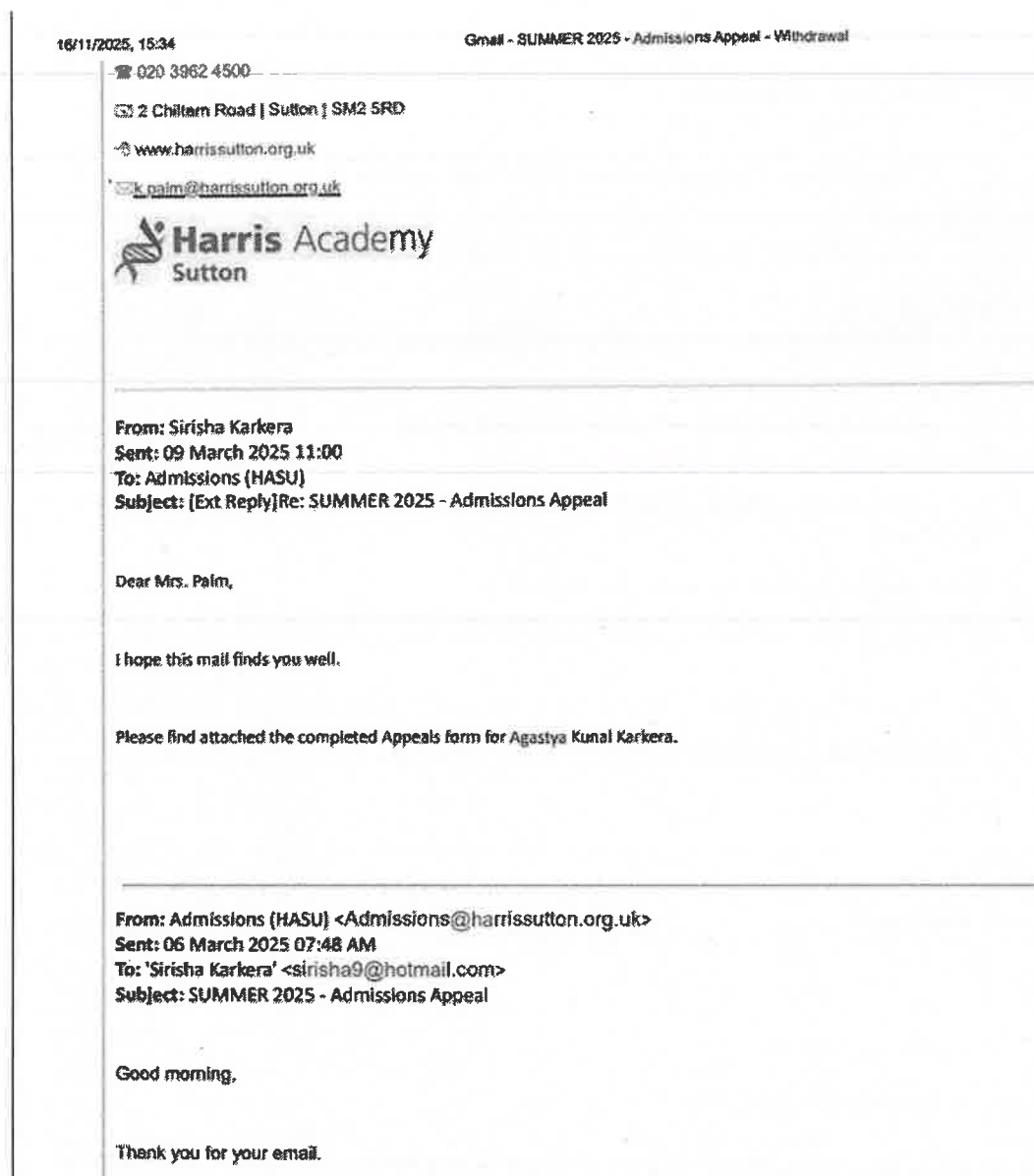


Exhibit -4 (Mrs Karen Palm mail to Mrs Sirisha karkera on the 6th March 2025 detailing the requirement for appeal)

From: Admissions (HASU) <Admissions@harrissutton.org.uk>
Sent: 06 March 2025 07:48 AM
To: 'Sirisha Karkera' <sirisha9@hotmail.com>
Subject: SUMMER 2025 - Admissions Appeal

Good morning,

Thank you for your email.

Please find attached the appeals form for the Year 7 September 2025 intake. Deadline to submit the completed paperwork to me (via email or post) is 4pm on 31 March 2025.

The Academy will arrange for an Independent Appeals Panel to consider the Academy's reasons for refusal and your reasons for wanting to attend the Academy. The Panel will consist of three people (two will have education experience and one will be an independent person with no education experience).

The Panel will consider the case put forward by you and the Academy. They must consider the admission arrangements for the Academy and the reasons why you want to attend this particular school. The Panel must exercise its discretion by balancing the weight of your argument (for wanting to attend) against the Academy's reasons for refusal i.e. the prejudice that one more student would cause to the education of the students already

<https://mail.google.com/mail/u/0/?ik=5329b19952&view=pt&search=ai&permmsgid=msg-f:1827836231628087102&siml=msg-f:1827836231628087102> 4/5

16/11/2025, 15:34

Gmail - SUMMER 2025 - Admissions Appeal - Withdrawal

offered and the Health and Safety of all the students already attending the Academy, also taking into account the Academy's published admission arrangements.

The decision of the Independent Appeals Panel is binding on the Admissions Authority and the Parents.

All appeals will be heard on 4th & 5th June 2025. The specific date and time will be advised to you in due course.

Appellants must ensure that any further evidence not included with their initial appeal, is received by 4pm on 12 May 2025. Any additional evidence or information received after this date might not be considered at the appeal hearing.

Kind regards

Mrs Karen Palm

Admissions Officer

☎ 020 3962 4500

📍 2 Chiltern Road | Sutton | SM2 5RD

🌐 www.harrissutton.org.uk

✉ k.palm@harrissutton.org.uk

 **Harris Academy**
Sutton

Exhibit -5 (Mrs Sirisha karkera mail to Mrs karen Palm on the 06 March 2025 seeking guidelines for appeal and admission into Harris academy)

From: Sirisha Karkera <sirisha9@hotmail.com>
Sent: 06 March 2025 06:57
To: Admissions (HASU) <admissions@harrissutton.org.uk>
Subject: [Ext Sender] Admissions Appeal

CAUTION: This email originated from outside of the Harris Federation. Do not click links or open attachments unless you recognise the sender and know the content is safe.

Dear Ma'am,

I hope this mail finds you well.

<https://mail.google.com/mail/u/0/?ik=5329b19952&view=pt&search=all&permmsgid=msg-f:1827836231628087192&simpl=msg-f:1827836231628...> 5/6

16/11/2025, 15:34

Gmail - SUMMER 2025 - Admissions Appeal - Withdrawal

I would like to appeal your decision to put Agastya Karkera on the waiting list for entry into Year 7.

My husband and I have attended a tour of your esteemed school and were happy and hopeful that our younger son would be able to attend Harris Academy Sutton. We wanted him to be able to benefit from the excellent teaching and the strong science emphasis that your school has.

Finding out that he has been allocated a school we never wanted and has been put on the wait list in Harris has been quite disappointing. Agastya himself was very happy and looking forward to being in Harris and is quite devastated that he has not been considered.

We would request you to send us an Appeal Form so that we can begin the process immediately.

Sincerely,

Sirisha Karkera

Harris Federation Privacy and Confidentiality Notice

In view of the fact that the High Court of Justice, London has already passed a final, sealed Return ORDER dated 29.10.2025, directing the immediate return of the minor children Dhruv and Agastya to England and Wales on or before 08.12.2025.

That the respondent and his family have been out of India for 7 years in the UK and in Tokyo. **They have spent close to 6 (six) years in the UK**, where UK laws govern his habitual residence. Hence, approaching UK courts was appropriate and lawful.

That the petitioner has approached this Court with unclean hands, suppressed facts, distorted records, and sought equitable relief while being herself in contempt of the UK Court. In view of above this petition is infructuous and seeks dismissal.

It is therefore most humbly prayed that this Hon'ble Court may be pleased to: Hold that the UK Wardship and Return Order dated 29.10.2025 constitutes a valid judicial finding entitled to comity.

I state that what is stated in the foregoing paragraphs no.1 to 18 of the present petition are true to my own knowledge, belief and information and I believe the same to be true whereas the last paragraph is the prayer clause.

Pune

Date 19.11.2025

Holder



I know and Identify the Deponent

Adv. Shweta Ankalwar (1644)


RESPONDENT

Through Power of attorney



u) an interim order be passed in terms of prayer clause a-c above.

e) Any other just and equitable order may kindly be passed in the interest of justice.

PUNE

DATED: 19/04/2025

Burkha
PETITIONER

ADV ABHIJIT SARWATE

order

to petitioner & her adv. present-
Respondent's counsel called
absent. This application is required
to be decided on merit after
hearing both sides however, con-
sidering the circumstances on record
& at present custody of children
are with mother till the decision
of this application on merit
physical custody of children be
retained with petitioner. petitioner
is directed to give virtual access
of children to respondent if asked

Photocopy Compared by



TRUE COPY

Superintendent

M:9923000458

E:Sarwate_works@hotmail.com

October 8, 2025

TO WHOMSOEVER IT MAY CONCERN

The present letter under my signature is issued to give the transcribed version of the hand-written order passed by the Hon'ble Family Court of Pune in the petition between Shirisha Kunal Karekar V/s. Kunal Karkera bearing Petition A No. 730/2025.

Order:

Petitioner and her Adv. present Respondent's counsel called absent. This application is required to be decided on merit after hearing both sides however, considering the circumstances on record and at present custody of children are with another till the decision of this application on merit physical custody of children be retained with petitioner. Petitioner is directed to give virtual access of children to respondent, if asked for the same.

1/10/2025**FC-2**

I have also annexed the photocopy of the certified copy for your kind perusal and reference. The hand written order of the Hon'ble Judge of the Family Court No. 2, is found on the last page of the attached document.

Thanking you,


ADV. ABHIJIT SARWATE

Enclosure : Copy of the order.

**BEFORE THE HONOURABLE FAMILY COURT NO. 2 PUNE,
AT PUNE**

P.A. NO: 730/ 2025

MRS. SIRISHA KUNAL KARKERA

... PETITIONER

V/S.

MR. KUNAL KARKERA

... RESPONDENT

APPLICATION ON BEHALF OF THE PETITIONER IS AS UNDER:

1. The petitioner has filed the present petition seeking relief of divorce, maintenance, compensation, an order of residence and custody of children more specifically stated in the petition.
2. The petitioner was constrained to live separate from the Respondent owing to a prolonged history of **emotional abuse, continued instability, financial irresponsibility**, and lack of support during critical health and family situations. The respondent's **volatile temperament, manipulative conduct**, and **complete lack of emotional contribution** to the child's well-being over the past year. The children were exposed to high levels of emotional turmoil due to the respondent erratic behaviour.
3. That the petitioner had left the home on 12th March 2025, along with children Master Dhruv Kunal Karkera born on 18/07/2010, who is aged 14 years, as on today. Master Agastya Kunal Karkera is born on 26/04/2014 and reached India. The respondent came to know about the same on 13th March 2025. He has later filed criminal case of abduction.
4. The Petitioner has **not denied access or communication arbitrarily**. The children have, of their own volition, **repeatedly refused contact** with the respondent and has

expressed **fear, discomfort and anxiety** stemming from past experiences.

5. The petitioner states that on one day Dhruv replied that it was his holidays and that he would like to enjoy. The respondent suddenly overwhelmed with anger literary grabbed Dhruv's neck and pushed him against the wall During every weekend, there were fights between the petitioner and the children elder one specially with the respondent. The altercation is admitted.
6. The respondent would constantly undermine the children's confidence by stating that they were like their mother, a North Indian, dumb, as compared to his sister's children. That the Respondents actions While in japan Though earning well the children were sometime made to walk 13 – 15 kilometres. The Petitioner further submits that she was called to give accounts even for petty things children bought, etc.. The Respondent's behaviour has had a **profound psychological impact on both the childrens**, who has clearly and consistently expressed **unwillingness to meet or speak to his Respondent**.
7. The child Dhruv has been told that he will be a delivery boy. The respondent admits the same at para 33 of the alleged reply.
8. There is admission of a scuffle during vacations on studying. The respondent admits the same at para 44 page 25 of the alleged reply.
9. The children have been resorted to extreme behaviour about kicking him out of the house in freezing cold as stated in para 1 on page 11 of the retention custody application. The respondent has admitted that he pushed Dhruv out of the flat at para 51 page 31 of the alleged reply.
10. That the provisions of **Section 26 of Hindu Marriage Act, 1955** mandate that the **Court may pass interim orders**

in respect of custody of the children, consistently with their wishes. That it has been held by the Hon'ble Supreme Court of India, **that it is the duty of the trial Court to cause the appearance of minor children before the Court and hold the interview of children in camera, to know the view of the children.** That considering the fact that the children are not ready to meet the father, it is necessary that the wish of the children Master Dhruv Kunal Karkera who is aged 15 years and Master Agastya Kunal Karkera who is aged 11 years is required to be ascertained, before hearing any application for access.

11. The children are fearful of their father. The respondent is to be blamed for this.
12. Thus on holistic consideration of the above, the interview of the children who are 15 and 11 respectively be taken.
13. It is therefore be prayed that:
 - a. This application be allowed.
 - b. Children's interview may kindly be conducted to ensure the wish and well-being of the children Master Dhruv Kunal Karkera and Master Agastya Kunal Karkera.
 - c. Any just and equitable order in the interest of justice may kindly be passed.

PUNE

DATED: 01/10/2025


PETITIONER


ADV. FOR PETITIONER

Kingdom. Further **both the children have been in the sole custody of the petitioner since 12/03/2025.**

- 5) The petitioner has been solely catering to the children as enumerated hereunder. The petitioner states that she has catered to the emotional, physical, monetary, educational, religious and overall development of the children. The petitioner states that when she alone is catering to the said needs of the children, also being the mother, she is entitled to seek such declaration as prayed.
- 6) The petitioner states that she has detailed out in her petition, the reasons for seeking necessary relief. The petitioner relies upon the same as a part and parcel of this application and does not reproduce for the sake of brevity. At this juncture vide an interim order, the petitioner is stating all that she is catering to vis-a-vis the children.
 - a. The educational need about the children in regards to school, extracurricular activities. The efforts taken by the petitioner for overall development of the children.
 - b. The monetary needs of the children. Various hobbies of the children and the petitioner for holistic development.
 - c. The amenities, facilities for the conducive atmosphere for their growth. The help in form of maids, to cater to other requirements at home.
 - d. In regards to the religious upbringing of the children. Taking the children to social events and events of other races, for better understanding and development.

7) **SEPARATION:**

- a. The petitioner with children came back to India on 12/03/2025. This was the day when the respondent was at office, as he would generally have work with 3 days at office and 3 days at home. The petitioner took help of maternal aunt to book tickets as she did not have the monies. The petitioner had the passport of her and children and hence on ticket she could come back. The petitioner has got the important paperwork belonging to her and children and clothes, which was permitted to be brought to India.
- b. After the petitioner came back, uninvited the respondent and his parents landed up at the petitioner's fathers place at Tucker Vihar. They continuously called the petitioners father as he was not at home. This is also harassment. On 23/03/2025, the respondent and his father came to the mother's house of the petitioner, where the petitioner and children stay. They came around 11.15 am. They came to 4th floor and were sitting outside. Then father left after some time. In the meantime, they were calling the father of the petitioner. The respondent created a commotion, by loudly calling for Agastya. He was not ready to leave and the neighbours help was sought. When the respondent was not ready to listen, the petitioner's mother stated that she will have to call the police for help, to which the respondent threatened, that if so, she will be falsely implicated in kidnapping his sons. The petitioner was aghast that such allegations were made

against her old mother, when she and the children were staying out of free will with her. The respondent was there till nearly 6 pm.

- c. On 26/03/2025, the petitioner met the respondent at a café and informed the respondent that the petitioner would prefer to do a divorce by mutual consent. However, the respondent stated that he wanted continue staying married, though he himself has said around 100 times, that the marriage is over and they should separate. However, as stated above, being a narcissist, the said fact that the petitioner is asking for divorce, has not gone down well with him and hence this change of stand to show the world.

8) **CONTACT OF THE RESPONDENT WITH CHILDREN AND HIS ILL TREATMENT AND CRUELTY TOWARDS THE CHILDREN:**

- a. The petitioner vividly remembers a few incidences when the new born Dhruv was also a subject of respondent's cruel behaviour. The petitioner had been discharged from the hospital on delivery after 5 days. The baby was brought home at the petitioner's grandmother's house. The respondent and his parents were visiting in the evening, the respondent for no rhyme or reason remove the infant's wrappings and held him naked in front of the window during monsoon. This shows the respondent's callous and dangerous attitude. The infant Dhruv got chest infection and fell ill.

- b. In summer of 2015, while at Bangalore, after the swimming classes, Dhruv was brought back home by the respondent on scooter without drying him and making him pull over a T-Shirt on his wet body thereby, making the clothes wet and catching cold owing to the breeze. Any person would know that especially after swimming warm apparels are worn and the hair with ears covered to avoid catching cold for infection. Dhruv had come blue and frozen. The petitioner had made him changed his clothes and wrapped him in blanket and given him hot milk to warm him up. The petitioner's mother who was also present also gave Dhruv hot bag and put on thick socks on him to keep him warm. The respondent showed no empathy for the child.
- c. In August 2016, that the petitioner came back from work she saw the respondent sitting on sofa snacking while next to him Agastya was moaning and rolling over sofa in the drawing room. When the petitioner picked up Agastya he was burning hot. She checked to find that he was running fever of 104 degrees. The petitioner took necessary action and on the other hand the respondent called up his mother from the 11th floor to come down and then expressed surprise that the child was ill with fever. In the evening the respondent also admitted that he knew that Agastya was running fever, however, had thus ignored him.
- d. The petitioner with the respondent and children stayed in Japan from April 2018 to Oct 2019. The

respondent from day one at Japan was unhappy as it was his first shore job, the office had majority of north Indians, and thus he was not able to adjust in the office atmosphere. This would result in the respondent taking out all the frustration on the petitioner and the children. He would fight, complain on petty things like the food is the same, socks should be handwashed and not washed in washing machine. Food should not be heated in microwave oven and only heated on stove top. clothes are not properly washed, portion of the house is not properly dusted to his liking. The petitioner had taken Agastya for a haircut, in simple clothes. The respondent was sent to the salon, by his father. After the haircut, when the petitioner and the respondent with son went to the market, the respondent started ranting about the clothes Agastya had worn as they looked cheap and showed him in poor light in front of all Indian, who visited the salon. The petitioner tried to explain, and this is first time, he threatened to thrash her for not listening to him. On the other hand he would not want to buy any decently expensive clothes for the children as would then accuse her of “squandering his monies”.

- e. The respondent would constantly undermine the children’s confidence by stating that they were like their mother, a North Indian, dumb, as compared to his sister’s children who had south Indian traits and who are intelligent. While in Japan when Dhruv came home happy having secured full marks in science paper the

respondent ignored. The respondent would push Dhruv to play chess as the respondent's sister children played chess, had won few medals, and as he had preconceived ideas that chess is for intelligent children and all recent Indian chess players are from south and it is only they who could bring laurels and not north Indians. The respondent admonished and belittled Dhruv saying that his future was finished when he got his first specs, in year 2017. The respondent declared that Dhruv would do nothing more than be garbage collector, post-man, food delivery boy and compared him to his sister's children. He also threatened that if Agastya got spectacles he would kill the petitioner.

- f. While at New Castle during 22/08/2022, while the children's vacations were on the respondent's parents were visiting, the vacations have just started. While in the kitchen the respondent just kept on harping that Dhruv should sit with his father and do maths. Dhruv replied that it was his holidays and that he would like to enjoy. The respondent suddenly overwhelmed with anger literally grabbed Dhruv's neck and pushed him against the wall. The petitioner who was washing utensils loudly screamed and shocked which made the respondent's father enter kitchen. Instead of admonishing the respondent, the respondent and his father went on preaching that Dhruv should be grateful to his father for having brought him to England and providing education. Dhruv was crying and the petitioner was consoling.

- g. After their dental treatment in India on August 2023, the petitioner along with the children went to Singapore to spend one week with the respondent who was visiting Singapore on official duty. The respondent's parents had booked the tickets from Singapore to London with Air China as they were the cheapest. As is known, generally, a transit visa is not required if the lay over at an airport is up to 6 hours. Air China informed at the last moment that the layover would be around 24 hours at China on way to London. The petitioner and the children did not have China visa and hence, could not fly on the flight at the risk of being deported. Thus, the petitioner had to scramble for last minute purchase of tickets of British Airways. Last minute tickets are very expensive. On coming to London, the petitioner was met with tirades from the parents of the respondent stating that are you a princess to fly and spend so much on air tickets and other unnecessary allegations. In fact, the respondent had refused to buy these tickets of the petitioner. She had broken the F.D. to purchase these tickets. This reason was put forth by the respondent and the father-in-law to give the bank user name and the password to him so as to take control of her bank account and her activities.
- h. The belittling, gaslighting, and even fat shaming began as the petitioner had started to put on weight post younger Agastya's son's birth. The petitioner had also developed gestational hypothyroidism. Due to the huge stress that she

faced – she was blamed constantly for all things that did not go smoothly as she was expected to arrange schools and look for rental properties etc on her own and every time that she did not live up to his expectations, she was verbally abused “Bitch, BC, MC, Asshole,” and accused of the poor upbringing of the children. The petitioner would take the children to school and pick them up too. In the beginning, the boys were assigned to two different schools and thus the petitioner had a difficult time trying to pick and drop them to the schools on time. One trip was walk, train, walk one way for 45 mins. Respondent was absent. The respondent was not bothered about the petitioner nor the children, regardless of the cold weather. He would infact say, that will help her loose weight.

- i. On 21st Oct 2023, the respondent again broached the topic of tickets of Air China, loss incurred to him and accused the petitioner that she had done hawala for tickets. The petitioner against justified her acts as stated above. The respondent wanted the petitioner to beg for forgiveness and he kept on saying that it was time to reach her a lesson. The petitioner refused and this was met with physical fight whereby the respondent slapped the petitioner “left and right” and also twisted the thumb and in reverse action again put it back on its place. Dhruv by then around 13 years old intervened to protect his mother from physical assault. The respondent again grabbed him by the throat. In retaliation the petitioner to protect

Dhruv pushed the respondent aside. The respondent in retaliation started hitting the petitioner and Dhruv and they were trying to defend themselves. Finally, after around 10 to 15 minutes of being assaulted the petitioner and Dhruv and Agastya left the house and sought refuge with cousin Ayush Sharma. They then went to the police to make the report of this incident. The police took note and then gave the Crime Reference No: 4012631/23. The respondent realizing that a complaint may jeopardize his career falsely started showing remorse and pleading, apologizing over the phone by making the father-in-law call. After two days the petitioner and the children re-entered the house. The father-in-law's constant apologizing did not make the petitioner escalate the grievance with the police which should have otherwise resulted in the arrest of the respondent and other legal consequences. The in-laws then visited in the summers, however, after the few days of the aforesaid incidence the respondent began saying "*Apne to mujhe police mein de diya*". There was never a feeling of guilt or apology showed by the respondent. The parents of the respondent blame the petitioner that "*ghar ka mamla was taken outside and that You must have done something for this to happen*".

- j. Post the incident, the respondent kept on saying that the petitioner had called the cops on him and he would keep on ranting the same everyday. The

situation at home was grim, unpleasant and fiercely tensed. After saying this to the petitioner then he would get after Dhruv. This continued for months and would be repeated every weekend.

- k. The petitioner father came in May 2024. The respondent did not go to receive or see off. The father was ignored and did not bother to treat him kindly. The respondent kept on harping that he was feeling uncomfortable and it appeared it was a conspiracy to do something to him. The respondent took the petitioner's father to the park stating that he wanted to explain his side of the story. On asked, the father only said that the respondent was trying to justify his actions stating that the petitioner and Dhruv had to be blamed and his was a reaction not an action. The father left 22Nd July 2024. The petitioner states that in Aug 2024, the parents of the respondent came to UK. Within 3 days of arrival they started blaming the petitioner for having complained and dragged her father in it stating that he must have advised her. They made insinuations, that she did not have brains and worked as per others advice. The respondent and parents kept on showing displeasure to the son and stating that it was because of the respondent that he was getting such good school and facilities. The constant badgering was to make Dhruv guilty. They claimed Dhruv was bipolar. They would constantly badger the petitioner and claim that she was not being transparent by keeping her phone password protected and by not sharing her personal bank

passwords. The respondent would blame Dhruv for spoiling the atmosphere in the house and even blamed Dhruv for shortening the life of his parents with his rude and unreasonable behaviour, because Dhruv refused to sit with his father and study maths. If the petitioner intervened she was said to keep her mouth shut and sit. Merely to punish Dhruv the respondent took away his phone and kept it with him for a week, stating that there were to be no passwords on it and that he was paying for it.

1. On 03/11/2024, Sunday, around 11.15 a.m. in the morning, after having a bath Dhruv was sitting in a living room doing some craft work, Agastya and the respondent were playing ball. The respondent wanted Dhruv to join whereas Dhruv was engrossed in his work. The respondent threw the ball at Dhruv which hit him. Everyone had a laugh. However, Dhruv stated that it was not funny. The respondent again after sometime did the same. Dhruv's reaction at the second time was met with the respondent's anger stating that it was a time to teach Dhruv a lesson. He removed the curtain ties and stated swinging it threatening to hit with the corners of the ties which were controlled by hard objects and the petitioner held on to the curtain ties so that the respondent could not hit Dhruv and the petitioner could prevent this assault. On this the respondent got angry and he bite the petitioner near the knuckles on her left hand. The petitioner screamed and Agastya was also a witness to this. Though he let go the

petitioner, he caught hold of Dhruv and started pulling him towards the main door. The respondent opened and literally kicked him out of the house and banged the door on his face. Dhruv was in his cotton tee shirt and shorts. In November the temperature of that area of London is generally 5 Degree Celsius, though it is more cold than the normal 5 Degree Celsius, owing to the wind chill factor. The petitioner inside was consoling Agastya, probably after composing him in around 5 minutes when the petitioner opened the doors to take Dhruv inside, Dhruv was not to be seen. The petitioner was scheduled to go to work not seeing Dhruv the petitioner informed the respondent. The respondent just shrugged off held. The petitioner then went on searching and looking around in the neighbourhood. Dhruv was finally found at around 7 p.m. in the same building having entered from another entrance, sitting in the lounge. Dhruv has later confirmed that this incident did not make him realize and he had just walked that day only to return home around 7 p.m. This has created a lasting impression on Dhruv's mind and now he fears about the respondent. He has now become very withdrawn from the respondent owing to such acts. He seems to be depressed. This condition of the elder brother has also affected Agastya.

m. During every weekend, there were fights between the petitioner and the children elder one specially with the respondent. The respondent would state that he was suffocating and that he was not happy

- and that they should separate. The respondent would state that he wants to be with his parents.
- n. On 05/03/2025, Sunday again in an altercation between Dhruv and the respondent, the respondent flung the laptop on ground, as he found Dhruv on laptop and he was not happy with him. The respondent stated that Dhruv should be happy as the same was thrown on the floor and not out of the balcony. The petitioner and the respondent were staying on the 11th floor. The laptop was old laptop given by the father of the petitioner to petitioner and children use. The respondent also threatened to break the fit bit watch of titan given to Dhruv by petitioner's father as a birthday present, as he thought that the children should not be given expensive gifts.
- o. The petitioner states that considering the cruelty meted out the petitioner and children do not wish to join the respondent and hence they have decided to permanently shift to India. The children education is now secured as they have been enrolled in **Vibgyor High School NIBM**, in 9th and 5th respectively. The school fees amount to Rs. 3 lakhs per year per child. This includes only the tuition and books. The petitioner has to take care of the other expenses of the children such as extra-curricular activities, travel, stationery, picnic, uniform, extra classes etc. The petitioner states that considering the age and wish of the children, she needs to be declared as the sole custodian.

- 9) The petitioner states from the above, it is apparent, that as compared to the respondent she is better socially, mentally, educationally, and interested in the wellbeing of both the children. That considering the age and wish of both the children the custody and guardianship of both the children will be better suited and in interest of the children, if the same is retained with the petitioner.
- 10) In such a situation for, the welfare of the children, the petitioner needs to have the interim custody with her and further the respondent needs to be injuncted vide an order of injunction to prohibit the respondent from taking the physical custody of both the children out of petitioner, without the order of the court, or to keep them against their wish and will so as to cause them loss, inconvenience.
- 11) **Affidavit in support of the petition is filed herewith.**
- 12) Hence the above-mentioned petitioner most respectfully begs to pray as follows:
 - a) That in the interim the physical custody of both the children be **retained** with the petitioner.
 - b) That in the interim, **vide an order of injunction**, the respondent be restrained from moving both the children out of Pune without the permission of the honourable court.
 - c) That during the pendency of the proceedings, the **respondent be restrained from communicating** with the school directly in regards to any activity vis-a-vis the children during the pendency of the said proceedings, thereby prohibiting the respondent from causing disturbance, annoyance or embarrassment to the children.

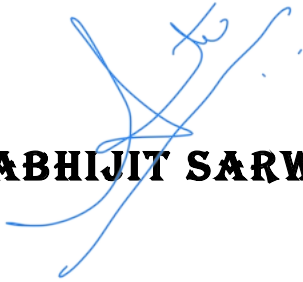
- d) Ad-interim order be passed in terms of prayer clause a-c above.
- e) Any other just and equitable order may kindly be passed in the interest of justice.

PUNE

DATED: 19/04/2025



PETITIONER



ADV ABHIJIT SARWATE

4

CC

**BEFORE THE HON'BLE JUDGE FAMILY COURT NO. -2 AT
PUNE**

P.A. No. 730/2025

Sirisha Karkera ... Petitioner

Versus

Kunal Karkera ... Respondent

**APPLICATION SEEKING IMMEDIATE HANDOVER OF
CUSTODY IN VIEW OF THE RETURN ORDER PASSED BY
THE HIGH COURT OF JUSTICE, LONDON**

The Respondent above named states as under:

1. The Respondent states that the minor children, Dhruv (15 years) and Agastya (10 years), are habitually resident in the United Kingdom and are Wards of the High Court of England and Wales, by virtue of Wardship Proceedings initiated in Case No. FD25P00529.
2. The Hon'ble High Court of Justice, Family Division, London, after hearing the Respondent and considering all evidence, has on 22 October 2025 passed a Return Order directing that the minor children must be returned to the United Kingdom to resume their care, residence, schooling, and welfare under the jurisdiction of the UK Court.
3. The said Return Order categorically records that:
 - the children are wards of the UK Court,
 - the UK Court retains exclusive jurisdiction,
 - the children were wrongfully removed and/or retained in India,
 - the Respondent father is the rightful custodial parent.

4. The Petitioner has knowingly and willfully withheld custody, in direct violation of the explicit directions passed by the UK High Court. This amounts to continuing contempt before the foreign court and illegal retention before this Hon'ble Court.

5. The wrongful retention is causing grave harm to the children's schooling, emotional stability, social environment, and continued medical and psychological support.

6. This Hon'ble Court, while respecting the doctrine of comity of courts, cannot permit the Petitioner to continue violating a lawful and binding order passed by a competent court of the children's habitual residence.

7. The Respondent therefore seeks an immediate handover of custody of both minor children so that he may comply with the UK Return Order and present the children before the High Court of Justice as required.

8. The Respondent undertakes before this Hon'ble Court:

- to immediately transport the children safely to the United Kingdom,
- to comply with all directions of the High Court of England & Wales,
- to file compliance proofs before this Hon'ble Court, if required.

9. The Petitioner has suppressed the existence of the Return Order and continues to wrongfully retain the children, acting contrary to their welfare and in violation of international judicial comity.

PRAYER :- It is most humbly prayed to this Hon'ble court

A. Direct the Petitioner to immediately hand over custody of both minor children Dhruv and Agastya to the Respondent father forthwith;

B. Direct appropriate police assistance, if required, to ensure smooth and peaceful transfer of custody to the Respondent;

C. Permit the Respondent to take both minor children to the United Kingdom in compliance with the binding Return Order dated 22 October 2025 passed by the High Court of Justice, London;

D. Direct the Respondent to file a compliance report before this Hon'ble Court after producing the children before the UK Court;

E. Pass any other orders deemed fit in the interest of justice and welfare of the minor children.

Place: Pune

Date: 19/11/2025



Respondent

Kunal Karkera

Through POA Holde

Shri Gopinath Karkera

BEFORE THE HON'BLE JUDGE, FAMILY COURT NO.-2 PUNE, AT PUNE.

P.A.730/2025

Sirisha Karkera..... Petitioner
Vs
Kunal Karkera Respondent

AFFIDAVIT

I, Shri Gopinath Karkera , Age-78, Occc. _Retd., r/O-d414/ 1103, Sadnip Vihar, AWHO, Kadugodi Road, Kannamangala , Whitefield Bangalore (Power of Attorney Holder for my son **Kunal Karkera ,Flat No.-163, Sutton Plaza, London , United Kingdom, Sm14 FX, + 44 777 8139088, Kunal.karkera@gmail.com**, (who is respondent in the present matter) the respondent the matter and in such capacity I am able & competent to swear the present affidavit.

1. I say that I am well conversant with the facts and circumstances of the present matter as each facts stated in the accompanying application the same has been informed and explained to me and they are in my personal knowledge.
2. The contents of the application be read as part and parcel of this affidavit and are not repeated for the sake of brevity.
3. I say that I have gone through the contents of the application n and the same has been drafted by the counsel as per the instructions given by me which has been read over to me and I understand the same. I affirm on oath that the facts mentioned therein are true to my knowledge and belief. Hence, this affidavit.

Pune

Date 19/11/2025

I Know and Identify the deponent

Adv. Shweta Ankalwar(1644)



Respondent
(Through Power of Attorney Holder)
Lt Col K S Gopinath (Retd)

AFFIDAVIT

Solemnly affirmed before me
by Mr. Gopinath Karkera Port of
who is identified by Shri. Adv. Shweta Ankalwar resp.
who is personally known to me
Date 18/11/25
433611
Superintendent
Family Court, Pune

D64



Kunal Karkera <kunal.karkera@gmail.com>

Sealed Order 27-11-25 Harrison -High Court of Justice, Family Division, case number FD25P00529

Kunal Karkera <kunal.karkera@gmail.com>

Fri, Nov 28, 2025 at 12:44 PM

To: Sirisha Karkera <sirisha9@hotmail.com>, Sirisha Sharma <myrddraal79@gmail.com>, RCJ Family <rcj.familyhighcourt@justice.gov.uk>, "rcj.familyorders" <rcj.familyorders@justice.gov.uk>

Dear Mrs Sirisha Kunal Karkera

I write in my capacity as the Applicant in the matter of our *Children* , **Dhruv Kunal Karkera** aged 15 years and **Agastya Kunal Karkera** aged 11 years" High Court of Justice, Family Division, case number **FD25P00529**

- Please find the **Sealed order** from the court for your reference and records dated 27 November 2025.

Kindly acknowledge safe receipt of this email and the enclosed document.

Yours Sincerely,

Kunal Karkera

Applicant: Kunal Karkera (Litigant in Person)

Flat 103. 16 Sutton Plaza, 16 Sutton court road

kunal.karkera@gmail.com

+44 7778139088/ 7785392910



Karkera FD25P00529 27-11-25 Harrison J.pdf
207K



Kunal Karkera <kunal.karkera@gmail.com>

Subject: Filing of Applicant Father's Position Statement – Hearing on 27 November 2025 – Case No. FD25P00529

Kunal Karkera <kunal.karkera@gmail.com>

Thu, Nov 27, 2025 at 1:19 AM

To: Sirisha Karkera <sirisha9@hotmail.com>, Sirisha Sharma <myrddraal79@gmail.com>, "rcj.familyorders" <rcj.familyorders@justice.gov.uk>, RCJ Family <rcj.familyhighcourt@justice.gov.uk>, LAW OFFICE OF ADV ABHIJIT SARWATE <sarwate_works@hotmail.com>

Dear Sir/Madam,

I write to file the Applicant Father's Position Statement for the hearing listed on 27 November 2025 at 2:00 PM, in accordance with the Court's directions.

The Position Statement sets out the Applicant's proposals and practical arrangements for the children's return, together with the Applicant's updated position for the upcoming hearing.

Please kindly place this document before the allocated Judge for the hearing.

I confirm that a copy of this Position Statement has also been served on the Respondent Mother and her lawyer.

Should the Court require any further information, I remain available to assist.

Applicant: Kunal Karkera (Litigant in Person)

Flat 103. 16 Sutton Plaza, 16 Sutton court road

kunal.karkera@gmail.com

+44 7778139088/ 7785392910



POSITION STATEMENT OF APPLICANT FATHER FOR THE HEARING DATED 27 NOV 25 (3).pdf
95K



Kunal Karkera <kunal.karkera@gmail.com>

Filing of Applicant Father's Statement of Service – Case No. FD25P00529

Kunal Karkera <kunal.karkera@gmail.com>

Thu, Nov 27, 2025 at 1:13 AM

To: Sirisha Karkera <sirisha9@hotmail.com>, Sirisha Sharma <myrddraal79@gmail.com>, LAW OFFICE OF ADV ABHIJIT SARWATE <sarwate_works@hotmail.com>, RCJ Family <rcj.familyhighcourt@justice.gov.uk>, "rcj.familyorders" <rcj.familyorders@justice.gov.uk>

Dear Sir/Madam,

I write to file the **Applicant Father's Statement of Service**, in compliance with the Court's order dated 29.10.2025.

This document sets out the steps taken to effect service of the Court's Orders and supporting materials upon the Respondent Mother and her representative, including the notice of hearing dated 27 November 2025.

Please kindly place this **Statement of Service** on the Court file and before the Judge for the upcoming hearing.

I confirm that a copy of this email and the attached Statement of Service has also been served on the Respondent Mother and her lawyer.

Should the Court require any further information, I remain available to assist.

Kunal Karkera

Applicant: Kunal Karkera (Litigant in Person)

Flat 103. 16 Sutton Plaza, 16 Sutton court road

kunal.karkera@gmail.com

+44 7778139088/ 7785392910

7 attachments

 **14.November .2025 SEALED ORDER --High Court of Justice, Family Division, case number FD25P00529.pdf**
128K

 **19 November 2025 Supporting Documentation Submitted on 29 Oct 2025 for Dhruv and Agastya – Compliance With Court Order__ SEALED ORDER --High Court of Justice, Family Division, case number FD25P00529 (1).pdf**
113K

 **24 November 2025 - Return TravelArrangements for Dhruv and Agastya– Compliance With Court Order__ SEALED ORDER --High Court of Justice, Family Division, case number FD25P00529 (1).pdf**
127K

 **27 Oct 2025 SEALED ORDER --High Court of Justice,Family Division, case number FD25P00529 (1).pdf**
128K

E3



14 October Application for Wardship for Two minorChildren--Dhruv Agastya Karkera and Agastya KunalKarkera (1).pdf

84K



27 Nov 2025 Service of Notice of Hearing – High Court of England and Wales – Case No_ FD25P00529.pdf

121K



STATEMENT OF APPLICANT FATHER OF SERVICE (2).pdf

527K



Kunal Karkera <kunal.karkera@gmail.com>

Service of Notice of Hearing – High Court of England and Wales – Case No: FD25P00529

Kunal Karkera <kunal.karkera@gmail.com>

Wed, Nov 26, 2025 at 11:15 PM

To: Sirisha Karkera <sirisha9@hotmail.com>, Sirisha Sharma <myrddraal79@gmail.com>, RCJ Family <rcj.familyhighcourt@justice.gov.uk>, LAW OFFICE OF ADV ABHIJIT SARWATE <sarwate_works@hotmail.com>, "rcj.familyorders" <rcj.familyorders@justice.gov.uk>

Service of Notice of Hearing – High Court of England and Wales – Case No: FD25P00529

Dear Mrs Sirisha Karkera,

I write to you to formally **serve notice of the upcoming hearing** in the proceedings before the **High Court of Justice, Family Division**, in accordance with the Order of the Court and the Family Procedure Rules.

Please take notice that:

A hearing is listed on:**Date:** *Thursday, 27 November 2025***Time:** *2:00 PM (London UK Time)***Venue:** *Royal Courts of Justice, The Strand, London WC2A 2LL***Case Number:** **FD25P00529**

This hearing concerns the ongoing **wardship and summary return proceedings** relating to the children **Dhruv Kunal Karkera** and **Agastya Kunal Karkera**, and the Court will consider the steps required for the continued implementation of its orders.

Please also note:

- This email constitutes **formal service** of the hearing notice.
- A copy of this notice has been copied to the hon'ble Court for the Court's record.

I kindly request that you confirm **receipt of this notice** by reply email.

Should you choose not to attend, the Court may proceed **in your absence**, and any orders made will remain binding.

Yours Sincerely,

Kunal Karkera



Kunal Karkera <kunal.karkera@gmail.com>

Return Travel Arrangements for Dhruv and Agastya – Compliance With Court Order// SEALED ORDER --High Court of Justice, Family Division, case number FD25P00529

Kunal Karkera <kunal.karkera@gmail.com>

Mon, Nov 24, 2025 at 1:07 PM

To: Sirisha Karkera <sirisha9@hotmail.com>, Sirisha Sharma <myrddraal79@gmail.com>, "rcj.familyorders" <rcj.familyorders@justice.gov.uk>, RCJ Family <rcj.familyhighcourt@justice.gov.uk>

Dear **Mrs Sirisha Karkera**,

This email serves as a **formal warning**, following my message dated **19 November 2025**, regarding your obligations under the **Order of the High Court of England and Wales dated 29 October 2025**.

As you are fully aware, the Court has directed that **Dhruv and Agastya must be returned to this jurisdiction of England and Wales on or before 8 December 2025**, and that you must **provide copies of the flight tickets for yourself and the children no later than 21 November 2025**.

As of today's date, you have **not complied** with the requirement to file the tickets with the Court or provide copies to me. The earlier email (19 November 2025), which was viewed several times on 19 and 20 November, has not been acknowledged or responded to.

I must remind you that **compliance with the Court's Order is mandatory**, and any continued failure to do so may lead to **serious legal consequences**, including but not limited to:

- Adverse findings by the Court regarding non-cooperation,
- Further enforcement applications, including **sequestration** or **committal**, and
- Additional cost orders being made against you.

None of these outcomes would be in the **children's best interests**, nor would they assist in reducing the conflict that they have already been exposed to. Compliance with the Order helps ensure a **smooth, safe and child-focused transition**, which the Court has made clear is its primary concern.

In accordance with **paragraph 7 of the Court's Order**, I again confirm my willingness to **reimburse the reasonable costs of the return flights** for you and the children **once you have filed the copies of the tickets with the Court and shared the same with me**.

To proceed appropriately and transparently, I respectfully request that you:

1. **Purchase the return tickets** as directed by the Court;
2. **File copies of the tickets with the High Court**; and
3. **Provide me with the same copies**, so that reimbursement can be made promptly.

This process ensures **full compliance**, protects both parties, and aligns with the **express intention of the Court**.

E6

For the avoidance of doubt, I request that you **confirm receipt of this email** and **advise when you will be filing the tickets**, as you are required to do without further delay.

Kunal Karkera

Applicant: Kunal Karkera (Litigant in Person)

Flat 103. 16 Sutton Plaza, 16 Sutton court road

kunal.karkera@gmail.com

+44 7778139088/ 7785392910

[Quoted text hidden]



Kunal Karkera <kunal.karkera@gmail.com>

Supporting Documentation Submitted on 29 Oct 2025 for Dhruv and Agastya – Compliance With Court Order// SEALED ORDER --High Court of Justice, Family Division, case number FD25P00529

Kunal Karkera <kunal.karkera@gmail.com>

To: Sirisha Karkera <sirisha9@hotmail.com>, Sirisha Sharma <myrddraal79@gmail.com>, RCJ Family <rcj.familyhighcourt@justice.gov.uk>, "rcj.familyorders" <rcj.familyorders@justice.g

Dear Mrs Sirisha Karkera,

I write further to the **Order of the High Court of England and Wales** dated **29 Oct 2025**, please find the supporting documentation that was submitted to the Royal Court on **October 2025**

In line with **paragraph 15 of the Court's Order**, I confirm the below attached documentation was exhibited as evidence

To proceed smoothly, please find the documentation provided for the children.

1. Documentation showing when and at what times the ORDER were read by yourself.
2. Evidences that children were very well integrated since Primary school into education system in the UK.
3. Sealed ORDER (for your reference)

This approach ensures **full transparency**, protects both parties, and complies with the express wording and intention of the Court's direction.

I would be grateful if you could kindly confirm receipt of this email so that there is compliance.

Yours sincerely,

Kunal Karkera

Applicant: Kunal Karkera (Litigant in Person)

Flat 103. 16 Sutton Plaza, 16 Sutton court road

kunal.karkera@gmail.com

+44 7778139088/ 7785392910

One attachment • Scanned by Gmail

3 attachments

 **SIX 29 October SEALED ORDER. FD25P00529. RE- KARKERA (1).pdf**
235K

 **Supporting docuemts that mails have been read by Mrs Sirisha karkera.docx**
78K

 **Updated-Evidences that Childrens were well integrated with school s in UK and NHS..docx**
7443K



Kunal Karkera <kunal.karkera@gmail.com>

SEALED ORDER --High Court of Justice, Family Division, case number FD25P00529

Kunal Karkera <kunal.karkera@gmail.com>

Fri, Nov 14, 2025 at 1:59 PM

To: LAW OFFICE OF ADV ABHIJIT SARWATE <sarwate_works@hotmail.com>, Sirisha Karkera <sirisha9@hotmail.com>, Sirisha Sharma <myrddraal79@gmail.com>, RCJ Family <rcj.familyhighcourt@justice.gov.uk>, "rcj.familyorders" <rcj.familyorders@justice.gov.uk>

Dear Mrs Sirisha Kunal Karkera/ Advocate Mr Abhijit Sarwate.

I write in my capacity as the Applicant in the matter of my *Children, **Dhruv Kunal Karkera** aged 15 years and **Agastya Kunal Karkera** aged 11 years*" High Court of Justice, Family Division, case number **FD25P00529**

- Please find the **Sealed order** from the court from the Royal court of Justice for your reference and records..

Kindly acknowledge safe receipt of this email and the enclosed document.

Yours Sincerely,

Kunal Karkera

Applicant: Kunal Karkera (Litigant in Person)

Flat 103. 16 Sutton Plaza, 16 Sutton court road

kunal.karkera@gmail.com

+44 7778139088/ 7785392910

**SEALED ORDER. FD25P00529. RE- KARKERA (2).pdf**

235K



Kunal Karkera <kunal.karkera@gmail.com>

--SEALED ORDER --High Court of Justice, Family Division, case number FD25P00529

Kunal Karkera <kunal.karkera@gmail.com>

Mon, Oct 27, 2025 at 5:41 PM

To: Sirisha Karkera <sirisha9@hotmail.com>, Sirisha Sharma <myrddraal79@gmail.com>, "Crabbe, Francine" <Francine.Crabbe@justice.gov.uk>, RCJ Family <rcj.familyhighcourt@justice.gov.uk>, "rcj.familyorders" <rcj.familyorders@justice.gov.uk>

Dear Mrs Sirisha Kunal Karkera

I write in my capacity as the Applicant in the matter of our *Children* , ***Dhruv Kunal Karkera aged 15 years and Agastya Kunal Karkera aged 11 years***” High Court of Justice, Family Division, case number ***FD25P00529***

- Please find the **Sealed order** from the court for your reference and records..

Kindly acknowledge safe receipt of this email and the enclosed document.

Yours Sincerely,

Kunal Karkera

Applicant: Kunal Karkera (Litigant in Person)

Flat 103. 16 Sutton Plaza, 16 Sutton court road

kunal.karkera@gmail.com

+44 7778139088/ 7785392910

2 attachments**KARKERA FD25P00529 ORDER 21.10.25.pdf**
208K**Completed --C67 form.pdf**
745K



Kunal Karkera <kunal.karkera@gmail.com>

Application for Wardship and Return order or Two minor Children--Dhruv Agastya Karkera and Agastya Kunal Karkera

kunal karkera <kunal.karkera@gmail.com>

Fri, Oct 24, 2025 at 4:02 PM

To: Sirisha Karkera <sirisha9@hotmail.com>, Sirisha Sharma <myrddraal79@gmail.com>, RCJ Family

<rcj.familyhighcourt@justice.gov.uk>, "rcj.familyorders" <rcj.familyorders@justice.gov.uk>

Bcc: gopinath karkera <gopinath56@yahoo.com>, Mangesh Bhalerao <mangesh@devopxy.com>

Dear Mrs Sirisha Kunal Karkera

I write in my capacity as the **Applicant** in the matter of our **Children , Dhruv Kunal Karkera aged 15 years and Agastya Kunal Karker aged 11 years**" High Court of Justice, Family Division, case number **FD25P00529**

Please find attached the following document for your attention and service:

- **Notice of Hearing** dated **29 Oct 2025**, listing the next hearing b on **29 October 2025 at 1530 Hrs**, to be held at **FAMILY DIVISION** , 1st Mezzanine, Queen's Building, Royal Courts of

Justice, Strand, London, WC2A 2LL

This Notice is served upon you in accordance with the **Family Procedure Rules**, as directed by the Court.

Kindly acknowledge safe receipt of this email and the enclosed document.

Yours sincerely,

KUNAL KARKERA**Applicant: Kunal Karkera (Litigant in Person)****Flat 103. 16 Sutton Plaza, 16 Sutton court road**kunal.karkera@gmail.com**+44 7778139088/ 7785392910**

2 attachments**InvokerServlet.pdf**

53K

**Family Division - RCJ info for users with disabilities - FINAL_ - Copy (1).pdf**

114K



Kunal Karkera <kunal.karkera@gmail.com>

Application for Wardship for Two minor Children--Dhruv Agastya Karkera and Agastya Kunal Karkera

kunal karkera <kunal.karkera@gmail.com>

Tue, Oct 14, 2025 at 3:35 AM

To: RCJ Family <rcj.familyhighcourt@justice.gov.uk>, "Singh, Renee" <Renee.Singh@justice.gov.uk>, Sirisha Karkera <sirisha9@hotmail.com>, Sirisha Sharma <myrddraal79@gmail.com>, "Crabbe, Francine" <Francine.Crabbe@justice.gov.uk>

Cc: rcj.familyorders@justice.gov.uk, RCJ Family <rcj.familyhighcourt@justice.gov.uk>

Dear Mrs Sirisha Karkera

Pursuant to the Court's Order dated **23 September 2025**, please find served **the Applicant Father's Witness Statement** together with the **chronology** in compliance with the service directions.

Documents served (electronic):

1. Applicant Father's Chronology of Events
2. Applicant Father's Witness Statement (signed, dated)

Service is effected today by email as per the above order. Please **acknowledge safe receipt** by return email. If you experience any difficulty opening the attachments, kindly inform me immediately.

Yours sincerely,

Kunal Karkera

(Father of Dhruv and Agastya Kunal Karkera)



Final--karkera-wardship-application-14.10.2025.pdf
1056K

From: Crabbe, Francine Francine.Crabbe@justice.gov.uk
Subject: KARKERA FD25P00529 ORDER 23.09.25
Date: 26 Sep 2025 at 4:24:31PM

Dear Madam,

Please discard the previous order sent to you on Tuesday 23rd September 2025. Please see correct order with the case name and number.

Kind Regards

Francine Crabbe

Associate

HMCTS | High Court Family Division | Clerk of the Rules | 1st Mezzanine Queens Building | Royal
Courts of Justice | Strand, London | WC2A 2LL

([020 7947-6041](tel:02079476041))

8: francine.crabbe@justice.gov.uk

rcj.familyorders@justice.gov.uk

rcj.familyhighcourt@justice.gov.uk

Web: www.gov.uk/hmcts

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